

SOLICITATION, OFFER, AND AWARD

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

1 109

2. CONTRACT NUMBER	3. SOLICITATION NUMBER N0017826R3017	4. TYPE OF SOLICITATION ☐ SEALED BID (IFB) INVITATION FOR BID ☒ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	5. DATE ISSUED	6. REQUISITION/PURCHASE NUMBER
7. ISSUED BY NSWC DAHLGREN COMPTROLLER C1B, 17632 DAHLGREN ROAD SUITE 202 DAHLGREN, VA 22448-5154 UNITED STATES KARRINGTON WILSON, Email: karrington.r.wilson.civ@us.navy.mil Telephone: 5409405528		8. ADDRESS OFFER TO (If other than item 7)		

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and _____ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in _____ until 12:00 PM local time 24 Jun 2026
(Hour) (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

10. FOR INFORMATION CALL:	A. NAME KARRINGTON WILSON	B. TELEPHONE (NO COLLECT CALLS)		C. EMAIL ADDRESS karrington.r.wilson.civ@us.navy.r
	AREA CODE 540	NUMBER 940-5528	EXTENSION	

11. TABLE OF CONTENTS

(X)	SECTION	DESCRIPTION	PAGE(S)	(X)	SECTION	DESCRIPTION	PAGE(S)
PART I - THE SCHEDULE				PART II - CONTRACT CLAUSES			
X	A	SOLICITATION/CONTRACT FORM	1-3	X	I	CONTRACT CLAUSES	62-74
X	B	SUPPLIES OR SERVICES AND PRICES/COSTS	4-11	PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS			
X	C	DESCRIPTION/SPECIFICATIONS/WORK STATEMENT	12-43	X	J	LIST OF ATTACHMENTS	75-76
X	D	PACKAGING AND MARKING	44-45	PART IV - REPRESENTATIONS AND INSTRUCTIONS			
X	E	INSPECTION AND ACCEPTANCE	46	X	K	REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS	77-84
X	F	DELIVERIES OR PERFORMANCE	47-50	X	L	INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS	85-105
X	G	CONTRACT ADMINISTRATION DATA	51-56	X	M	EVALUATION FACTORS FOR AWARD	106-10
X	H	SPECIAL CONTRACT REQUIREMENTS	57-61				

OFFER (Must be fully completed by offeror)**NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause Number 52.232-8)	10 CALENDAR DAYS (%)	20 CALENDAR DAYS (%)	30 CALENDAR DAYS (%)	CALENDAR DAYS (%)
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):	AMENDMENT NUMBER	DATE	AMENDMENT NUMBER	DATE
15A. NAME AND ADDRESS OF OFFEROR	CODE	FACILITY	16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	
15B. TELEPHONE NUMBER AREA CODE NUMBER EXTENSION	☐ 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.		17. SIGNATURE	18. OFFER DATE

AWARD (To be completed by Government)

19. ACCEPTED AS TO ITEMS NUMBERED	20. AMOUNT	21. ACCOUNTING AND APPROPRIATION
22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT: ☐ 10 U.S.C. 3204(a) ☐ 41 U.S.C. 3304(a) ()	23. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	ITEM
24. ADMINISTERED BY (If other than Item 7)	25. PAYMENT WILL BE MADE BY	CODE
26. NAME OF CONTRACTING OFFICER (Type or print)	27. UNITED STATES OF AMERICA (Signature of Contracting Officer)	28. AWARD DATE

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.AUTHORIZED FOR LOCAL REPRODUCTION
Previous edition is unusable**STANDARD FORM 33 (REV. 12/2022)**
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

Section A - Solicitation/Contract Form

H30 Engineering Services

DESCRIPTION:

The Naval Surface Warfare Center Dahlgren Division (NSWCDD) falls under the Naval Sea Systems Command (NAVSEA). NSWCDD is an engineering, software development, and system test and integration center for Research, Development, Test, and Evaluation (RDT&E) components of the US Navy. The purpose of this Statement of Work (SOW) is to obtain contract support to provide engineering services to the Weapons Control and Integration Department (H), Missile Systems, Threat Engineering, and Weapons Effectiveness Division (H30) for professional system engineering, mechanical engineering, electrical engineering, computer hardware and software engineering, design and technical direction agent engineering, configuration management (CM), logistics support services, mechanical and electrical engineering technician services, project management and project management support functions, accounting and business services, technical writing services, information assurance (IA) support services, and system administration services.

Other duties indirectly supporting these efforts include providing business operational and financial reporting support, writing technical documentation, maintaining technical databases, and editorial support of technical publications.

PROPOSAL DUE DATE:

Proposals are required through the PIEE Solicitation Module on or before the date and time specified in Block 9 of the solicitation cover page. Proposals shall be valid for 460 days from proposal due date; however, the Government reserves the right to request extensions to proposal validity periods any time prior to award should it be required. To ensure proposals are submitted and received prior to the proposal submission deadline, early submission is strongly encouraged. The solicitation shall close promptly at the date and time posted, without exception, and regardless of whether the proposal upload process has been completed.

PROPOSAL SUBMISSION:

Per the 20 August 2021 OSD A&S DPC Memo, the Navy is now utilizing the Solicitation Portal within the Procurement Integrated Enterprise Environment (PIEE) as an enterprise solution for soliciting and receiving proposals. All SEAPORT MAC holders will need to register PIEE accounts in order to now receive solicitations and submit proposals. ONLY SEAPORT MAC HOLDERS are eligible for award under this solicitation. Once the solicitation has been posted to the Solicitation Module within PIEE, the Government will update the opportunity in SeaPort-NxG to inform MAC holders of the RFP release. MAC holders are advised that the use of file-drop services (DoDSAFE) is not authorized for Prime Offerors' proposal receipt for IDIQ-MAC delivery orders. Proposals shall be submitted in accordance with individual task order solicitation instructions and should be sent directly via PIEE using the Solicitation Module.

PIEE Module Vendor Registration Instructions can be found at: https://www.acq.osd.mil/asda/dpc/ce/cap/docs/piee/PIEE_Solicitation_Module_Vendor_Access_Instructions.pdf.

DoD Procurement Toolbox for the Solicitation Module: <https://dodprocurementtoolbox.com/site-pages/solicitation-module>

Please consider the following suggestions for avoiding last-minute proposal submission problems:

Verify your account's ability to submit the necessary proposal information (either as a Prime or Sub-contractor) well in advance of the closing time. This may be accomplished by the following steps:

1. Login to the PIEE system as the Proposal Manager and access the Solicitation Module.
2. To access the Solicitation Module, Offerors are required to register for a PIEE account. If an Offeror already has a PIEE account, the role of Proposal Manager can be added to the existing PIEE account. If an Offeror does not already have a PIEE account, the Offeror can self-register for a PIEE user account and add the role of Proposal Manager.

3. Resources on how to navigate the PIEE Solicitation Module are available at <https://dodprocurementtoolbox>.
4. For questions related to the PIEE Solicitation Module, please contact disa.global.servicedesk.mbx.ed-ticketrequests@mail.mil. You can also reach PIEE support by phone at 866-618-598.

CRITICAL DATES:

This solicitation represents the Government's requirements and shall be the governing document. The estimated date of award is provided in L-211-H001 UPDATES TO PERIOD OF PERFORMANCE AND DELIVERY DATES (NAVSEA). All questions regarding this requirement shall be submitted via e-mail to the Primary Solicitation Manager identified in the Solicitation Module. To provide ample time to adequately address all questions and, if necessary, amend the solicitation, questions shall be submitted in accordance with L-215-H006 SUBMISSION OF QUESTIONS BY OFFERORS—BASIC (NAVSEA). The question-and-answer period is provided in L-216-H001 TASK ORDER GENERAL INFORMATION (NAVSEA).

ADVANCED NOTICE/ INDUSTRY DAY:

An Advance Notice was posted on 07 November 2025, and an Industry Day was held on 15 December 2025 for this requirement. Offerors may access all pertinent information via the SeaPort-NxG portal under the Opportunities title, "N0017826R3017 - H30 Engineering Services".

COMPETITION APPROACH:

This requirement is a Small Business Set-Aside for all eligible SeaPort-NxG Small Business Prime Contractors.

INCUMBENT CONTRACTOR:

This is a Follow-on to Contract No. N0017819D7754, Task Order No. N0017822F3018 with HART Technologies, Inc. (HART), 7060 Infantry Ridge Road, Manassas, Virginia 20109-2316

GENERAL INFORMATION:

A conformed copy of the solicitation will be issued with any amendment(s). Following Task Order award, this General Information Section will be used to summarize the nature of subsequent modifications, including total current funding being obligated; total funded value of the Task Order; and any other change made to the Task Order. A conformed copy of the Task Order will be issued with each modification. The information contained in this General Information Section is only part of the modification being issued at that time; the information will not be repeated in subsequent conformed copies of the Task Order.

THIS SOLICITATION AND PREVIOUS POSTINGS:

Offerors should not rely on information contained in previous postings. This solicitation represents the Government's requirements and shall be the governing document.

ORGANIZATIONAL CONFLICT OF INTEREST QUESTIONS:

Questions relating solely to an Offeror's possible Organizational Conflict of Interest may be addressed directly to the Contract Specialist (CS) and the Procuring Contracting Officer (PCO) listed in Section G (G-242-H001 GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND RESPONSIBILITIES (NAVSEA)).

BEST VALUE SELECTION PROCEDURES:

Best value source selection procedures will be employed in accordance with Section M of this solicitation.

Section B - Supplies or Services & Prices or Costs

Additional Information/Notes

NOTE 1: LABOR HOURS

The Labor Hours (LH) for the Base Year and each Option Year shall be performed consistent with Section H, H-216-H002, Level of Effort Clause - Alternate I (NAVSEA).

NOTE 2: OPTION CLAUSE

FAR 52.217-9 VAR I OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000) (NAVSEA VARIATION I) (OCT 2018) applies only to the Option CLINs (6100-6450, 7100-7450, and 8100-8450)

NOTE 3: OTHER DIRECT COSTS (ODCs)

ODCs shall include materials and travel required during the Period of Performance of the identified CLIN, for the anticipated destinations stated in Section C.

NOTE 4: NOT SEPARATELY PRICED

NOT SEPARATELY PRICED- The price for Not Separately Priced (NSP) Data items shall be included in the price of the corresponding Labor CLIN (s). In response to L-215-H004 INSTRUCTIONS FOR PRICING OF CONTRACT DATA REQUIREMENTS LIST (NAVSEA) (OCT 2018) in Section L of this solicitation, mark "N/C" or "No Charge" for the estimated cost of the CDRLs.

NOTE 5: SURGE OPTION

If the Government determines that an increased level of effort for support for the task areas provided in section C is required during the base period of performance or any option periods of performance, the Government reserves the right to exercise a "Surge Option" CLIN for additional performance. The Surge Option CLIN may be exercised unilaterally or bilaterally if negotiations are required.

B.1 TYPE OF ORDER

This is a Level of Effort (term) type Task Order

- Items in the 6000 series are Cost-Plus-Fixed-Fee (CPFF) type.
- Items in the 7000 series are cost only, excluding fee.
- Items in the 8000 series are Not Separately Priced (NSP).

B.2 ADDITIONAL CLINs

Additional CLINs may be unilaterally created by the Procuring Contracting Officer (PCO) via a modification during the performance of this Task Order to allow for additional CLINs/SLINs as needed to accommodate the multiple types of funds that may be used under this Task Order. These modifications will not change the overall Level of Effort or value of the Task Order.

Item	Supplies/Service	Quantity	Unit	Unit Price	Amount
6000	Base Year Labor for Engineering Services Support in accordance with Section C, Statement of Work. See Section B, Note 1.				
6000AA	Base Year Labor Holding SLIN to CLIN 6000 Pricing Arrangement: Cost Plus Fixed Fee	138,720	Labor Hours		

6050	Base Year (Surge Option) - for Engineering Services Support in accordance with Section C, Statement of Work. See Section B, Notes 1 and 2.				
6050AA	Base Year Labor Surge Holding SLIN for CLIN 6050 Pricing Arrangement: Cost Plus Fixed Fee	27,744	Labor Hours		
Option Line Item 6100	Option Year One (OY1) Labor for Engineering Services Support in accordance with Section C, Statement of Work. See Section B, Notes 1 and 2.				
Option Line Item 6100AA	Option Year One (OY1) Labor Holding SLIN to CLIN 6100 Pricing Arrangement: Cost Plus Fixed Fee	138,720	Labor Hours		
Option Line Item 6150	Option Year One (OY1) (Surge Option) - for Engineering Services Support in accordance with Section C, Statement of Work. See Section B, Notes 1 and 2.				
Option Line Item 6150AA	Option Year One (OY1) Surge Holding SLIN to CLIN 6150 Pricing Arrangement: Cost Plus Fixed Fee	27,744	Labor Hours		
Option Line Item 6200	Option Year Two (OY2) Labor for Engineering Services Support in accordance with Section C, Statement of Work. See Section B, Notes 1 and 2.				
Option Line Item 6200AA	Option Year Two (OY2) Labor Holding SLIN to CLIN 6200 Pricing Arrangement: Cost Plus Fixed Fee	138,720	Labor Hours		
Option Line Item 6250	Option Year Two (OY2) (Surge Option) - for Engineering Services Support in accordance with Section C, Statement of Work. See Section B, Notes 1 and 2.				
Option Line Item 6250AA	Option Year Two (OY2) Surge Holding SLIN to CLIN 6250	27,744	Labor Hours		

	Pricing Arrangement: Cost Plus Fixed Fee				
Option Line Item 6300	Option Year Three (OY3) Labor for Engineering Services Support in accordance with Section C, Statement of Work. See Section B, Notes 1 and 2.				
Option Line Item 6300AA	Option Year Three (OY3) Labor Holding SLIN to CLIN 6300 Pricing Arrangement: Cost Plus Fixed Fee	138,720	Labor Hours		
Option Line Item 6350	Option Year Three (OY3) (Surge Option) - for Engineering Services Support in accordance with Section C, Statement of Work. See Section B, Notes 1 and 2.				
Option Line Item 6350AA	Option Year Three (OY3) Surge Holding SLIN to CLIN 6350 Pricing Arrangement: Cost Plus Fixed Fee	27,744	Labor Hours		
Option Line Item 6400	Option Year Four (OY4) Labor for Engineering Services Support in accordance with Section C, Statement of Work. See Section B, Notes 1 and 2.				
Option Line Item 6400AA	Option Year Four (OY4) Labor Holding SLIN to CLIN 6400 Pricing Arrangement: Cost Plus Fixed Fee	149,088	Labor Hours		
Option Line Item 6450	Option Year Four (OY4) (Surge Option) - for Engineering Services Support in accordance with Section C, Statement of Work. See Section B, Notes 1 and 2.				
Option Line Item 6450AA	Option Year Four (OY4) Surge Holding SLIN to CLIN 6450 Pricing Arrangement: Cost Plus Fixed Fee	29,818	Labor Hours		
7000	Base Year ODCs in support of CLIN 6000. See Section B, Note 3.				

7000AA	Base Year ODC Holding SLIN to CLIN 7000 Pricing Arrangement: Cost No Fee	1	Lot		
7050	Base Year (Surge Option) - ODCs in support of CLIN 6050. See Section B Notes 2 and 3.				
7050AA	Base Year Surge ODC Holding SLIN to CLIN 7050 Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7100	Option Year One (OY1) ODCs in support of CLIN 6100. See Section B, Notes 2 and 3.				
Option Line Item 7100AA	Option Year One (OY1) ODC Holding SLIN to CLIN 7100 Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7150	Option Year One (OY1) (Surge Option) - ODCs in support of CLIN 6150. See Section B Notes 2 and 3.				
Option Line Item 7150AA	Option Year One (OY1) Surge ODC Holding SLIN to CLIN 7150 Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7200	Option Year Two (OY2) ODCs in support of CLIN 6200. See Section B, Notes 2 and 3.				
Option Line Item 7200AA	Option Year Two (OY2) ODC Holding SLIN to CLIN 7200 Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7250	Option Year Two (OY2) (Surge Option) - ODCs in support of CLIN 6250. See Section B Notes 2 and 3.				

Option Line Item 7250AA	Option Year Two (OY2) Surge ODC Holding SLIN to CLIN 7250 Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7300	Option Year Three (OY3) ODCs in support of CLIN 6300. See Section B, Notes 2 and 3.				
Option Line Item 7300AA	Option Year Three (OY3) ODC Holding SLIN to CLIN 7300 Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7350	Option Year Three (OY3) (Surge Option) - ODCs in support of CLIN 6350. See Section B Notes 2 and 3.				
Option Line Item 7350AA	Option Year Three (OY3) ODC Surge Holding SLIN to CLIN 7350 Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7400	Option Year Four (OY4) ODCs in support of CLIN 6400. See Section B, Notes 2 and 3.				
Option Line Item 7400AA	Option Year Four (OY4) Holding SLIN to CLIN 7400 Pricing Arrangement: Cost No Fee	1	Lot		
Option Line Item 7450	Option Year Four (OY4) (Surge Option) - ODCs in support of CLIN 6450. See Section B Notes 2 and 3.				
Option Line Item 7450AA	Option Year Four (OY4) Surge ODC Holding SLIN to CLIN 7450 Pricing Arrangement: Cost No Fee	1	Lot		
8000	Not Separately Priced. Data Deliverables for Base Year. Contract Data Requirements List (CDRL) in				

	accordance with DD Form 1423. See Section B Note 4. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
8050	Not Separately Priced. Base Year (Surge Option) - Data Deliverables for Base Period. Contract Data Requirements List (CDRL) in accordance with DD Form 1423. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 8100	Not Separately Priced. Data Deliverables for Option Year 1 (OY1). Contract Data Requirements List (CDRL) in accordance with DD Form 1423. See Section B Note 4. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 8150	Not Separately Priced. Option Year One (OY1) (Surge Option) - Data Deliverables for Option Year One. Contract Data Requirements List (CDRL) in accordance with DD Form 1423. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 8200	Not Separately Priced. Data Deliverables for Option Year Two (OY2). Contract Data Requirements List (CDRL) in accordance with DD Form 1423. See Section B Note 4. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 8250	Not Separately Priced. Option Year Two (OY2) (Surge Option) - Data Deliverables for Option Year Two. Contract Data Requirements List (CDRL) in accordance with DD Form 1423. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 8300	Not Separately Priced. Data Deliverables for Option Year Three (OY3). Contract Data Requirements List (CDRL) in accordance with DD Form 1423. See Section B Note 4. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 8350	Not Separately Priced. Option Year Three (OY3) (Surge Option) - Data Deliverables for Option Year Three. Contract Data Requirements List (CDRL) in accordance with DD Form 1423. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
Option Line Item 8400	Not Separately Priced. Data Deliverables for Option Year Four (OY4). Contract Data Requirements List (CDRL) in accordance with DD Form 1423. See Section B Note 4. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
	Not Separately Priced. Option Year Four (OY4)				

Option Line Item 8450	(Surge Option) - Data Deliverables for Option Year Four. Contract Data Requirements List (CDRL) in accordance with DD Form 1423. Pricing Arrangement: Cost Plus Fixed Fee	1	Lot		
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Additional Regulation or Supplemental Clauses Incorporated by Full Text**B-215-H001 MAXIMUM RATES****(Oct 2018)**

(a) Maximum Pass Through Rates - Applicable to all Task Orders Types. The pass through rate is defined as the cumulative amount of the two elements listed below divided by the price paid to the subcontractor or the vendor:

- (1) any and all prime contractor indirect costs including, but not limited to: overhead, material handling charges, G&A, burdens and mark-ups; and
- (2) any and all prime contractor profit or fee*

*For purposes of this contract, "fee" means "target fee" in cost-plus-incentive-fee type contracts, "base fee" in cost-plus-award-fee type contracts, or "fixed fee" in cost-plus-fixed-fee type contracts.

(b) The Contractor agrees that the maximum pass-through rate that shall be charged against any non-ODC CLIN where labor is proposed under this contract shall not exceed **8%**. For purposes of the maximum pass-through, any effort provided by a division, subsidiary or any other entity of the prime contractor shall not be considered subcontracted effort and all fee/profit must be provided at the prime level subject to the limitations specified in this contract.

(c) Maximum Profit/Fee Rate - Applicable to Cost Plus Fixed Fee CLINs Only. Contractor compliance with the maximum fee rate on CPFF CLINs is applicable at the time of task order award and is based on the ratio of fixed fee to the estimated cost. A proposed fee at the task order level that is higher than the maximum fee rate stated in the offeror's base contract shall render the contractor's proposal unacceptable. The Contractor agrees that the maximum fixed fee rate shall not exceed **8%**. Fee becomes a fixed dollar amount at the time of task order award and is subject to the provisions of the Level of Effort clause of the task order. The maximum fee rate being proposed at the task order level by the prime contractor shall flow down to all subcontractors/consultants included as part of your (the Prime) proposal.

(d) Other Direct Costs and Travel. No fee is allowed on Other Direct Costs or Travel. Indirect cost elements such as G&A and material handling may be applied to ODCs but may not include fee.

(End of text)**B-216-H006 FEE TABLE (NAVSEA) (MAR2019)****(Mar 2019)**

Labor CLIN	Labor Hours	Cost Per Hour*	Fee Rate Per Hour*	Loaded Hourly Rate
6000	138,720			
6050	27,744			
6100	138,720			
6150	27,744			
6200	138,720			
6250	27,744			
6300	138,720			
6350	27,744			

6400	149,088			
6450	29,818			

*The offeror shall divide the proposed fee for each CLIN by the quantity of labor hours indicated to complete the table. Fee is calculated based on cost less FCCOM; if FCCOM is proposed, necessary columns may be added.

In the event of any inconsistency between the above table and the CLIN pricing, the CLIN pricing shall take precedence.

(End of Text)

B-231-H001 TRAVEL COSTS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Except as otherwise provided herein, the Contractor shall be reimbursed for its actual travel costs in accordance with FAR 31.205-46. The travel costs to be reimbursed shall be those costs for which the Contractor has maintained appropriate documentation and which have been determined to be allowable, allocable, and reasonable by the Procuring Contracting Officer, Administrative Contracting Officer, or their duly authorized representative.

(b) Reimbursable travel costs include only that travel performed from the Contractor's facility to the worksite, in and around the worksite, and from the worksite to the Contractor's facility.

(c) Relocation costs and travel costs incidental to relocation are allowable to the extent provided in FAR 31.205-35; however, Procuring Contracting Officer approval shall be required prior to incurring relocation expenses and travel costs incidental to relocation.

(d) The Contractor shall not be reimbursed for the following daily local travel costs:

- (i) travel at U.S. Military Installations where Government transportation is available,
- (ii) travel performed for personal convenience/errands, including commuting to and from work, and
- (iii) travel costs incurred in the replacement of personnel when such replacement is accomplished for the Contractor's or employee's convenience.

(End of Text)

B-232-H006 LIMITATION OF COST OR LIMITATION OF FUNDS CLARIFICATION

(Oct 2018)

The clause entitled "Limitation of Cost" (FAR 52.232-20) or "Limitation of Funds" (FAR 52.232-22), as appropriate, shall apply separately and independently to each separately identified estimated cost.

(End of Text)

B-232-H005 PAYMENTS OF FEE(S) (LEVEL OF EFFORT)--ALTERNATE I

(Oct 2018)

(a) For purposes of this contract, "fee" means "target fee" in cost-plus-incentive-fee type contracts, "base fee" in cost-plus-award-fee type contracts, or "fixed fee" in cost-plus-fixed-fee type contracts.

(b) The Government shall make payments to the Contractor, subject to and per the clause in this contract entitled "Fixed Fee" (FAR 52.216-8) or "Incentive Fee", (FAR 52.216-10), as applicable. Such payments shall be submitted by and payable to the Contractor pursuant to the clause of this contract entitled "Allowable Cost and Payment" (FAR 52.216-7), subject to the withholding terms and conditions of the "Fixed Fee" or "Incentive Fee" clause, as applicable. Fee paid per hour shall be based on total fee dollars divided by total hours to be provided. Total fee(s) paid to the Contractor shall not exceed the fee amount(s) set forth in this contract. In no event shall the Government be required to pay the Contractor any amount in excess of the funds obligated under this contract.

(End of Text)

Section C - Description/Specifications/Statement of Work

STATEMENT OF WORK

See Attachment J.8 Statement of Work for full text.

SECTION C - DESCRIPTION/SPECIFICATION/WORK STATEMENT

C.1 BACKGROUND

The Naval Surface Warfare Center Dahlgren Division (NSWCDD), Weapons Control and Integration Department (H), Missile Systems, Threat Engineering, and Weapons Effectiveness Division (H30) designs, develops, integrates and evaluates weapons systems. The Division performs weapons systems integration; electrical and mechanical analysis, design, and simulation; computational physics solutions, real-time kill assessments, land-based and waterfront integration testing, and system of systems engineering.

There are five (5) branches within the Missile Systems Integration, Threat Engineering, and Weapons Effectiveness Division: Target Vulnerability and System's Effectiveness (H31), Non-Kinetic Lethality (H32), Missile Systems Engineering & Integration (H33), Weapon Systems Engineering Branch (H34), Kinetic & Lethality (H35), and Threat Engineering (H36). Each branch is chartered with the research and development of new and innovative ways to advance the Warfighter, therefore eroding an adversary's power, influence, and will. To ensure the respective systems are integrated into the battlespace transparently; development efforts are cross-functional, and ever emergent, supporting both Naval and non-Naval end users.

C.2 SCOPE

This Statement of Work (SOW) sets forth the requirements for non-personal professional system engineering, mechanical engineering, electrical engineering, computer hardware and software engineering, design and technical direction agent engineering, configuration management (CM), logistics support services, mechanical and electrical engineering technician services, project management and project management support functions, accounting and business services, technical writing services, information assurance (IA) support services, and system administration services to the Missile Systems Integration and Weapons Effectiveness Division.

The Contractor shall support all technical and engineering stages of development, test, integration, and fielding of safe and innovative weapon control systems, advanced weapon systems support, missile systems, launcher system weapons effectiveness, simulation and testing, and mechanical and electrical technician support towards assembly and integration. Other duties indirectly supporting these efforts include providing business operational and financial reporting support, writing technical documentation, maintaining technical databases, editorial support of technical publications, configuration management, IA, and system administration. Specific programs or projects to be supported under this Task Order may require tasks to be completed under one or more of these areas. Support under this Task Order shall be provided for both United States (US) and US provided Foreign Military Sales (FMS) systems.

This is a Task Order for the provision of services by the Contractor. In accordance with (IAW) law and policy and with the terms and conditions of this Task Order, Contractor personnel shall perform as required by this SOW, and such work shall include working in cooperation and collaboration with Government personnel. Performance of this Task Order work shall require the Contractor to access and use Government owned data such as software, documentation, technical data, process and report templates. Any and all software, documentation, and technical data generated from such access and use shall remain Government owned data. The Contractor's use of and access to Government owned data shall neither constitute nor create any Contractor rights in or license to such data; the only Contractor permissions to use and access the data shall be those necessarily required by the Contractor to perform the work herein. Rights in data constituting and contained in contract deliverables required by the Contract Data Requirements List (CDRL) shall be governed by the appropriate contract clauses.

C.2.1 APPLICABLE DOCUMENTS

The following documents are applicable to this SOW. The most current versions of these documents are accessible through the internet or will be provided to the Contractor upon request.

Other Department of Defense Specifications/Standards/Other Applicable Documents may become applicable throughout the life of the Task Order and may be added to the Task Order via modification.

The Contractor shall ensure compliance with the most current versions of these documents throughout the life of the Task Order:

Number	Document Name
DOD 8570.01-M	Information Assurance Workforce Improvement Program
SAE AS5553	SAE Aerospace Standard 5553
NISPOM - 32 Code of Federal Regulation Part 117	National Industrial Security Program Operating Manual (NISPOM)
NSWCDDINST 5510.4B	NSWCDD Command Security Manual
SEAD-3	Security Executive Agent Directive 3 - Reporting Requirements for Personnel with Access to Classified Information or Who Hold a Sensitive Position
SEAD-3 Implementation Memo	Implementation of Security Executive Agent Directive 3, Reporting Requirements for Personnel with Access to Classified Information or Who Hold a Sensitive Position
DODI 5200.48	Controlled Unclassified Information
SECNAVINST 5210.8F	Department of Navy Records Management Program
NSWCDDINST 5100.1F	Occupational Safety and Health Program
NAVADMIN 216/15	Cyber Hygiene Authorization to use Personal Wearable Fitness Devices
NAVSEA S0420-AA-RAD-010 - REV 2A	Radiological Affairs Support Program (RASP) Manual
DODI 8510.01	Risk Management Framework for DOD Systems
CJCSI 6211.02D	Defense Information Systems Network (DISN) Responsibilities
DODM 1000.13	Department of Defense Identification (ID) Cards
NAVSEAINST 4200.19 (series)	Planning, Use and Control of Services Contracting
COMUSFLTFORCOM/ COMPACFLT 6320.3B	Medical Screening for U.S. Government Civilian Employees, Contractor Employees, Guests and Visitors Prior to Embarking Fleet Units
MIL-HDBK-61B	Configuration Management Guidance
MIL-HDBK-454C	General Guidelines for Electronic Equipment

MIL-D-23140D	Drawings, Installation Control, for Electronic Equipment
MIL-STD-31000B	Technical Data Packages

C.3 REQUIREMENTS

C.3.1 SYSTEMS ENGINEERING REQUIREMENTS AND PLANNING SUPPORT

C.3.1.1 The Contractor shall provide subject matter expertise and recommendations to user, sponsor, and peer reviews, working groups, design reviews (Preliminary Design Reviews, Critical Design Reviews), Integrated Product Teams (IPTs), and technical interchange meetings. (CDRL A002)

C.3.1.2 The Contractor shall identify a range of technically feasible engineering approaches or solutions to meet operational requirements, cost constraints, program or project timelines during engineering solution concept generation or refinement. (CDRL A002)

C.3.1.3 The Contractor shall perform feasibility analyses of Government or other vendor identified engineering approaches, solutions, or designs. (CDRL A002)

C.3.1.4 The Contractor shall design, develop, generate, or provide subject matter expertise into: Analysis of Alternatives; tradeoff assessments; studies of new systems or technologies; developmental schedules; or cost estimates of the engineering solutions. (CDRL A002)

C.3.1.5 The Contractor shall design and develop system, subsystem, or component model, or architecture, capturing operational context and envisioned concepts. (CDRL A003)

C.3.1.6 The Contractor shall develop and document operational, functional, and interoperability requirements in specifications. (CDRL A002, A003)

C.3.1.7 The Contractor shall develop and document the system, subsystem, or component boundaries and interfaces. (CDRL A002, A004)

C.3.1.8 The Contractor shall develop, refine, or provide subject matter expertise into system engineering plans for maritime, launcher, missile, weapon, or weapon control systems. (CDRL A003, A002)

C.3.1.9 The Contractor shall develop, or provide subject matter expertise into strategic plans for maritime, launcher, missile, weapon, or weapon control systems. (CDRL A003, A002)

C.3.1.10 The Contractor shall provide subject matter expertise and recommendations to the selection of system, subsystem, or component solutions considering operational needs, system requirements, cost, schedule, test and evaluation strategy, and technology or operational integration risks. (CDRL A003, A002)

C.3.1.11 The Contractor shall develop or provide subject matter expertise into operational documents and plans. (CDRL A003, A002)

C.3.1.12 The Contractor shall develop and document reliability, availability, and maintainability analyses or requirements. (CDRL A003)

C.3.1.13 The Contractor shall develop detailed system engineering cost estimates to support system, subsystem, or component materiel solution decisions. (CDRL A003)

C.3.1.14 The Contractor shall develop and generate system or force level integration plans. (CDRL A003)

C.3.1.15 The Contractor shall perform requirements assessments and analysis; develop or refine lower-level requirements; analyze or refine system architecture; develop system behavioral modeling; perform functional analyses or functional flows; document systems baselines; and perform system performance interface and interoperability analyses. (CDRL A002, A002)

C.3.2 SYSTEMS ENGINEERING DESIGN SUPPORT

C.3.2.1 The Contractor shall develop or refine designs for systems, subsystems, components, and interfaces for new or existing maritime, launcher, missile, weapons, weapons control, and weapons effectiveness systems. (CDRL A003, A002, A005)

C.3.2.2 For hardware designs, the Contractor shall generate design models; drawings; Technical Data Packages (TDPs); specifications; interface documents; and the appropriate technical and integration data, analyses, and documentation to support engineering decisions. The Contractor shall review or prepare Computer-Aided Design (CAD) system electronic or mechanical drawings and ensure drawings are clear and technically accurate based upon design specification. (CDRL A002, A004, A005, A00T)

C.3.2.3 For software designs, the Contractor shall generate design data; specifications; interface control documents; software description documents; software version description documents; code; and the appropriate technical and integration data, analyses, and documentation to support engineering decisions. The Contractor shall derive and implement lower-level requirements from system and software requirements specifications. (CDRL A002, A006, A007)

C.3.2.4 The Contractor shall refine or finalize hardware and software designs for maritime, launcher, missile, weapons, weapons control, and weapons effectiveness systems, subsystems, and components to document the product baseline for production or resolve deficiencies discovered during manufacture or end-use if needed. The Contractor shall provide subject matter expertise and recommendations on system, subsystem, and component readiness to begin production and/or deployment. The Contractor shall assist in the setup of hardware and software labs onsite at Dahlgren. (CDRL A002)

C.3.2.5 The Contractor shall develop assigned portions of various engineering studies, plans, and related documents to include Weapon System Explosives Safety Review Board (WSESRB) and Software System Safety Technical Review Panel (SSSTRP) data packages and presentations. (CDRL A003, A00A, A00C)

C.3.2.6 The Contractor shall provide weapon system subject matter expertise to conduct reverse engineering design analyses to build representations of threat kinematics, signatures, trajectories and other system performance elements for the purpose of developing simulations for integration with weapons development test beds. (CDRL A002)

C.3.3 ENGINEERING LIFE CYCLE SUPPORT

C.3.3.1 The Contractor shall conduct system, subsystem, or component performance, as well as effectiveness improvement studies. (CDRL A002, A004)

C.3.3.2 The Contractor shall perform obsolescence analyses with recommendations for replacement components or systems. (CDRL A002)

C.3.3.3 The Contractor shall provide subject matter expertise to investigate system, subsystem, or component level failures during design, integration, test, manufacture, or end-use and provide recommendations for corrective actions. Testing and Validation shall be performed on Government agency or other organization designs, but shall not be performed on the Contractor's own designs. (CDRL A002)

C.3.3.4 The Contractor shall analyze deficiencies discovered during testing, outlined in production reports, maintenance reports, or user feedback trouble reports, and provide recommendations on corrective actions. (CDRL A002)

C.3.3.5 The Contractor shall perform trade studies or analyze production processes to: determine the most cost-effective fabrication or manufacturing process; resolve a failure observed during testing attributed to manufacture; or reduce manufacture process technology risk. (CDRL A002)

C.3.3.6 The Contractor shall develop and generate assembly procedures; and analyze approaches or generate plans to validate fabrication and manufacturing processes. (CDRL A003)

C.3.3.7 The Contractor shall develop and generate operator manuals, maintenance manuals, and installation and removal procedures. (CDRL A003, A002, A008)

C.3.3.8 The Contractor shall develop and generate demilitarization plans. (CDRL A003)

C.3.3.9 The Contractor shall provide subject matter expertise into, develop new, or modify existing Production Automated Test Equipment (ATE) hardware and software that can successfully run Factory Acceptance Tests (FAT) for United States Navy (USN) tactical electronics hardware.

C.3.4 ENGINEERING STUDIES AND ANALYSES

C.3.4.1 The Contractor shall perform vulnerability analyses and develop recommendations for mitigation. (CDRL A003)

C.3.4.2 The Contractor shall analyze foreign weapons systems for application and use or for threat studies. (CDRL A003)

C.3.4.3 The Contractor shall develop or provide subject matter expertise into system threat studies or analyses. (CDRL A003, A002)

C.3.4.4 The Contractor shall develop, document, or provide subject matter expertise into Joint Technical Coordinating Group for Munitions Effectiveness (JTCG/ME) documents or analyses. (CDRL A003, A002)

C.3.4.5 The Contractor shall provide analysis, design, implementation, verification and documentation for new and existing shipboard combat weapons delivery systems. This shall include: shipboard topside surveys; analyses of ships' plans and drawings; calculation of safe standoff angles from ships' structures for missiles; preparation of weapons checkout forms; coordination with local Governmental and Contractor support personnel, updating associated documentation; and design of pointing and firing cutout zones (both new and revisions to existing), including verification of weapons' performance for development of cut-out zones. (CDRL A002)

C.3.5 MODELING AND SIMULATION SUPPORT

C.3.5.1 The Contractor shall perform and document computer solid layout modeling and simulation. (CDRL A003)

C.3.5.2 The Contractor shall perform and document static and dynamic structural modeling and simulation. (CDRL A003)

C.3.5.3 The Contractor shall perform and document thermal modeling and simulation. (CDRL A003)

C.3.5.4 The Contractor shall perform and document blast, lethality, and effectiveness modeling and simulation. (CDRL A003)

C.3.5.5 The Contractor shall develop, verify, validate, update, and document models and simulations to support weapons effectiveness analyses, including any associated graphical user interface. (CDRL A003)

C.3.5.6 The Contractor shall develop, verify, validate, maintain/update, and document models and simulations for threat missile systems and enemy surface combatant combat management systems to support blue force weapons efficacy assessments. (CDRL A003)

C.3.5.7 The Contractor shall document and provide source code for all models and simulations, as appropriate. (CDRL A002, A006, A007)

C.3.6 DESIGN, PROVING, TEST AND VERIFICATION ANALYSIS SUPPORT

C.3.6.1 The Contractor shall develop and generate system or force level test or exercise plans, test or exercise reports, as well as lower-level test plans and reports. (CDRL A002, A003, A009)

C.3.6.2 The Contractor shall develop and generate Test and Evaluation Master Plans (TEMPs), as well as lower-level test and evaluation plans. (CDRL A003, A00A)

C.3.6.3 The Contractor shall develop test objectives, plans, and reports involving the design and analysis of test items and test fixtures. The emphasis of this work shall be associated with bench level, system integration lab, computer lab or off-site testing, not NSWCDD Range testing. (CDRL A003, A002, A00A)

C.3.6.4 The Contractor shall perform requirements analyses including the review of Design Agent requirements traceability documentation to ensure the traceability of hardware and software requirements to test events and test procedures. The Contractor shall develop recommended supplemental documentation for functional, threat, and cost analysis. (CDRL A003)

C.3.6.5 The Contractor shall perform software code review or analyses, such as static or dynamic code analysis in support of design engineering and perform software testing such as Independent Verification and Validation (IV&V). The emphasis of this work shall be on design verification and not system safety analyses. (CDRL A003, A00B)

C.3.6.6 The Contractor shall perform tests and analyses to verify that the system, subsystem, or component meets the functional, allocated, or product baseline or satisfies other requirements documentation. The Contractor shall provide subject matter expertise into the reduction of system, subsystem, and component-level risk. (CDRL A003, A00A)

C.3.6.7 The Contractor shall analyze test and evaluation data and perform trade off or analysis of alternatives assessments. The Contractor shall provide subject matter expertise and recommendations on reduction of design or technology risk and assess compliance with system requirements. (CDRL A003)

C.3.6.8 The Contractor shall participate in off-site system, subsystem, or component testing by performing test planning and set up, execution, data collection, test data analysis functions, and development of problem reports discovered during testing. (CDRL A002, A008, A00D)

C.3.6.9 The Contractor shall prepare or give recommendations to test documentation such as test requirements, test plans, test reports, test schedules, Mission Control Panel briefings, Mission Readiness Reviews, Test Readiness Reviews, Standard Operating Procedures (SOP), countdown checklists, safety requirements and presentations to safety review. (CDRL A003, A009, A00B)

C.3.6.10 The Contractor shall provide system software testing and analysis of software-based weapon systems. The Contractor shall develop test procedures from the documented requirements and software trouble reports; perform unit, module, end-to-end, or endurance testing including the development of test procedures and test execution; perform white and black box testing; participate in or conduct independent verification and validation testing; prepare test reports and conduct analysis of test results to develop recommendations for mitigation or correction. (CDRL A00B)

C.3.7 DESIGN IMPLEMENTATION AND INTEGRATION SUPPORT

C.3.7.1 The Contractor shall fabricate and assemble systems, subsystems, components, and interfaces for new or existing maritime, launcher, missile, weapons, weapons control, and weapons effectiveness systems based on design or requirements documentation.

C.3.7.2 The Contractor shall integrate systems, subsystems, components, and interfaces for new or existing maritime, launchers, missiles, weapons, weapons control, and weapons effectiveness systems based on design or requirements documentation.

C.3.7.3 The Contractor shall develop and generate integration, installation, or change documentation to document as built configurations. (CDRL A002)

C.3.7.4 The Contractor shall fabricate, assemble, install, solder, and connect components, sub-assemblies, and systems (including cables, wiring harnesses, cable assemblies, and circuit card assemblies).

C.3.7.5 The Contractor shall maintain, repair, troubleshoot, modify and install various types of electronic equipment and related devices such as electronic transmitting and receiving equipment (e.g., radar, radio, display devices, telecommunication, sonar, and navigational aids); tactical computers, servers, and terminals; industrial, measuring, and controlling equipment. (CDRL A00R)

C.3.7.6 The Contractor shall assemble and maintain mechanical and electrical systems in support of rapid prototyping, initial hardware (mechanical or electrical) assessment, prototype evaluation, hardware assembly for initial outfitting, and system operations support. (CDRL A00R)

C.3.7.7 The Contractor shall fabricate, install, maintain, or troubleshoot mechanical, electrical, or software sub-assemblies and systems during engineering events that includes weapons system platform installations, temporary system platform installations in support of system demonstrations, and system test events both on and off-site. (CDRL A00R)

C.3.7.8 The Contractor shall provide software integration expertise to facilitate integration of threat engineering models and simulations with enterprise test beds for blue force weapons efficacy assessments. (CDRL A003)

C.3.8 LOGISTICS SUPPORT

C.3.8.1 The Contractor shall provide Integrated Logistic Support (ILS) including, providing technical inputs to and maintaining provisioning and preparation of program documentation. (CDRL A003, A002 A00Q)

C.3.9 CONFIGURATION MANAGEMENT SUPPORT

C.3.9.1 The Contractor shall provide configuration management (CM) support performed at the program, project, system, and subsystem levels.

C.3.9.2 The Contractor shall attend and provide technical subject matter expertise to Configuration Control Boards (CCBs) to evaluate proposed changes for system, subsystem, or component level impact or other associated system applicability. (CDRL A003, A00E, A00F)

C.3.9.3 The Contractor shall generate or maintain formal Configuration Management Plans and related documentation. (CDRL A003, A00E, A00F)

C.3.9.4 The Contractor shall develop and implement CM tracking processes, including the use of tracking tools such as the Dynamic Object Oriented Requirement System (DOORS). The Contractor shall track configuration metrics. (CDRL A003, A00D, A00F)

C.3.9.5 The Contractor shall establish program or project-level CM technical data repositories tracking engineering change proposals (ECPs) and other configuration item data. The Contractor shall maintain and operate web-based CM server repositories. (CDRL A006, A00D, A00F)

C.3.9.6 The Contractor shall generate or review configuration item change documentation such as Class I and Class II ECPs, Ship Change Documents, Requests for Deviations (RFDs), Request for Waivers (RFWs), Specification Change Notices (SCNs), and Notice of Revisions (NORs). (CDRL A00G, A00H, A00J, A00K, A00L)

C.3.9.7 The Contractors shall generate, maintain, or revise drawings associated with components, sub-assemblies, and systems. The Contractor shall participate in the CM process by maintaining controlled or versioned documentation in accordance with the program or project Configuration Management plan. The Contractor shall interface with the CM board or program processes by participating in drawing or program reviews to baseline or revise documentation. (CDRL A00T)

C.3.10 PROGRAM AND FINANCIAL MANAGEMENT SUPPORT

C.3.10.1 The Contractor shall organize and facilitate meetings by scheduling conference rooms at the Government and Contractor facility, generating agendas and invitations, disseminating invitations, and printing and binding presentation materials. The Contractor shall perform classified material data management, which includes receiving, tracking, and distribution of classified materials. The Contractor shall provide coordination of and provide escort for visitors, including international visitors. (CDRL A00C)

C.3.10.2 The Contractor shall attend meetings to generate attendee lists, meeting minutes, and Action Items (AIs). The Contractor shall track meeting action items and maintain status and records reflecting both open and closed action items. The Contractor shall make real-time edits to documentation during meetings. The Contractor shall contact open action item Points of Contact (POCs) for status updates and document any updates prior to recurring meetings. (CDRL A00P, A00M)

C.3.10.3 The Contractor shall generate, update, and maintain program, project, or budget estimates, tracking budget execution by appropriation and funding type, addressing budget issues, recommending responses to budget data calls tracking forecast and trends of program resources and funding. The Contractor shall attend program reviews to provide financial status, budget requests, and funding projections. The Contractor shall utilize NSWCDD financial systems to track budget status. The Contractor shall execute what-if analysis for scope, schedule, and budget changes.

C.3.10.4 The Contractor shall provide project Earned Value Management (EVM) support including coordinating, participating, and assisting in Integrated Baseline Reviews (IBRs); calculating and tracking earned value metrics; tracking EVM execution; and working with the Program Financial Managers to define and enter tasking into Government systems. (CDRL A00N)

C.3.10.5 The Contractor shall coordinate Government inputs, generate and deliver program weekly reports, monthly reports, program review presentations, and program status updates or highlights. The Contractor shall generate, update and maintain project action items relative to IPTs or Working Groups (WGs). The Contractor shall develop meeting minutes assigned by the designated IPT or WG. (CDRL A00C, A00M, A00P)

C.3.10.6 The Contractor shall provide support for requirement gathering from engineers, development of documentation for Government review and submission, entering data into systems, tracking procurements, and receiving and organizing information for delivery of micro-purchase procurements. The Contractor is not authorized to receive any items that require NSWCDD plant accounting.

C.3.10.7 The Contractor shall generate, update and maintain Work Breakdown Structures (WBS). (CDRL A00N)

C.3.10.8 The Contractor shall generate, update, and maintain POC listings such as IPT, WGs, inventories, and procurements in process, procurement actions, and organizational matrices with locations. (CDRL A002, A00C)

C.3.10.9 The Contractor shall generate, update, and maintain Integrated Master Schedules (IMSs), identifying resources, critical path items, addressing schedule issues, and synchronizing the IMS with other program IMSs. (CDRL A00C)

C.3.11 TECHNICAL WRITING AND EDITING SUPPORT

C.3.11.1 The Contractor shall perform direct writing to engineers, scientists, and other personnel who author technical and administrative publications. Configuration control shall be maintained at all stages of document generation and maintenance. (CDRL A002, A00C)

C.3.11.2 The Contractor shall perform technical editing of existing Government documents and presentations to ensure technical consistency, format consistency, and proper grammar. The Contractor shall maintain configuration control at all stages of document generation and maintenance. (CDRL A002)

C.3.11.3 The Contractor shall prepare the publication of documents as directed by the Technical Point of Contact (TPOC) through the NSWCDD public document process. The Contractor shall submit and track the document through the approval process.

C.3.12 DATABASE SUPPORT

C.3.12.1 The Contractor shall organize program, project, and IPT level documentation into repositories, including web-based repositories, and maintain the repository to facilitate documentation storage and retrieval. The Contractor shall convert program documents, weapons data and records to include video or microfiche into digital format for access via the Internet or to distribute and archive using electronic means including CDs and DVDs. (CDRL A00T)

C.3.12.2 The Contractor shall maintain current databases reflecting Data Center holdings to facilitate literature searches and access by others. These databases include all types of gun and electric weapon systems and weapon control and integration documentation, including Design Agent-generated documentation, deliverables from this contract, as well as data received from other sources. The Contractor shall also perform an outreach function to ensure holdings represent current versions. For all databases developed or maintained, the Contractor shall prepare or modify, as necessary, the following documentation: database design and structure and User instructions. The Contractor shall provide training to the Government in the use of these databases. (CDRL A00C)

C.3.13 CYBERSECURITY

C.3.13.1 The Contractor shall support the research of cybersecurity products and assess the impact of implementation of those products into the cybersecurity framework of H30 programs and products.

C.3.13.2 The Contractor shall provide IA support for the development and tactical hardware suites of equipment for H30 programs and products, including laboratory/land-based systems and operational afloat systems. This support includes performance, monitoring, and management of IA duties to include Information Assurance Vulnerability Management compliance (IAVMc), system patching, System Test and Evaluation (ST&E), user management, log management, and Assessment & Authorization (A&A) documentation preparation and review.

C.3.13.3 The Contractor shall utilize Department of Defense (DoD) approved monitoring and scanning tools in support of system vulnerability management and reporting. This includes vulnerability status tracking and reporting in DoD systems.

C.3.13.4 The Contractor shall serve as the Certifying Agent Representative (CAR) for H30 programs and systems.

C.3.13.5 The Contractor shall assist in the preparation of the accreditation documentation for submission to the NSWCDD Information Systems Security Manager (ISSM) or other program specific Designated Approving Authority (DAA), utilizing the appropriate DoD Accreditation standards, policies, and directives.

C.3.13.6 The Contractor shall perform activities in compliance with current guidance for administrators and users relating to the policies, procedures and controls required by Navy standards for A&A processes and shall support and interface with local Information Assurance Officer (IAO) to ensure compliance with current Government IA regulations.

C.3.13.7 The Contractor shall observe, test, and monitor changes in information systems that might affect the security posture. The Contractor shall report to the assigned Information Systems Security Officer (ISSO) and the ISSM on Cybersecurity issues affecting Information Technology (IT) systems and software they are assigned to support.

C.3.13.8 The Contractor shall ensure the Cyber-security related requirements are identified and addressed for the IT systems.

C.3.13.9 The Contractor shall verify the System under test is in compliance with IA controls and weapon system security requirements.

C.3.13.10 The Contractor shall develop security penetration test plans (CDRL A00V), security test specifications, security test procedures (CDRL A00W), and security test reports (CDRL A00X).

C.3.13.11 The Contractor shall provide system administration support to maintain, develop, and operate the hardware and networks suites of equipment utilized in the development of software products. This support includes the establishment and maintenance of operating and network operating system development environments, and providing system and network design, implementation, maintenance, and network support. Additionally, the Contractor shall support Cybersecurity related administration tasks, including system remediation, configuration, and development of A&A documentation.

C.3.13.12 The Contractor shall provide system initialization, deployment, accreditation and system administration functions for all Unclassified & Classified development servers and workstations to include the following: performing user accounts management; performing Local Area Network (LAN) and application management support including switches, routers, firewalls, and loggers; performing system backup management and restore systems in the event of system or disk crash; performing system patching; supporting Navy standards for A&A processes and procedures (e.g. Risk Management Framework (RMF), and Platform Information Technology (PIT)); implementing and validating Security Technical Implementation Guidelines (STIG) requirements, installation checklists, and other security process requirements; providing support for web-based tools and services.

C.3.13.13 The Contractor shall develop and follow a Software Development Plan (SDP) for all computer software to be developed or maintained under this effort. (CDRL A010)

C.3.14 LAB & FACILITIES SUPPORT

C.3.14.1 The Contractor shall provide facilities support including installation and maintenance of hardware and software, licenses, patches; performance of system administration functions including network configurations and connectivity.

C.3.14.2 The Contractor shall assist the Government with the design, layout, creation, updates, and repair of developmental and tactical environments, networks, and IT related environments to include classified and unclassified computers and equipment.

C.3.14.3 The Contractor shall maintain, repair, troubleshoot, modify, and install various types of electronic equipment and related devices such as electronic transmitting and receiving equipment (e.g., radar, radio, display devices, telecommunication, and Global Positioning Systems (GPS) navigational aids); tactical computers, servers, and terminals; industrial, measuring, sensory, and controlling equipment.

C.3.14.4 The Contractor shall transport, ship, fabricate, assemble, repair, maintain, and install systems, subsystems, components, cables, electrical enclosures and hardware interfaces for H30 supported systems and products. Installation support shall include local and remote land-based sites, and shipboard locations.

C.3.14.5 The Contractor shall prepare excess or obsolete systems and equipment for proper Government disposal.

C.3.14.6 The Contractor shall track the inventory spare and consumable supplies of IT equipment.

C.3.14.7 The Contractor shall provide support for the Facilities Helpdesk to include the tracking of maintenance contracts, data entry, and trouble report processing.

C.3.14.8 The Contractor shall develop, maintain, and update facility and security drawings for related facilities documentation utilizing a computer-based tool (e.g. Visio, PowerPoint, etc.). The drawings shall be clear and technically accurate electrical, network, and mechanical drawings based on design tolerances and specifications (CDRL A012).

C.3.14.9 The Contractor shall provide an analysis of the electrical, mechanical, network, and space requirements for the introduction of new equipment, reconfiguration of existing equipment, or proposed changes in the usage of space.

C.4 Task Order Management

The Contractor shall provide sufficient supervision to ensure all personnel work instructions and schedules originate with the Contractor rather than with the Government technical office. This supervision shall ensure that the Contractor's personnel are not assigned work instructions and schedules outside this SOW. Any perceived conflicts with the SOW shall be directed to the Contracting Officer and Contracting Officer's Representative (COR).

C.4.1 Progress Report

The Contractor shall submit a Contracting Officer's Management Report. (CDRL A001) The Contractor shall maintain and provide a list of all personnel assigned to the Task Order. The Contractor shall provide copies of invoices received from Sub-contractors and consultants as well as

evidence of its review to ensure that all invoiced costs represent services that have been performed and deliverable items. In accordance with G-232-H005 and FAR 52.216-7, the Contractor shall provide the COR supporting documentation, including receipts, for all travel and material purchases with each invoice submission.

C.4.2 In Progress Reviews (IPRs)

The Contractor shall participate in both formal and informal IPRs of work performed. The Government will schedule formal reviews in Government spaces. At the time the review is scheduled, the Government shall communicate the specific purpose of the review. The Contractor shall, within 60 days of the Task Order award date, conduct an initial IPR and follow an agenda agreed to by the Task Order's COR. Subsequent IPRs shall be held approximately every 90 days thereafter unless waived by the Government. (CDRL A00C)

C.4.3 Task Prioritization Meetings

The Contractor shall participate in periodic Task Prioritization Meetings with the COR and Subject Matter Experts (SMEs). The purpose of these meetings is to convey the Government's technical program schedules and priorities and to identify corresponding task priorities for this order. The Contractor shall document meeting minutes of the meetings. (CDRL A00M, A00P)

C.4.4 Telework

In accordance with H-216-H002 LEVEL OF EFFORT--ALTERNATE I (NAVSEA) teleworking at an alternative worksite is permitted. Telework is also dependent upon the type of work being performed.

C.4.13.4.1 In accordance with SEA 5252.216-9122 Alt 1 - Level of Effort Clause Alternate I (May 2010) and concurrence from the Government SME and COR, teleworking at an alternative worksite is permitted with no more than 20% of the work being performed at an alternative worksite. Telework is also dependent upon the type of work being performed.

C.4.13.4.2 Telework is permitted subject to Government requirements. In the event of telework, the Contractor shall track all Government Furnished Property, listing personnel, asset tag numbers and serial numbers for all NMCI computer equipment in the Contractor's possession for telework. All equipment shall be returned to the Government by the end of the Task Order or when equipment is no longer in use, whichever comes first.

C.4.5 Project Conclusion Transition-Out Plan

(a) Within thirty (30) days of the beginning of the final period of Task Order performance, the Contractor shall develop and submit a transition-out plan that assumes re-compete of the Task Order requirements resulting in award, and transition, to another Contractor. The transition-out plan shall address:

- (1) Minimum duration of transition
- (2) Staff requirements and their role in transition
- (3) Level of tasking to be performed and any impact it will have on transition
- (4) Knowledge transfer
- (5) Intellectual property transfer
- (6) Gantt schedule of transition
- (7) Formal handover (conclusion of transition) and Government acceptance.
- (8) List of any Government Furnished/Contractor Acquired Property

(b) The plan shall address the step-by-step transition of responsibility for support of the program's current operation without discontinuity of workflow or loss of integrity of the program's current operation. The plan shall establish interfaces for technical and Task Order administration. In addition, the plan shall identify any services, support, or other items that will be required from the Government to facilitate the transition (CDRL A00S).

C.4.6 Facility Location:

The Contractor's primary facility must be located within 60 miles of NSWCDD, Dahlgren, VA.

C.5 SKILLS AND TRAINING

C.5.1 The Contractor shall provide capable personnel with qualifications, experience levels, security clearances, and necessary licenses, certifications, and training required by Federal, State, and Local laws and regulations. Information assurance functions require certifications specified in Defense Federal Acquisition Regulation Supplement (DFARS) 252.239-7001 Information Assurance Contractor Training and Certification.

C.5.2 Per the requirements set forth in DOD 8570.01-M Information Assurance Workforce Improvement Program, as a condition of meeting requirements, personnel performing Information Assurance (IA) functions outlined in the manual will be tracked for compliance, designated in writing from the Local Command Authority as Cyberspace Workforce (CWF), shall already be in possession of an approved commercial certification for their environment at time of performance start, and shall satisfy both preparatory and sustaining DOD IA training and certification requirements as outlined in Chapters 2-5 of DOD 8570.01-M. Additionally, personnel with Privileged Access must sign acknowledging duties on a "Privileged Access Agreement", be able to maintain the appropriate investigation type, sign a System Authorization Access Request-Navy (SAAR-N) with "privileged" indicated, complete applicable Operating System/Computer Environment (OS/CE) training to Navy's standards, and maintain a valid commercial certification that meets outlined designations. Failure to maintain all requirements at the appropriate level, may result in the removal of elevated accesses and removed from tasks being performed. Non-privileged Information Assurance Workforce (IAWF) members may be removed from tasks being performed. In both situations accesses will be returned once the failure(s) are corrected.

C.5.3 Training necessary to ensure that personnel performing under this Task Order maintain the knowledge and skills to successfully perform the required functions is the responsibility of the Contractor. Training necessary to maintain professional certification is the responsibility of the Contractor. The Contractor shall provide training opportunities to maintain Contractor capabilities and/skills to coincide with changing technology environments. All costs for DOD 8570.01-M certification shall be borne by the Contractor for new employees on this Task Order.

C.5.4 Training on non-commercial and department-specific tools and procedures will be provided by the Government.

C.5.5 Notwithstanding the above, it is understood that the Government may require services requiring knowledge and skills of a newly emergent technology. The Contracting Officer may, on a case-by-case basis, authorize the expenditure of Government funds for the training of Contractor personnel. Advance approval is required. The Contractor is encouraged to suggest a cost-sharing arrangement that addresses registration, tuition, travel, and labor costs.

C.5.6 The Contractor shall complete all mandatory training as prescribed by the Government. These training requirements are accessed through Government web-based training (WBT), classroom training, or combination of both.

C.5.7 Mandatory Training Completion Log - The Contractor shall submit a CWF report (CDRL A00Z). The CWF report shall address required CWF training including annual continuous learning training requirements. The Contractor shall also submit Mandatory Training Completion Log (CDRL A00Y). The Mandatory Training Completion Log shall address all mandatory training completed as directed by the COR, as well as which contractor employees have created which training and a date the training was completed

C.6 OTHER DIRECT COSTS

During the performance of this Task Order the Contractor will have to travel and procure material and consumables to perform the tasking of the SOW.

C.6.1 Travel

The Contractor shall be required to travel in performance of this Task Order. The numbers of trips and types of personnel traveling shall be limited to the minimum required to accomplish work requirements and shall be requested of and authorized in advance by the COR in writing or by electronic email. All requests must show the appropriate Task Order number, the number of people traveling, the number of days for the trip, the reason for the travel, an estimated cost (with G&A separate), and any high cost or unusual costs expected. The Contractor is not authorized to perform any travel that is not in conjunction with this effort. All travel shall be conducted in accordance with Federal Acquisition Regulation (FAR) 31.205-46 Travel Costs. Locations will be determined by the Government and are subject to change.

Representative travel locations include:

Albuquerque, NM
Baltimore, MD
Colorado Springs, CO
Columbia, MD
San Diego, CA
Dam Neck, VA
Norfolk, VA
Manassas, VA
Crystal City, VA
Dahlgren, VA
Washington, DC
Aberdeen Proving Grounds, MD
Minneapolis, MN
NSWC Carderock, MD
NSWC Crane, IN
NSWC Port Hueneme, CA
NSWC Corona, CA
NSWC Panama City, FL
Fort Johnson, NY
Fort Walton Beach, FL
Eglin AFB
Everett, WA
Huntsville, AL
Joint Base Pearl Harbor Hickam, HI
Mobile, AL
Indianapolis, IN
Largo, FL
Los Angeles, CA
San Diego, CA
Marinette, WI
Mayport, FL
McLean, VA
Nashville, TN
Nellis AFB
Pacific Missile Range Facility Kauai, HI
Patuxent River, MD
Point Mugu, CA
Oak Ridge National Laboratory
Offutt AFB
Richardson, TX
Tucson, AZ
White Sands Missile Range Las Cruces, NM

Moorestown, NJ
Brussels, Belgium
Shrivenham, United Kingdom
Ephrata, PA
Key West, FL
Lake Forest, CA
Rota, Spain
Bahrain
Singapore
Guantanamo Bay, Cuba
Panama
Colombia
Croatia

The Contractor shall submit trip information in the Contracting Officer's Management Report following any travel under this effort. (CDRL A001)

C.6.2 Direct Charge of Materials

C.6.2.1 Materials and Equipment Costs

During the performance of this Task Order, it may be necessary for the Contractor to procure materials or equipment (hereafter referred "materials") to respond to the mission requirements listed in the Statement of Work (SOW). This Task Order is issued from a service contract and the procurement of materials of any kind that are not directly related to and necessary for contract performance may be determined to be unallowable costs pursuant to FAR Part 31. The term "material" includes supplies, parts, equipment, hardware, and Information Technology (IT) resources including hardware, services, and software. Any material provided by the Contractor is subject to the requirements of the FAR, DFARS, and the applicable Department of Navy regulations and instructions. Charges related to material costs may include general and administrative (G&A) expenses, but shall not include fee or profit.

C.6.2.2 Materials List

The materials and equipment contained in the following list are authorized for purchase once the Contractor has complied with approval requirements as stated in Sections C.6.2.3 and C.6.2.4 below:

Fasteners and miscellaneous hardware
Connectors and miscellaneous electrical hardware
Special tools and tooling (such as dial calipers, measurement gauges, torque wrenches, depth micrometers, etc.)
Prototype quantities of miscellaneous hardware and fixtures
Prototype quantities of miscellaneous electrical cabling and enclosures
Prototype quantities of circuit boards and electrical hardware
Incidental material or logistics costs (shipping/packaging) in direct support of SOW tasking and in quantities appropriate for prototype or R&D efforts
Specific IT tools that are required to support SOW tasking for particular project requirements
Test support consumables, equipment, and building materials
Transportation costs related to the movement of hardware

Materials not fitting the description listed in this Section may not be purchased and reimbursed as an Other Direct cost to this contract unless mutually agreed to by both the Government and the Contractor and subsequently added to the contract by Task Order Modification.

C.6.2.3 Requiring Approvals for ODCs

All purchases of materials, exceeding \$3,500 per individual purchase, and all Personal Protective Equipment (PPE), require COR approval prior to purchase. As well as approval by the COR, prior written approval from the Procuring Contracting Officer (PCO) shall be required for all purchases of materials under the following circumstances:

a) If the Contractor possesses an approved purchasing system, the following applies:

1) A purchase of materials in accordance with what is stated in Section C.6.2.2 above, that is greater than \$3,500 and less than or equal to \$10,000 per individual purchase may be executed with COR review and written approval. PCO approval is not required.

2) A purchase of materials in accordance with what is stated in Section C.6.2.2 above that exceeds \$10,000 per individual purchase may NOT be executed unless the COR reviews the proposed purchase and the Contract Specialist issues an electronic written PCO approval.

b) If the Contractor does not possess an approved purchasing system, the following applies:

1) A purchase of materials in accordance with what is stated in Section C.6.2.2 above that equals \$3,500 or less per individual purchase may be executed with COR review and written approval. PCO approval is not required.

2) A purchase of materials in accordance with what is stated in Section C.6.2.2 above that exceeds \$3,500 per individual purchase may NOT be executed unless the COR reviews the proposed purchase and the Contract Specialist issues an electronic written PCO approval.

c) Separate multiple purchases of amounts valued below those thresholds stated in this section shall not be submitted to circumvent the COR and PCO review and approval procedure. Splitting purchase requirements to defeat purchasing thresholds shall not be approved.

C.6.2.4 Procedure for Obtaining COR/PCO Approval

To obtain COR and/or PCO approval, the Contractor shall:

a.) Submit a written request for purchase of materials to the COR (email is acceptable). The COR shall review the request. If it is in accordance with the list above and requires PCO approval, the COR shall submit the request via the Contract Specialist to the PCO for review and approval.

b.) Minimum requirements for a written request for purchase are as follows:

1. Complete description of the material to be purchased
2. Quantity
3. Unit and Total Cost
4. Delivery/ Freight Charges
5. Any associated service charges such as assembly, configuration, packing, etc.
6. An explanation for the need for the material
7. List the competitive quotes received from potential suppliers
8. The basis for the selection of the selected supplier
9. Price reasonableness determination
10. If the procurement is sole sourced to a particular supplier or manufacturer, include the rationale for limiting the procurement to that supplier /manufacturer.

c.) Once the COR and/or PCO have reviewed the request, the Government shall notify the Contractor of the outcome. Issues or details may be discussed with the Contract Specialist acting on behalf of the PCO until a final Government determination is made as to whether to approve, modify, or reject the purchase.

C.6.2.5 Property Management System

The Contractor is required to possess and maintain an adequate property management system. The system must track all materials/ODCs associated with this Task Order. Upon completion of the Task Order Period of Performance, all material associated with this Task Order that were purchased by the Contractor and not depleted or previously delivered to the Government during the performance of this Task Order shall become the property of the Federal Government. The Contractor shall transfer all materials, not depleted or previously delivered to the Government, to the COR by way of a Material Inspection and Receiving Report (DD Form 250) in accordance with DFARS PGI 245.402-71.

C.6.2.6 Disposition of Material

Upon completion of the period of performance, all materials associated with this contract that were purchased by the Contractor and not depleted during the performance of the contract shall become the property of the Government. The Contractor shall transfer all materials not depleted to the COR. The Contractor's Monthly Progress Report shall include a complete list of all material purchased to date under the contract. The Contractor shall deliver all material (end items) to the Government through Building 125, Central Receiving with a DD1149. The DD1149 shall include the following:

- 1) Dollar Value
- 2) Purchase Request Number
- 3) Item Description
- 4) Serial Number
- 5) Model Number
- 6) Quantity
- 7) Task Order Number
- 8) Technical Point of Contact
- 9) Assigned Unique Serialized Identification Number

In addition, each deliverable shall have an IUID tag and the corresponding information uploaded into iRAPT (Invoicing, Receipt, Acceptance and Property Transfer).

C.6.2.7 Information Technology (IT) Resources

IT Resources shall not be purchased unless DOD and Navy purchasing procedures have been satisfied and approvals obtained. IT resources include personal computers (PC's), laptops, printers, software, servers, hubs, routers, phones, fax machines, and any related maintenance, telecommunications, training, or other support services. All IT Resource Other Direct Cost Purchases require COR and PCO approval regardless of the dollar value associated with the purchase.

C.6.2.8 General Purpose Business Expenses

The costs of general-purpose business expenses required for the conduct of normal business operations will not be considered allowable direct costs in the performance of the Task Order - unless supported by DCMA as a procedure of the Contractor's accounting procedures. General purpose business expenses include the costs for items such as telephones (including cell phones) and telephone charges, copy machines, word processing equipment, personal computers, and other office equipment and supplies.

C.6.3 Counterfeit Parts and Materiel

(a) The following minimum processes shall be implemented and flowed down by the Contractor to all Sub-contractors in order to minimize the risk of use of counterfeit parts.

(b) The Contractor shall establish processes to minimize the risk of procuring and using counterfeit parts and materiel. The Contractor shall document these processes and provide those documented processes to Government representatives upon request. The contractor shall ensure that all requirements are flowed down to sub-contractors and suppliers at all tiers.

(c) At a minimum, these processes shall ensure that:

Materiel that is either in production or currently available shall be purchased from an original manufacturer, aftermarket manufacturer, or other authorized supplier.

Material that is neither in production nor currently available may be purchased from suppliers, including unauthorized suppliers, that meet appropriate counterfeit avoidance criteria documented in Industry anti-counterfeit standards. The Contractor shall notify the KO and COR when critical or high-risk materiel is procured from an unauthorized source. The Contractor shall provide this notification before materiel is installed so mitigation actions can be taken.

The Contractor shall generate a Counterfeit Prevention Plan in accordance with DI-MISC-81832 Counterfeit Prevention Plan, and the requirements of this Data Item Description (DID) and SAE Aerospace Standard 5553 (SAE AS5553) Counterfeit Electronic Parts; Avoidance, Detection, Mitigation, and Disposition. (CDRL A011)

The Contractor shall maximize the use of authentic, originally designed and/or qualified parts.

The Contractor shall assess potential suppliers to minimize the risk of receiving counterfeit parts or materiel.

The Contractor shall have purchasing procedures which confirm whether a selected supplier is authorized (as defined in SAE AS5553) for each purchase.

The Contractor shall define minimum inspection and test requirements for parts being procured and shall ensure that in-house, third-party, and/or supplier inspection and test procedures and facilities comply with the requirements of this section. These minimum inspection and test requirements shall specify appropriate test methods to detect potential counterfeit parts and materiel.

The Contractor shall require a certificate of conformance (as defined in SAE AS5553) and supply chain traceability for all electronic part purchases.

The Contractor shall use government or Industry services such as Government-Industry Data Exchange Program (GIDEP) and other commercially available services to identify part or supplier quality or authenticity problems.

The Contractor shall maintain critical or high-risk materiel traceability that enables tracking through the supply chain to the original manufacturer if purchased from an authorized source or to the unauthorized source at a minimum if purchased from an unauthorized source.

(d) The Contractor shall immediately notify the COR of the occurrence of a suspect or confirmed counterfeit part or materiel. Contractor shall notify the COR of all actions taken to identify, contain, and impound all product from the lot, within 7 working days of confirmation of the counterfeit status. The Contractor shall initiate and submit an ALERT to GIDEP within 60 days of knowledge of the counterfeit part or materiel.

(e) Suspect counterfeit parts and materiel shall be impounded with all other items from the same lot. The Contractor shall identify and locate all potential users or hardware items with the suspect part or materiel and contain the product which has this suspect part or materiel, pending confirmation of the part or materiel's authenticity. The Original Equipment Manufacturer (OEM) may be involved at this point in order to verify authenticity. Confirmed counterfeit materiel shall be contained and provided to investigative agencies for ongoing investigation or prosecution. The counterfeit product shall not be scrapped or otherwise disposed of without approval from investigative authorities or the Contracting Officer. Confirmed counterfeit product shall be disposed of in a way which would not allow its resale or reuse.

(f) Counterfeit parts are defined in SAE AS5553. Counterfeit parts may be electronic or mechanical in nature. Counterfeit electronic parts may typically be used parts which have been refurbished and represented as new. Commonly counterfeited electronic parts include parts such as microcontrollers or specially screened devices, or common parts, which have several pin-compatible versions from multiple manufacturers, such as memory devices and operational amplifiers. Counterfeit mechanical parts are typically improperly made, marked, or treated products. Examples are improper anodization or heat treatments (or falsified data), mismarked parts sold as higher grade steel, or used/fake parts such as valves or circuit breakers.

C.7 GOVERNMENT FURNISHED SPACE/GOVERNMENT FURNISHED PROPERTY/GOVERNMENT FURNISHED INFORMATION

C.7.1 Government Furnished Space

(a) Government Furnished Office Space will be provided for the following labor categories and number of personnel. This office space will be the primary work location for these positions.

Labor Category	Number
Senior Systems Engineer	0.5
Senior Electrical Engineer	2
Principal Engineer	2
Electrical Engineer - Junior	2
Electrical Engineer - Mid/Journeyman	2
Principal Systems Engineer	2
Computer System/Software Engineer	1

Software Developer (Threat Engineering)	4
Junior Engineer	5
Configuration Management Analyst	2
Program Analyst	7.5
Senior Writer/Editor	1
Engineering Technician V	2
Windows System Admin	4
Linux System Admin	2
IA Specialist (Cyber Lethality Support)	3
Total	42

(b) The Government will provide access to Navy Marine Corps Intranet (NMCI)/other Government computer resources as required.

(c) Government Furnished Property (GFP) (hardware, software, firmware) will be provided to support access to NMCI/other Government computer resources as required during performance of this Task Order.

(e) Access to Government lab space will be provided. Lab space does not constitute office space. Government Furnished Lab Space will be provided for the following labor categories and number of personnel.

Labor Category	Number
Engineering Technician V	2
Technical Specialist	1
Total	3

C.7.2 Government Furnished Property (GFP)

(a) GFP may be issued under this Task Order. The Government will make available the Government Property identified in the GFP Attachment J.1 on a rent-free basis in performance of the Task Order. The Contractor is responsible for all costs related to making the property available for use, such as payment of all transportation, installation, or rehabilitation costs.

(b) The Contractor shall maintain and report the inventory of GFP (CDRL A00U) issued under this Task Order. This requirement is in addition to anything required by regulation, statute, or the assigned Government Property Administrator.

C.7.3 Government Furnished Information (GFI)

C.7.5.1 The Government will provide existing Government program documentation (directives, agendas, minutes, instructions, letters, plans, procedures, current change documents, current financial information) upon award of the contract.

C.8 SECURITY

C.8.1 Personnel and Facility Clearance Requirements

(a) Facility Clearance Level (FCL) Requirement: The Prime Contractor supporting this Task Order is required to have an FCL of TOP SECRET and safeguarding clearance level of SECRET at the primary facility supporting this Task Order.

(b) Personnel Clearance Level (PCL) Requirement: All personnel directly supporting this Task Order, except Management and Support personnel, are required to have, as a minimum, a current SECRET security clearance in the Defense Industrial Security System (DISS). Interim clearances are acceptable. Personnel performing in the following labor categories shall have a final TOP SECRET security clearance with Sensitive Compartmented Information (SCI) eligibility in DISS: Senior Systems Engineer (2.5 FTE); Senior Mechanical Engineer (2 FTE); Senior Software Engineer (1 FTE); Senior Electrical Engineer (2 FTE); Principal Engineer (2 FTE); Software Developer (Threat Engineering) (4 FTE) and IA Specialist (Cyber Lethality Support) (3 FTE). In addition, each FTE shall be able to obtain and maintain Sensitive Compartmented Information (SCI) access once sponsored by the Government.

C.8.2 The Contractor will have access to information and compartments with a SECRET classification. All deliverables associated with this Task Order are unclassified unless otherwise specified. Access to classified spaces and material and generation of classified material shall be in accordance with the attached DD Form 254 (Attachment J.7).

C.8.3 The Department of Defense Contract Security Classification Specification (DD Form 254) provides the security classification requirements for this effort. The Contractor shall obtain facility and personnel security clearances as required by the National Industrial Security Program prior to starting to work on tasks requiring clearances. Access to classified spaces and material and generation of classified material shall be in accordance with the National Industrial Security Program Operating Manual (NISPOM) 32 Code of Federal Regulation (CFR) Part 117 and the NSWCDD Command Security Manual.

C.8.4 Some work accomplished under this Task Order will be classified up to the level of TOP SECRET. The Contractor shall maintain the capability to store information up to and including SECRET. All data generated under this Task Order shall be classified in accordance with the guidance in the NISPOM 32 CFR Part 117 and the NSWCDD Command Security Manual.

C.8.5 The Contractor must comply with guidelines specified on the DD Form 254. Contractors SCI indoctrinated in support of this contract shall comply with the reporting requirements as outlined in DOD policies Security Executive Agent Directive (SEAD)-3 dtd 12 June 2017, SEAD-3 Implementation memo dtd 02 Nov 2020, and SEAD-4 Implementation memo dtd 12 Jan 2018. All deliverables associated with this Task Order will be non-SCI.

C.8.6 The Contractor shall require access to Communications Security (COMSEC) information and materials. A COMSEC account is also required in order to maintain and use COMSEC Material, which includes accountable/non-accountable COMSEC Material and Controlled Cryptographic Items (CCI). The Contractor shall utilize CRYPTO and have access to Secure Terminal Equipment (STE) and associated encryption device(s) at the Contractor site(s). Additionally, Contractor must be authorized for the use of the Defense Courier Service. The Contractor will be required to receive and generate classified material, as well as store classified hardware. The storage of classified hardware is not to exceed two (2) cubic feet until such time as storage capacity is verified by the Contractor. The Contractor requires access to Non-SCI Intelligence in order to perform analysis of weapons systems. Access to Non-SCI intelligence is needed in order to utilize intelligence documents related to foreign government weapons systems. Access to the North Atlantic Treaty Organization (NATO) is required to obtain a SIPRnet account and to utilize the Defense Technical Information center (DTIC) system to obtain documents on intelligence. Access to Foreign Government Information is required to obtain United Kingdom documents on specific weapon systems. Access to Critical Nuclear Weapons Design Information, Restricted Data, and Formerly Restricted Data is required to access information required for modeling and simulation of weapons and threats. The Contractor shall identify covered defense information and mark information in accordance with the DoD procedures for identification and protection of controlled unclassified information (CUI) found in DoDI 5200.48, Controlled Unclassified Information, Controlled Unclassified Information (CUI). Controlled Unclassified Information (CUI), formerly For Official Use Only (FOUO) and Personally Identifiable Information (PII), generated and/or provided under this contract shall be safeguarded and marked as specified in DoDI 5200.48 and DoDM 5400.07. All above accesses are needed to support and provide the system engineering, software development, and maintenance of Navy tactical initiatives and spiral and baseline developments to support NSWCDD. In performing under this Task Order, the Contractor shall have access to U.S. classified information outside the U.S., Puerto Rico, U.S. Possessions, and Trust Territories including the following locations: United Kingdom, Bahrain, Belgium, Spain, Singapore, Cuba, Panama, Columbia, Croatia.

C.8.7 Physical Security: The Contractor shall be responsible for safeguarding all Government information or property provided for Contractor use. At the end of each work period, Government information, facilities, equipment and materials shall be secured as specified by the 32 CFR Part 117 and the NSWCDD Command Security Manual. Secret storage is required at the Contractor's facility in order to meet requirements of receiving and generating classified material in accordance with this Task Order.

C.8.8 Contractors working in Open Storage Secret (OSS) spaces with Open/Close privileges shall be aware of their responsibility and be trained in procedures for end-of-day security checks to include Closing OSS spaces.

C.8.9 Electronic Spillage

C.8.9.1 Electronic Spillages (ES) are unacceptable and pose a risk to national security. An electronic spillage is defined as classified data placed on an information system (IS), media or hardcopy document possessing insufficient security controls to protect the data at the required classification level, thus posing a risk to national security (e.g., sensitive compartmented information (SCI) onto collateral, Secret onto Unclassified, etc.). The Contractor's performance as it relates to ES will be evaluated by the Government. ES reflects on the overall security posture of NSWCDD and a lack of attention to detail with regard to the handling of classified information of IS security discipline and will be reflected in the Contractor's performance rating. In the event that a Contractor is determined to be responsible for an ES, all direct and indirect costs incurred by the Government for ES remediation could be charged to the Contractor.

C.8.9.2 NSWCDD Security will continue to be responsible for the corrective action plan in accordance with the security guidance reflected on the DOD Contract Security Classification Specification - DD Form 254. NSWCDD Security will identify the Contractor facility and contract number associated with all electronic spillages that involve the Contractor. NSWCDD Security will notify the Contracts Division with the Contractor facility name and contract number, incident specifics and associated costs for clean-up. The Contracting Officer will be responsible to work with the

Contractor Facility to capture the costs incurred during the spillage clean up. The Contractor is also responsible for taking Information Security Awareness training annually, via their Facility Security Officer (FSO), as part of the mandatory training requirements. If a spillage occurs additional training will be required to prevent recurrence.

C.8.10 Portable Electronic Devices (PEDs)

C.8.10.1 Non-Government and/or personally owned portable electronic devices (PEDs) are prohibited in all NSWCDD buildings with the exception of personally owned cell phones which are authorized for use in General Office Spaces (GOS). All personnel need to be aware of the PEDs policy and being permitted in a building by asking authorized personnel or reviewing the entrance area signs and instructions. The Contractor/personnel visiting shall ensure the onsite personnel remain compliant with this PED policy. NSWCDD instruction defines PEDs as the following: any electronic device designed to be easily transported, with the capability to store, record, receive or transmit text, images, video, or audio data in any format via any transmission medium. PED's include, but are not limited to, pagers, laptops, radios, compact discs and cassette players/recorders. In addition, this includes removable storage media such as flash memory, memory sticks, multimedia cards and secure digital cards, micro-drive modules, ZIP drives, ZIP disks, CD-RWs, DVD-RWs, MP3 players, iPads, digital picture frames, electronic book readers, kindle, nook, cameras, external hard disk drives, and floppy diskettes.

C.8.10.2 Personal Wearable Fitness Devices (PWFs) marketed primarily as fitness or sleep devices are allowed in all Navy spaces, if they are compliant with NAVADIN 216/15, where collateral non-Sensitive Compartmented Information (SCI), classified information is processed, stored, or discussed up to and including SECRET. The user must ensure the PWF is compliant with all requirements in NAVADMIN 216/15, Cyber Hygiene Authorization to use Personal Wearable Fitness Devices (e.g., FitBit, Jawbone UP, etc.) in Navy Spaces, dated 14 September 2015 and register PWF in the NSWCDD Fitness Device Tracker.

C.8.10.3 Personnel requiring the use of Medical Portable Electronic Devices (MPEDs) must submit Form NSWCDD 5239/4 for SCIF authorization to the SCIF authorizations to the Special Security Officer (SSO). For Special Access Program Facility (SAPF) authorizations, follow the guidance provided by the Government Special Access Program Security Officer (GSSO). Authorizations for use in SAPFs that are co-utilized within NSWCDD SCIFS require coordination between both the GSSO and SSO. For authorizations to use MPED in Collateral Classified spaces, submit form to the Special Programs Branch, Code 1053.

C.8.10.4 PED's belonging to an external organization shall not be connected to NSWCDD networks or infrastructure without prior approval from the NSWCDD Information Assurance and Compliance Branch. This approval will be granted using the Temporary Approval Request for Information System (TARIS) form and action tracker process.

C.8.10.5 Personally owned hardware or software shall not be connected or introduced to any NSWCDD hardware, network or information system infrastructure.

C.8.10.6 Navy-issued peripheral:

C.8.10.6.1 Government procured headsets with or without microphones must be wired, use either a 3.5 millimeter (mm) audio jack or universal serial bus (USB) port, cannot contain active-noise cancelling functionality and may be used on systems of classification up to and including collateral Top Secret. The headsets are considered unclassified when unplugged, and must be unplugged when not in use.

C.8.10.6.2 Government procured Bluetooth earbuds and headsets that do not require a USB dongle or any other physical connection to enable wireless connectivity are allowed for use on Government issued tablets, phones, and personal devices in telework environments or unclassified general office space where no classified discussion are occurring.

C.8.10.6.3 Web cameras may only be used on systems at the classification level of the space. For example, in a collateral SECRET open storage area an external web camera may be connected to the SECRET workstation only. No camera pass is required for these devices.

C.8.10.6.4 Government provided printers and/or scanners are authorized in a telework environment. Users must ensure that any paper or media containing CUI or unclassified information not authorized for public release is safeguarded by locking in a drawer, cabinet or room. CUI and unclassified information not approved for public release must be returned to the worksite for destruction.

C.8.10.6.5 Government issued peripherals may be used on personal devices.

C.8.10.6.6 While connected to any Navy network, whether on site or while in a telework environment, the use of headsets with microphones and web cameras are restricted to official Government duties.

C.8.11 Operations Security (OPSEC)

Contractor personnel shall follow OPSEC concepts and principles in the conduct of this requirement to protect critical information, personnel, facilities, equipment, and operations from compromise. All Contractors (including Sub-contractors) shall supplement their current security practices by requiring any personnel involved in executing this Task Order to complete Government-sponsored and administered Operations Security (OPSEC) training. In addition, all Contractors shall be aware of the Critical Information and Indicators List (CIIL) for the organization they are supporting as well as the OPSEC manual for NSWCDD. These OPSEC requirements will be in effect throughout the life of the procurement from award through the conclusion of services at the end of the period of performance (PoP) or other procurement termination. The Contractor must immediately notify the Government upon the discovery of any nonconformance with the OPSEC manual

C.8.12 Privacy Program Training

Privacy training is mandatory for all NSWCDD personnel (military, civilian, and Contractor) and must be completed annually. Total Workforce Management Services (TWMS) is the official database for workforce training and is the tool for taking and recording Privacy Act training. The Contractor is responsible for ensuring individual annual privacy training requirements are met.

C.8.13 IT-1 Designation Requirements

C.8.13.1 In accordance with (IAW) DON Chief Information Officer (CIO), NSWC Headquarters, and NSWCDD guidance, IT Level-1 positions are defined as users with privileged access. Contractor employees assigned to an IT Level-I designated position with SECRET access will be required to have a favorably adjudicated T5/T5R completed every 5 years. Contractor employees that require a SECRET Clearance as part of their job duties, with IT Level-I designation, will be initiated by the Government, and will be at the Government's expense. Contractor employees that require a Top Secret Clearance as part of their job duties, with IT Level-I designation, shall be initiated by the Contracting Company.

C.8.13.2 Any Contractor employee, who has a final clearance and submitted T5/T5R that is accepted by Office of Personnel Management (OPM) along with a favorable fingerprint check (SAC), is eligible for IT-1 designation. The Command Security Office will review all SF-86 paperwork for all Contractor employees nominated for IT Level-I designations if the T5/T5R is not completed.

C.8.13.3 Contractor employees that do not have a final clearance investigation within DISS are ineligible for IT Level-I designation until the T5/T5R has been favorably adjudicated, shall remain at IT level-II status and shall not be assigned to a contract position requiring IT Level-I designation.

C.8.14 Visits by Foreign Nationals and Foreign Representatives

C.8.14.1 Task Order performance may require that the Contractor host, at an off-base location, foreign nationals and/or foreign representatives. A foreign national is a person who is a citizen of a foreign nation, and who is not a citizen of the United States. A foreign representative is a person who represents a foreign interest in dealings with the U.S. Government, either directly or through dealings with a U.S. Government Contractor. A foreign representative may be a United States citizen.

C.8.14.2 A Contractor-hosted visit of a foreign national or foreign representative may be either an "official" visit or an "unofficial" visit. An official visit is a visit where the foreign national or foreign representative is representing a foreign government in an official capacity. An unofficial visit is a visit where the foreign national or foreign representative is not representing a foreign government.

C.8.14.3 A visit by a foreign national or a foreign representative may be either "DOD Sponsored" or "Non-DOD Sponsored". A DOD Sponsored visit is a visit that is coordinated by a DOD entity. A Non-DOD Sponsored visit is a visit that does not involve DOD coordination (A visit by either a foreign national or a foreign representative pursuant to performance by the Contractor under this Task Order is not considered to be, by itself, a sponsored visit).

C.8.14.4 The Contractor hosting a visit by either a foreign national or a foreign representative is responsible for adherence to Department of Defense and Department of the Navy directives, instructions, regulations, and manuals that govern foreign disclosure. "Foreign Disclosure" is defined as the disclosure of Classified Military Information (CMI) and Controlled Unclassified Information (CUI) to foreign nationals and/or foreign representatives. Disclosure of such information may be accomplished orally, visually, in writing, or by any other medium.

C.8.14.5 Classified Military Information (CMI). This is information that is originated by or for the Department of Defense, or a Military Department, or an entity under its jurisdiction and control, and which requires protection in the interest of national security. Such information is designated as TOP SECRET, SECRET, or CONFIDENTIAL.

C.8.14.6 Controlled Unclassified Information (CUI). This is information that although unclassified is subject to access or distribution limitations in accordance with statute or regulation. Included is information exempt from mandatory release to the public under the Freedom of Information Act, or information that is subject to export control.

C.8.14.7 NSWCDD Foreign National Visitor and Foreign Disclosure Application process. The NSWCDD has established a foreign national visitor approval and foreign disclosure process. Whenever, pursuant to the terms of this Task Order, a visit to a Contractor facility or Contractor workspace by a foreign national or foreign representative is anticipated, and one or more NSWCDD employees will be in attendance at this visit/meeting for the purpose of potential discussions, above the public release level, resulting in disclosure of either CMI or CUI, a completed "NSWCDD Foreign National Visitor and Foreign Disclosure Application" e-form must be supplied to the Contractor's Facility Security Officer (FSO). The accountable NSWCDD personnel attending the meeting must ensure that the NSWCDD disclosure process has been complied with and an approved copy of the "NSWCDD Foreign National Visitor and Foreign Disclosure Application" generated e-form has been provided to the COR and the Contractor's FSO. The Contractor's FSO should ensure that approved copies of the e-form are maintained at their facility as a record of compliance with requirements set forth in 32 CFR Part 117 as well as the requirements set forth above.

C.9 ON-SITE ENVIRONMENTAL REQUIREMENTS

C.9.1 The Contractor shall strictly adhere to all Federal, State and local laws and regulations, Executive Orders, and Department of Defense and Navy policies.

C.9.2 The Contractor shall ensure that each Contractor employee who has been or will be issued a Common Access Card (CAC), performs work in direct support of NSWCDD programs under the NSWCDD Commanding Officer, and sits on-site at NSWCDD, completes the NAVSEA Environmental Awareness Training (TWMS-695388) within 30 days of commencing Task Order performance and at least every three (3) years thereafter or as directed by their NSWCDD training coordinator or their COR.

C.9.3 The Contractor shall ensure that each Contractor employee not required to complete the training described above (i.e., those who do not have and will not be issued a CAC, do not perform work in direct support of NSWCDD programs under the NSWCDD Commanding Officer, and do not

sit on-site at NSWCDD) reads the NSWCDD Environmental Policy Statement within 30 days of commencing Task Order performance. This document will be available from the COR, however, the policy is also provided on the publicly-available NSWCDD website, <https://www.navsea.navy.mil/Home/Warfare-Centers/NSWC-Dahlgren/Resources/>.

C.9.4 Within 30 days of commencing Task Order performance, the Contractor shall certify by email to their COR that the requirements captured above have been met. The email shall include each employee name and work site and shall indicate which requirement each employee has satisfied.

C.9.5 Contractor copies of the records generated by the actions described above will be maintained and disposed of by the Contractor in accordance with Secretary of Navy Instruction (SECNAVINST) 5210.8F Department of the Navy Records Management Program.

C.9.6 The Contractor shall perform work under this Task Order consistent with the relevant policy and objectives identified in the NSWCDD environmental management system (EMS). The Contractor shall perform work in a manner that conforms to all appropriate EMS Plans of Actions and Milestones identified by the NSWCDD EMS Plan. In the event an environmental nonconformance or noncompliance associated with the contracted services is identified, the Contractor shall respond and take immediate corrective and/or preventative actions to ensure the actions do not continue. In addition, the Contractor shall ensure that their employees are aware of their roles and responsibilities identified by the NSWCDD EMS and how these requirements affect their work performed under this Task Order.

C.10 ON-SITE SAFETY REQUIREMENTS

C.10.1 The Contractor shall strictly adhere to Federal Occupational Safety and Health Agency (OSHA) Regulations, Environmental Protection Agency (EPA) Regulations, NSWCDDINST 5100.01 Occupational Safety and Health Program (current revision), and all applicable state and local requirements.

C.10.2 The Contractor shall ensure that each Contractor employee reads the document entitled, "Occupational Safety and Health (OSH) Policy Statement" within 30 days of commencing performance at NSWCDD. This document is available at: https://flankspeed.sharepoint-mil.us/sites/NAVSEA_NSWCDD_SE/SitePages/OSH-Bulletin-Board.aspx.

C.10.3 The Contractor shall provide each Contractor employee with the training required to do his/her job safely and in compliance with applicable regulations. The Contractor shall document and provide, upon request, qualifications, certifications, and licenses as required. Contractors conducting lead or asbestos abatement activities shall also provide a written abatement plan to the Safety & Environmental Branches for review and approval.

C.10.4 The Contractor shall provide each Contractor employee with the personal protective equipment required to do their job safely and in compliance with all applicable regulations.

C.10.5 Contractors working with ionizing radiation (radioactive material or machine sources) must comply with the latest revision of NAVSEA S0420-AA-RAD-010 (provided upon request). Prior to bringing radioactive materials or machine sources on base, the Contractor must notify the Command Radiation Safety Officer in the Safety Branch.

C.10.6 Contractors shall not procure hazardous material (HAZMAT) on behalf of NSWCDD without following the approved HAZMAT procurement process and obtaining approval from the Safety & Environmental Branches. For emergency HAZMAT purchases only, the Contractor shall alert the Safety & Environmental Branches and request a waiver to procure outside the HAZMAT procurement process. For emergency purchases, the Contractor shall submit an Authorized Use List Addition form and the Safety Data Sheet to the Safety & Environmental Branches for approval. Once the HAZMAT arrives onsite, the Contractor shall alert the Environmental Branch so that it can be barcoded and added to the inventory.

C.10.7 HAZMAT owned by the Contractor and brought into NSWCDD workspaces for temporary use shall be reviewed and approved by the Safety & Environmental Branches prior to use. The Contractor shall submit the Safety Data Sheet that must be routed through the Government supervisor responsible for the specific work area. This HAZMAT must clearly be marked that it is Contractor owned and shall not be stored in NSWCDD spaces.

C.10.8 Contractors shall not procure lithium batteries on behalf of NSWCDD without first receiving an approved Initial Procurement Report or certification letter and obtaining approval from the Safety & Environmental Branches.

C.10.9 Applicable Contractors shall submit Total Case Incident Rate (TCIR) and Days Away, Restricted and Transfer (DART) rates for the past three (3) years upon request by the Safety Branch. A Contractor meets the definition of applicable if its employees worked 1,000 hours or more in any calendar quarter onsite and where oversight is not directly provided in day-to-day activities by the command.

C.10.10 The Contractor shall report all work-related injuries/illnesses that occurred while working at NSWCDD, or an off-site location (including shipboard), to the Safety Branch.

C.12 USE OF INFORMATION SYSTEM (IS) RESOURCES

Except in special circumstances explicitly detailed elsewhere in this document, the Contractor shall provide all IS resources needed in the performance of this Task Order. This includes, but is not limited to computers, software, networks, certificates, and network addresses.

C.12.1 CONTRACTOR USE OF NSWCDD IS RESOURCES

(a) In the event that the Contractor is required to have access to NSWCDD IS resources, the login name used for access shall conform to the NMCI login naming convention. If the Contractor requires access to applications/systems that utilize client certificates for authentication, the Contractor is responsible for obtaining requisite certificates from a DOD or External Certificate Authority

(b) If this Task Order requires that the Contractor be granted access and use of NSWCCD IS resources (at any site), the IS shall be accredited for Contractor use in accordance with procedures specified by the Information Assurance Office.

C.12.2 CONNECTIONS BETWEEN NSWCCD AND CONTRACTOR FACILITIES

If there is a requirement (specifically delineated elsewhere in this Task Order) for interconnection (e.g., link level or Virtual Private Network (VPN)) between any facilities and/or ISs owned or operated by the Contractor and ISs owned or operated by NSWCCD, such interconnection shall take place only after approval from the Information Assurance Office. All such connections as well as the ISs connected thereto will be accredited in accordance with DOD policy (DODI 8510.01 Risk Management Framework for DoD Systems) by the cognizant Designated Approving Authority (DAA) and comply with the requirements of Chairman Joint Chiefs of Staff Instruction (CJCSI) 6211.02D Defense Information Systems Network (DISN) Responsibilities regarding Memorandums of Agreement. All such connections will be made outside the appropriate NSWCCD firewall.

Requirements

H30 Engineering Services

Additional Regulation or Supplemental Clauses Incorporated by Full Text

C-202-H001 ADDITIONAL DEFINITIONS--BASIC

(Oct 2018)

(a) Department means the Department of the Navy.

(b) Commander, Naval Sea Systems Command means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.

(c) References to The Federal Acquisition Regulation (FAR) All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.

(d) National Stock Numbers Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and acronyms shall be interpreted as National Item Identification Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:

(1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven digit nonsignificant number.

(2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

(End of Text)

C-204-H002 IMPLEMENTATION OF ENHANCED SECURITY CONTROLS ON SELECT DEFENSE INDUSTRIAL BASE PARTNER NETWORKS

(Sep 2024)

1. System Security Plan and Plans of Action and Milestones (SSP/POAM) Reviews

a) Within thirty (30) days of contract award, the Contractor shall make its System Security Plan(s) (SSP(s)) for its covered contractor information system(s) available for review by the Government at the contractor's facility. The SSP(s) shall implement the security requirements in Defense Federal Acquisition Regulation Supplement (DFARS) clause 252.204-7012, which is included in this contract. The Contractor shall fully cooperate in the Government's review of the SSPs at the Contractor's facility.

b) If the Government determines that the SSP(s) does not adequately implement the requirements of DFARS clause 252.204-7012 then the Government shall notify the Contractor of each identified deficiency. The Contractor shall correct any identified deficiencies within thirty (30) days of notification by the Government.

The contracting officer may provide for a correction period longer than thirty (30) days and, in such a case, may require the Contractor to submit a plan of action and milestones (POAM) for the correction of the identified deficiencies. The Contractor shall immediately notify the contracting officer of any failure or anticipated failure to meet a milestone in such a POAM.

c) Upon the conclusion of the correction period, the Government may conduct a follow-on review of the SSP(s) at the Contractor's facilities. The Government may continue to conduct follow-on reviews until the Government determines that the Contractor has corrected all identified deficiencies in the SSP(s).

d) The Government may, in its sole discretion, conduct subsequent reviews at the Contractor's site to verify the information in the SSP(s). The Government will conduct such reviews at least every three (3) years (measured from the date of contract award) and may conduct such reviews at any time upon thirty (30) days' notice to the Contractor.

2. Compliance to NIST 800-171

a) The Contractor shall fully implement the CUI Security Requirements (Requirements) and associated Relevant Security Controls (Controls) in NIST Special Publication 800-171 (Rev. 2) (NIST SP 800-171), or establish a SSP(s) and POA&Ms that varies from NIST 800-171 only in accordance with DFARS clause 252.204-7012(b) (2), for all covered contractor information systems affecting this contract.

b) Notwithstanding the allowance for such variation, the contractor shall identify in any SSP and POA&M their plans to implement the following, at a minimum:

(1) Implement Control 3.5.3 (Multi-factor authentication). This means that multi-factor authentication is required for all users, privileged and unprivileged accounts that log into a network. In other words, any system that is not standalone should be required to utilize acceptable multi-factor authentication. For legacy systems and systems that cannot support this requirement, such as CNC equipment, etc., a combination of physical and logical protections acceptable to the Government may be substituted;

(2) Implement Control 3.1.5 (least privilege) and associated Controls, and identify practices that the contractor implements to restrict the unnecessary sharing with, or flow of, covered defense information to its subcontractors, suppliers, or vendors based on need-to-know principles;

(3) Implement Control 3.1.12 (monitoring and control remote access sessions) - Require monitoring and controlling of remote access sessions and include mechanisms to audit the sessions and methods.

(4) Audit user privileges on at least an annual basis;

(5) Implement:

- i. Control 3.13.11 (FIPS 140-2 validated cryptology or implementation of NSA or NIST approved algorithms (i.e. FIPS 140-2 Annex A: AES or Triple DES) or compensating controls as documented in a SSP and POAM); and,
- ii. NIST Cryptographic Algorithm Validation Program (CAVP) (see <https://csrc.nist.gov/projects/cryptographic-algorithm-validation-program>);

(6) Implement Control 3.13.16 (Protect the confidentiality of CUI at rest) or provide a POAM for implementation which shall be evaluated by the Navy for risk acceptance.

(7) Implement Control 3.1.19 (encrypt CUI on mobile devices) or provide a plan of action for implementation which can be evaluated by the Government Program Manager for risk to the program.

3. Cyber Incident Response

- a) The Contractor shall, within fifteen (15) days of discovering the cyber incident (inclusive of the 72-hour reporting period), deliver all data used in performance of the contract that the Contractor determines is impacted by the incident and begin assessment of potential warfighter/program impact.
- b) Incident data shall be delivered in accordance with the Department of Defense Cyber Crimes Center (DC3) Instructions for Submitting Media available at http://www.acq.osd.mil/dpap/dars/pgi/docs/Instructions_for_Submitting_Media.docx. In delivery of the incident data, the Contractor shall, to the extent practical, remove contractor-owned information from Government covered defense information.
- c) If the Contractor subsequently identifies any such data not previously delivered to DC3, then the Contractor shall immediately notify the contracting officer in writing and shall deliver the incident data within ten (10) days of identification. In such a case, the Contractor may request a delivery date later than ten (10) days after identification. The contracting officer will approve or disapprove the request after coordination with DC3.

4. Naval Criminal Investigative Service (NCIS) Outreach

The Contractor shall engage with NCIS industry outreach efforts and consider recommendations for hardening of covered contractor information systems affecting DON programs and technologies.

5. NCIS/Industry Monitoring

a) In the event of a cyber incident or at any time the Government has indication of a vulnerability or potential vulnerability, the Contractor shall cooperate with the Naval Criminal Investigative Service (NCIS), which may include cooperation related to: threat indicators; pre-determined incident information derived from the Contractor's infrastructure systems; and the continuous provision of all Contractor, subcontractor or vendor logs that show network activity, including any additional logs the contractor, subcontractor or vendor agrees to initiate as a result of the cyber incident or notice of actual or potential vulnerability.

b) If the Government determines that the collection of all logs does not adequately protect its interests, the Contractor and NCIS will work together to implement additional measures, which may include allowing the installation of an appropriate network device that is owned and maintained by NCIS, on the Contractor's information systems or information technology assets. The specific details (e.g., type of device, type of data gathered, monitoring period) regarding the installation of an NCIS network device shall be the subject of a separate agreement negotiated between NCIS and the Contractor. In the alternative, the Contractor may install network sensor capabilities or a network monitoring service, either of which must be reviewed for acceptability by NCIS. Use of this alternative approach shall also be the subject of a separate agreement negotiated between NCIS and the Contractor.

c) In all cases, the collection or provision of data and any activities associated with this statement of work shall be in accordance with federal, state, and non-US law.

(End of Text)

C-204-H001 USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (Oct 2018)

(a) NAVSEA may use a file room management support contractor, hereinafter referred to as "the support contractor", to manage its file room, in which all official contract files, including the official file supporting this procurement, are retained. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, hereinafter referred to as "protected information". File room management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file room management services are acquired will contain a requirement that:

- (1) The support contractor not disclose any information;
- (2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;
- (3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,
- (4) In addition to any other rights the contractor may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed protected information, for the unauthorized duplication, release, or disclosure of such protected information.

(c) Execution of this contract by the contractor is considered consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file room management support contractor for the limited purpose of executing its file room support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Contractors should enter into separate non-disclosure agreements with the file room contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the file room or otherwise encumber the government.

(End of Text)

C-211-H018 APPROVAL BY THE GOVERNMENT (NAVSEA) (JAN 2019)

(Jan 2019)

Approval by the Government as required under this contract and applicable specifications shall not relieve the Contractor of its obligation to comply with the specifications and with all other requirements of the contract, nor shall it impose upon the Government any liability it would not have had in the absence of such approval.

(End of Text)

C-211-H016 SPECIFICATIONS AND STANDARDS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Definitions.

(i) A "zero-tier reference" is a specification, standard, or drawing that is cited in the contract (including its attachments).

(ii) A "first-tier reference" is either: (1) a specification, standard, or drawing cited in a zero-tier reference, or (2) a specification cited in a first-tier drawing.

(b) Requirements. All zero-tier and first-tier references, as defined above, are mandatory for use. All lower tier references shall be used for guidance only unless specifically identified below.

(End of Text)

C-211-H017 UPDATING SPECIFICATIONS AND STANDARDS (NAVSEA) (DEC 2018)

(Dec 2018)

The contractor may request that this contract be updated to include the current version of the applicable specification or standard if the update does not affect the form, fit or function of any deliverable item or increase the cost/price of the item to the Government. The contractor should submit update requests to the Procuring Contracting Officer with copies to the Administrative Contracting Officer and cognizant program office representative for approval. The contractor shall perform the contract in accordance with the existing specifications and standards until notified of approval/disapproval of its request to update by the Procuring Contracting Officer. Any approved alternate specifications or standards will be incorporated into the contract.

(End of Text)

C-215-H002 CONTRACTOR PROPOSAL (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Performance of this contract by the Contractor shall be conducted and performed in accordance with detailed obligations to which the Contractor committed itself in Proposal _____ dated _____ in response to NAVSEA Solicitation No. N0017826R3017.

(b) The technical volume(s) of the Contractor's proposal is(are) hereby incorporated by reference and made subject to the "Order of Precedence" (FAR 52.215-8) clause of this contract. Under the "Order of Precedence" clause, the technical volume(s) of the Contractor's proposal referenced herein is (are) hereby designated as item (f) of the clause, following "the specifications" in the order of precedence.

(End of Text)

C-217-H005 GROWTH AND NEW WORK (NAVSEA) (JAN 2019)

(Jan 2019)

(a) The Contractor is required to notify the Contracting Officer via email regarding growth and new work within 30 days of discovery:

(1) of any apparent errors or omissions in the contract (SF 33, specifications, drawings, etc.); and,

(2) of any/all conflicts between the contract package and actual conditions observed during ship check(s) and/or contract execution.

(b) Growth work is synonymous with over and above work, which is described in DFARS 252.217-7028, Over and Above Work and it provides the process for adjudication.

(c) New work is distinguished from over and above work and is outside the scope of the competitively procured requirement. New work will be approved in accordance with FAR Part 6 and associated policies and procedures.

(d) The Government will NOT negotiate modifications to increase the contract price to address errors or omissions to the contract package which were reasonably apparent to the contractor prior to proposal submission.

(End of Text)

C-223-W002 ON-SITE SAFETY REQUIREMENTS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) The contractor shall ensure that each contractor employee reads any necessary safety documents within 30 days of commencing performance at any Government facility. Required safety documents can be obtained from the respective safety office. Contractors shall notify the Safety office points of contact below to report completion of the required training via email. The email shall include the contractor employee's name, work site, and contract number.

(b) It is expected that contractor employees will have received training from their employer on hazards associated with the areas in which they will be working and know what to do in order to protect themselves. Contractors are required to adhere to the requirements of 29 CFR 1910, 29 CFR 1926 and applicable state and local requirements while in Government spaces. The contractor shall ensure that all on-site contractor work at the Government facility is in accordance with any local safety instructions as provided via the COR. The contractor shall report all work-related injuries/illnesses that occurred while working at the Government site to the COR.

(c) Contractors whose employees perform work within Government spaces in excess of 1000 hours per calendar quarter during a calendar year shall submit the data elements on OSHA Form 300A, Summary of Work Related Injuries and Illnesses, for those employees to the safety office, via the COR by 15 January for the previous calendar year, even if no work related injuries or illnesses occurred. If a contractor's injury/illness rates are above the Bureau of Labor Statistics industry standards, a safety assessment may be performed by the Safety Office to determine if any administrative or engineering controls can be utilized to prevent further injuries/illnesses, or if any additional Personal Protective Equipment or training will be required.

(d) Any contractor employee exhibiting unsafe behavior may be removed from the Government site. Such removal shall not relieve the contractor from meeting its contractual obligations and shall not be considered an excusable delay as defined in FAR 52.249-14.

(e) The Safety Office points of contacts are as follows:

Charles Lehr (00S)

(540) 809 7699

charles.r.lehr2.civ@us.navy.mil

(End of Text)

C-227-H006 DATA REQUIREMENTS (NAVSEA) (OCT 2018)

(Oct 2018)

The data to be furnished hereunder shall be prepared in accordance with the Contract Data Requirements List, DD Form 1423, Exhibit(s) A, attached hereto.

(End of Text)

C-227-H007 SOFTWARE DEVELOPMENT REQUIREMENTS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) The contractor shall define a general Software Development Plan (SDP) appropriate for the computer software effort to be performed under this contract. The SDP shall be delivered to the Government for concurrence under CDRL A010 and shall not vary significantly from that proposed to the Government for evaluation for award. The contractor shall follow the Government concurred with SDP for all computer software to be developed or maintained under this effort. Any changes, modifications, additions or substitutions to the SDP also require prior Government concurrence.

(b) The SDP shall, at a minimum:

(1) Define the contractor's proposed life cycle model and the processes used as a part of that model. In this context, the term "life cycle model" is as defined in IEEE Std. 12207:2017;

(2) Contain the information defined by ISO/IEC/IEEE 15289:2017, section 7.3 "Plan - generic content" and Table 2 "Mapping of ISO/IEC 12207:2008 (IEEE Std. 12207:2008) Clauses to Information Items for Each Software Life Cycle Process." In all cases, the level of detail shall be sufficient to define all software development processes, activities, and tasks to be conducted for this contract;

(3) Identify the specific standards, methods, tools, actions, strategies, and responsibilities associated with development and qualification;

(4) Document all processes applicable to the system to be acquired, including the Primary, Supporting, and Organizational life cycle processes as defined by IEEE Std. 12207:2017 as appropriate. Such processes shall be equivalent to those articulated by CMMI(r);

(5) Adhere to the characteristics defined in ISO/IEC/IEEE 15289:2017 section 6.1 "Life-cycle data characteristics," as appropriate;

(6) Be in accordance with the framework defined in IEEE Std. 12207:2017, including, but not limited to, defining the processes, the activities to be performed as a part of the processes, the tasks which support the activities, and the techniques and tools to be used to perform the tasks;

(7) Contain a level of information sufficient to allow the use of the SDP as the full guidance for the developers. In accordance with ISO/IEC/IEEE 15289:2017 Section 7.3, such information shall at a minimum contain, specific standards, methods, tools, actions, reuse strategy, and responsibility associated with the development and qualification of all requirements, including safety and security.

(End of Text)

C-227-H010 COMPUTER SOFTWARE AND COMPUTER DATA BASES DELIVERED TO OR RECEIVED FROM THE GOVERNMENT (NAVSEA) (JAN 2019)

(Jan 2019)

(a) The Contractor agrees to test for viruses, malware, Trojan Horses, and other security threats such as those listed in NIST Special Publication 800-12 Rev 1, An Introduction to Computer Security, The NIST Handbook, Chapter 4, in all computer software and computer data bases (as defined in the clause entitled "Rights In Noncommercial Computer Software and Noncommercial Computer Software Documentation" (DFARS 252.227-7014)), before delivery of that computer software or computer data base in whatever media and on whatever system the computer software or data base is delivered whether delivered separately or imbedded within delivered equipment. The Contractor warrants that when delivered any such computer software and computer data base shall be free of viruses, malware, Trojan Horses, and other security threats such as those listed in NIST Special Publication 800-12 Rev 1.

(b) The Contractor agrees that prior to use under this contract, it shall test any computer software and computer data base received from the Government for viruses, malware, Trojan Horses, and other security threats listed in NIST Special Publication 800-12 Rev 1, An Introduction to Computer Security, The NIST Handbook, Chapter 4.

(c) Any license agreement governing the use of any computer software or computer software documentation delivered to the Government as a result of this contract must be paid-up, irrevocable, world-wide, royalty-free, perpetual and flexible (user licenses transferable among Government employees and personnel under Government contract).

(d) The Contractor shall not include or permit to be included any routine to enable the contractor or its subcontractor(s) or vendor(s) to disable the computer software or computer data base after delivery to the Government.

(e) No copy protection devices or systems shall be used in any computer software or computer data base delivered under this contract with unlimited or Government purpose rights (as defined in DFARS 252.227-7013 and 252.227-7014) to restrict or limit the Government from making copies.

(f) It is agreed that, to the extent that any technical or other data is computer software by virtue of its delivery in digital form, the Government shall be licensed to use that digital-form data with exactly the same rights and limitations as if the data had been delivered as hard copy.

(g) Any limited rights legends or other allowed legends placed by a Contractor on technical data or other data delivered in digital form shall be digitally included on the same media as the digital-form data and must be associated with the corresponding digital-form technical data to which the legend(s) apply to the extent possible. Such legends shall also be placed in human-readable form on a visible surface of the media carrying the digital-form data as delivered, to the extent possible.

(End of Text)

C-227-H009 ACCESS TO DATA OR COMPUTER SOFTWARE WITH RESTRICTIVE MARKINGS (NAVSEA) (JAN 2019)

(Jan 2019)

(a) Performance under this contract may require that the Contractor have access to technical data, computer software, or other sensitive data of another party that contains restrictive markings. If access to such data or software is required or to be provided, the Contractor shall enter into a written agreement with such party prior to gaining access to such data or software. The agreement shall address, at a minimum, (1) access to, and use of, the restrictively marked data or software exclusively for the purposes of performance of the work required by this contract, and (2) safeguards to protect such data or software from unauthorized use or disclosure for so long as the data or software remains properly restrictively marked. In addition, the agreement shall not impose any limitation upon the Government or its employees with respect to such data or software. A copy of the executed agreement shall be provided to the Contracting Officer. The Government may unilaterally modify the contract to list those third parties with which the Contractor has agreement(s).

(b) The Contractor agrees to: (1) indoctrinate its personnel who will have access to the data or software as to the restrictions under which access is granted; (2) not disclose the data or software to another party or other Contractor personnel except as authorized by the Contracting Officer; (3) not engage in any other action, venture, or employment wherein this information will be used, other than under this contract, in any manner inconsistent with this requirement; (4) not disclose the data or software to any other party, including, but not limited to, joint venturer, affiliate, successor, or assign of the Contractor; and (5) reproduce the restrictive stamp, marking, or legend on each use of the data or software whether in whole or in part.

(c) These restrictions on use and disclosure of the data and software also apply to information received from the Government through any means to which the Contractor has access in the performance of this contract that contains restrictive markings.

(d) The Contractor agrees that it will promptly notify the Contracting Officer of any attempt to gain access to any information with restrictive markings. Such notification shall include the name and organization of the individual, company, or Government representative seeking access to such information.

(e) The Contractor shall include this requirement in subcontracts of any tier which involve access to information covered by paragraph (a), substituting "subcontractor" for "Contractor" where appropriate.

(f) Compliance with this requirement is a material requirement of this contract.

(End of Text)

C-228-H002 MINIMUM INSURANCE REQUIREMENTS (NAVSEA) (JAN 2019)

(Jan 2019)

(a) In accordance with the clause(s) of this contract entitled "Insurance--Work On a Government Installation" (FAR 52.228-5) and "Liability and Insurance" (DFARS 252.217-7012), as applicable, the Contractor shall procure and maintain insurance, of at least the kinds and minimum amounts set forth below:

(i) Workers' compensation and employer's liability coverage shall be at least \$100,000, except as provided in FAR 28.307-2(a), if applicable

(ii) Bodily injury liability insurance coverage shall be written on the comprehensive form of policy of at least \$500,000 per occurrence.

(iii) Automobile liability policies covering automobiles operated in the United States shall provide coverage of at least \$200,000 per person and \$500,000 per occurrence for bodily injury and \$20,000 per occurrence for property damage. The amount of liability coverage on other policies shall be commensurate with any legal requirements of the locality and sufficient to meet normal and customary claims.

(b) To be approved by the Contracting Officer, insurance certificates must include the following cancellation policy statement: Prior to cancellation or material change in coverage, the contractor shall give 30 days written notice to the Contracting Officer.

(c) Physical work cannot begin until the insurance certificate has been approved by the Contracting Officer. Failure to provide an acceptable insurance certificate will not remove the contractor's responsibility to meet the delivery requirements outlined in Section F and FAR 52.211-11, Liquidated Damages - Supplies, Services, or Research and Development, if applicable.

(End of Text)

C-237-H002 SUBSTITUTION OF KEY PERSONNEL (NAVSEA) (OCT 2018)

(Oct 2018)

(a) The Contractor agrees that a partial basis for award of this contract is the list of key personnel proposed. Accordingly, the Contractor agrees to assign to this contract those key persons whose resumes were submitted with the proposal necessary to fulfill the requirements of the contract. No substitution shall be made without prior notification to and concurrence of the Contracting Officer in accordance with this requirement. Substitution shall include, but not be limited to, subdividing hours of any key personnel and assigning or allocating those hours to another individual not approved as key personnel.

(b) All proposed substitutes shall have qualifications equal to or higher than the qualifications of the person to be replaced. The Contracting Officer shall be notified in writing of any proposed substitution at least forty-five (45) days, or ninety (90) days if a security clearance is to be obtained, in advance of the proposed substitution. Such notification shall include: (1) an explanation of the circumstances necessitating the substitution; (2) a complete resume of the proposed substitute; (3) an explanation as to why the proposed substitute is considered to have equal or better qualifications than the person being replaced; (4) payroll record of the proposed replacement; and (5) any other information requested by the Contracting Officer to enable him/her to judge whether or not the Contractor is maintaining the same high quality of personnel that provided the partial basis for award.

(c) Key personnel are identified in an attachment in Section J.

(End of Text)

**C-237-W001 ELECTRONIC COST REPORTING AND FINANCIAL TRACKING (eCRAFT)
SYSTEM REPORTING**

(Feb 2026)

(a) The Contractor agrees to upload the Contractor's Funds and Man-hour Expenditure Reports in the Electronic Cost Reporting and Financial Tracking (eCRAFT) System and submit the Contract Status Report on the day and for the same timeframe the contractor submits an invoice into the Wide Area Workflow (WAWF) module on the Procurement Integrated Enterprise Environment (PIEE) system. Compliance with this requirement is a material requirement of this contract. Failure to comply with this requirement may result in contract termination.

(b) The Contract Status Report indicates the progress of work and the status of the program and of all assigned tasks. It informs the Government of existing or potential problem areas.

(c) The Contractor's Fund and Man-hour Expenditure Report reports contractor expenditures for labor, materials, travel, subcontractor usage, and other contract charges.

(1) Access: eCRAFT: Reports are uploaded through the eCRAFT System Periodic Report Utility (EPRU). The EPRU spreadsheet and user manual can be obtained at: <https://www.navsea.navy.mil/Home/Warfare-Centers/NUWC-Newport/Partnerships/Commercial-Contracts/Information-eCraft/> under eCRAFT information. The

link for eCRAFT report submission is: <https://www.pdrep.csd.disa.mil/pdrepweb/ecraft>. If you have problems uploading reports, please see the Frequently Asked Questions at the site address above.

(2) Submission and Acceptance/Rejection: The contractor shall submit their reports on the same day and for the same timeframe the contractor submits an invoice in WAWF. The amounts shall be the same. eCRAFT acceptance/rejection will be indicated by e-mail notification from eCRAFT.

(End of text)

C-239-W001 ELECTRONIC AND INFORMATION TECHNOLOGY (EIT) ACCESSIBILITY STANDARDS/SECTION 508 COMPLIANCE (NAVSEA) (OCT 2018) (Oct 2018)

(a) Requirements for accessibility based on Section 508 of the Rehabilitation Act of 1973 (29 U.S.C. 794d) are determined to be relevant for product(s)/service(s) procured under this solicitation.

(b) Each Electronic and Information Technology (EIT) item or service provided under this contract shall comply with the EIT Accessibility Standards listed below:

- ☒ 36 C.F.R. (S) 1194.21 - Software applications and operating systems
- ☒ 36 C.F.R. (S) 1194.22 - Web-based and internet information and applications
- ☒ 36 C.F.R. (S) 1194.23 - Telecommunications products
- ☐ 36 C.F.R. (S) 1194.24 - Video and multimedia products
- ☐ 36 C.F.R. (S) 1194.25 - Self-contained, closed products
- ☒ 36 C.F.R. (S) 1194.26 - Desktop and portable computers
- ☐ 36 C.F.R. (S) 1194.31 - Functional Performance Criteria
- ☒ 36 C.F.R. (S) 1194.41 - Information, Documentation, and Support

(c) For more information on Voluntary Product Accessibility Template (VPAT) and Government Product/Service Accessibility Template (GPAT) please refer to: <http://www.buyaccessible.gov/> or <http://www.section508.gov/content/sell/vpat>.

(d) The Contractor shall comply with the VPAT or GPAT document submitted. If the Contracting Officer determines that any item or service delivered under this contract does not comply with the EIT Accessibility Standards, the Contracting Officer will notify the Contractor in writing accordingly. If the Contractor fails to promptly correct or replace the nonconforming products or services with conforming products or services within the delivery schedule contained in the contract, the Government will have the rights and remedies contained in the basic contract.

(End of Text)

C-242-H002 POST AWARD MEETING (NAVSEA) (OCT 2018) (Oct 2018)

(a) A post-award meeting with the successful offeror will be conducted within [*] days after award of the [contract / task order]. The meeting will be held at the address below:

Location/Address: [*]

(b) The contractor will be given [*] working days notice prior to the date of the meeting by the Contracting Officer.

(c) The requirement for a post-award meeting shall in no event constitute grounds for excusable delay by the contractor in performance of any provisions in the [contract / task order].

(d) The post-award meeting will include, but is not limited to, the establishment of work level points of contact, determining the administration strategy, roles and responsibilities, and ensure prompt payment and close out. Specific topics shall be mutually agreed to prior to the meeting.

[*] To be specified at [contract / task order] award

(End of Text)

C-242-H001 EXPEDITING CONTRACT CLOSEOUT (NAVSEA) (OCT 2018)

(Oct 2018)

(a) As part of the negotiated fixed price or total estimated amount of this contract, both the Government and the Contractor have agreed to waive any entitlement that otherwise might accrue to either party in any residual dollar amount of \$1,000 or less at the time of final contract closeout. The term "residual dollar amount" shall include all money that would otherwise be owed to either party at the end of the contract, except that, amounts connected in any way with taxation, allegations of fraud and/or antitrust violations shall be excluded. For purposes of determining residual dollar amounts, offsets of money owed by one party against money that would otherwise be paid by that party may be considered to the extent permitted by law.

(b) This agreement to waive entitlement to residual dollar amounts has been considered by both parties. It is agreed that the administrative costs for either party associated with collecting such small dollar amounts could exceed the amount to be recovered.

(End of Text)

C-242-H003 TECHNICAL INSTRUCTIONS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) Performance of the work hereunder may be subject to written technical instructions signed by the Contracting Officer and the Contracting Officer's Representative specified in Section G of this contract. As used herein, technical instructions are defined to include the following:

(1) Directions to the Contractor which suggest pursuit of certain lines of inquiry, shift work emphasis, fill in details or otherwise serve to accomplish the contractual statement of work.

(2) Guidelines to the Contractor which assist in the interpretation of drawings, specifications or technical portions of work description.

(b) Technical instructions must be within the general scope of work stated in the contract. Technical instructions may not be used to: (1) assign additional work under the contract; (2) direct a change as defined in the "CHANGES" clause of this contract; (3) increase or decrease the contract price or estimated contract amount (including fee), as applicable, the level of effort, or the time required for contract performance; or (4) change any of the terms, conditions or specifications of the contract.

(c) If, in the opinion of the Contractor, any technical instruction calls for effort outside the scope of the contract or is inconsistent with this requirement, the Contractor shall notify the Contracting Officer in writing within ten (10) working days after the receipt of any such instruction. The Contractor shall not proceed with the work affected by the technical instruction unless and until the Contractor is notified by the Contracting Officer that the technical instruction is within the scope of this contract.

(d) Nothing in the foregoing paragraph shall be construed to excuse the Contractor from performing that portion of the contractual work statement which is not affected by the disputed technical instruction.

(End of Text)

C-243-H003 CONFIGURATION MANAGEMENT (NAVSEA) (APR 2024)

(Apr 2024)

(a) Baseline Definition - All contractual documentation in effect at the time of contract award shall constitute the Contract Baseline, which shall be considered incorporated in the baseline documentation.

(b) General Requirement -

(1) The Contractor shall maintain a Configuration Control Program to assure that all detail level work being performed under this contract is in compliance with appropriate baseline documentation. The Contractor shall prepare a Configuration Management Plan in accordance with the requirements of the contract. If required, the Contractor's Configuration Management Plan shall be submitted through the appropriate Contract Data Requirements List (CDRL) for approval by the Government.

(2) Whenever a situation arises wherein the Contractor cannot comply with a baseline document, or whenever intent of such documentation is significantly changed by detail level documentation, the Contractor shall submit change documents to modify the baseline to resolve the conflict or to allow noncompliance. Whenever the cost of implementing a proposed change is less than the threshold requiring certified cost or pricing data, the Contractor shall provide such detail of related costs as to allow the Government to determine an equitable adjustment for the change document submission. Whenever the contract cost changes by an amount greater than the threshold requiring certified cost or pricing data, the Contractor shall complete such cost and pricing data as the Contracting Officer shall require detailing all related costs, and attach it to the change document. Requirements for cost and pricing data shall be determined by the gross amount of the change unless otherwise directed by the Contracting Officer. Change documentation shall be submitted to the Contracting Officer in accordance with the appropriate CDRL, and as described in paragraphs (c) through (f) below.

(c) Engineering Change Proposals (ECPs) - ECPs shall be prepared in accordance with the approved configuration management plan and the requirements of the contract. DI-SESS-80639E approved 11 February 2020, EIA-649-1A dated 10 August 2020, and MIL-HDBK-61B dated 7 April 2020 apply. An ECP shall be submitted whenever the detail level physical configuration, material quality, operational or functional performance of equipment or installed systems will not be in compliance with baseline design-related documents (Specifications, Contract Drawings, etc.), and a change to the baseline document is considered an appropriate means of resolving a design-related issue. The contractor shall develop documentation in sufficient detail to enable Government review and evaluation of the merits of the proposed change, including cost and scheduling impact, ship class impact if applicable, and consequences if disapproved. List all existing drawings and technical manuals impacted by the change, including a brief narrative explanation of needed changes to incorporate the ECP if approved. Provide weight and moment data incidental to the change, if applicable. The Contractor shall also prepare applicable baseline document insert sheets, with specific word changes or proposed rewrite, to facilitate baseline documentation changes.

(d) Non-Engineering Change Proposals (NECPs) - An NECP shall be submitted whenever necessary to document administrative, procedural, scheduling, or documentation changes that do not directly impact the physical configuration of the equipment. The NECP shall explain the nature of the problem, identify the applicable baseline document (i.e., Contract Data Requirement List (CDRL), Contract Clause, etc.) and provide a detailed explanation justifying the proposed course of action desired to resolve the problem. Insert sheets for applicable documents shall also be attached to facilitate change action in the event the NECP is approved.

(e) Deviations/Waivers - In the event that a baseline design-related document requirement cannot be met, and a change to the baseline document is considered inappropriate, the Contractor shall submit a Request for Variance.

The explanation of "Need for Deviation/Waiver" in the DD1694 shall provide detailed justification and consequences of approval, to include technical details explaining the degree of noncompliance and the effect on ship equipment or system operation.

(f) Equitable Adjustments for Change Documentation Preparations - For its effort expended in preparing ECPs, NECPs, and Deviations/Waivers, the Contractor shall receive equitable adjustment under the following circumstances:

- (1) In the event the Contractor, on its own initiative, and without written request from the Contracting Officer, develops a change document that is later disapproved by the Government, the Contractor shall bear the cost of this effort.
- (2) To avoid such loss, and at its option, the Contractor may submit a "preliminary" document that outlines intent, but without detailed supporting documentation and request the Contracting Officer's approval for expenditure of effort to complete the detailed supporting documentation. In the event the Contracting Officer denies this request, the Contractor will bear the cost of development of the "preliminary" document, and shall make no further effort to complete detailed supporting documentation.
- (3) In the event the Contracting Officer approves the Contractor's request to develop supporting documentation, the Contractor shall be equitably compensated for its effort for both the "preliminary" and "final" documentation, regardless of whether or not the change document is later approved.
- (4) In the event the Contracting Officer requests in writing that the Contractor develop change documentation, the effort expended by the Contractor in developing such documentation shall be subject to equitable adjustment, regardless of whether or not the change document is later approved.
- (5) In the event the Contractor, on its own initiative, and without written request from the Government, develops a change document that is later approved by the Contracting Officer, the cost of developing such documentation shall be subject to equitable adjustment.
- (6) Failure to agree to such equitable adjustment in contract price shall constitute a dispute, and shall be adjudicated in accordance with the requirements of the clause entitled "Disputes" (FAR 52.2331).

(g) Any cost reduction proposal submitted pursuant to the clause entitled "Value Engineering" (FAR 52.2481) shall be submitted as a Value Engineering Change Proposal (VECP). The Contractor shall follow the VECP preparation requirements of FAR 52.248-1(c) and any additional guidance provided by the Contracting Officer.

(End of text)

C-244-H002 SUBCONTRACTORS/CONSULTANTS (NAVSEA) (FEB 2023)

(Feb 2023)

In addition to the information required by FAR 52.244-2(e) of the contract, when consent to subcontract is required per FAR 52.244-2, the contractor shall also include the following information in requests to add subcontractors or consultants during performance:

- (1) Impact on subcontracting goals,
- (2) Impact on providing support at the contracted value,
- (3) IF SEAPORT TASK ORDER - The results of negotiations to incorporate fee rate caps no higher than the lower of (i) SeaPort NXG fee rate caps for the prime contractor, or in the case where the proposed subcontractor is also a SeaPort NXG prime, (ii) fee rate caps that are no higher than the subcontractor's prime SeaPort NXG contract.

(End of Text)

C-245-H005 INFORMATION AND DATA FURNISHED BY THE GOVERNMENT--ALTERNATE I (NAVSEA) (MAY 2019)

(May 2019)

(a) Contract Specifications, Drawings and Data. The Government will furnish, if not included as an attachment to the contract, any unique contract specifications or other design or alteration data cited or referenced in Section C.

(b) Government Furnished Information (GFI). GFI is defined as that information essential for the installation, test, operation, and interface support of all Government Furnished Material identified in an attachment in Section J. The Government shall furnish only the GFI identified in an attachment in Section J. The GFI furnished to the contractor need not be in any particular format. Further, the Government reserves the right to revise the listing of GFI as follows:

(1) The Contracting Officer may at any time by written order:

(i) delete, supersede, or revise, in whole or in part, data identified in an attachment in Section J; or

(ii) add items of data or information to the attachment identified in Section J; or

(iii) establish or revise due dates for items of data or information in the attachment identified in Section J.

(2) If any action taken by the Contracting Officer pursuant to subparagraph (1) immediately above causes an increase or decrease in the costs of, or the time required for, performance of any part of the work under this contract, the contractor may be entitled to an equitable adjustment in the contract amount and delivery schedule in accordance with the procedures provided for in the "CHANGES" clause of this contract.

(c) Except for the Government information and data specified by paragraphs (a) and (b) above, the Government will not be obligated to furnish the Contractor any specification, standard, drawing, technical documentation, or other publication, notwithstanding anything to the contrary in the contract specifications, the GFI identified in an attachment in Section J, the clause of this contract entitled "Government Property" (FAR 52.245-1) or "Government Property Installation Operation Services" (FAR 52.245-2), as applicable, or any other term or condition of this contract. Such referenced documentation may be obtained:

(1) From the ASSIST database via the internet at <https://assist.dla.mil/online/start/>; or

(2) By submitting a request to the

Department of Defense Single Stock Point (DoDSSP)

Building 4, Section D

700 Robbins Avenue

Philadelphia, Pennsylvania 19111-5094

Telephone (215) 697-6396

Facsimile (215) 697-9398

Commercial specifications and standards, which may be referenced in the contract specification or any sub-tier specification or standard, are not available from Government sources and should be obtained from the publishers.

(End of Text)

Section D - Packaging and Marking

Additional Regulation or Supplemental Clauses Incorporated by Full Text

D-211-H005 IDENTIFICATION MARKING OF PARTS -- ALTERNATE I (NAVSEA) (OCT 2018) (Oct 2018)

(a) For all parts not subject to the marking requirements in DFARS 252.211-7003 - Item Unique Identification and Valuation, marking shall be accomplished in accordance with the following:

(1) Parts not manufactured to Government specifications shall be marked in accordance with generally accepted commercial practice.

(2) Parts manufactured to Government specifications shall be marked as follows:

(i) Electrical Parts - that is, all parts in electrical equipment and electrical parts when used in equipment which are not electrical in nature (e.g., electric controls and motors in a hydraulic system) - shall be identified and marked in accordance with MIL-STD-1285D(2) dated 22 June 2018, or, where MIL-STD-1285D(2) does not cover such a part, in accordance with MIL-STD-130N(1) dated 16 November 2012. Requirements of MIL-STD-1686C dated 25 October 1995 for Electrostatic Discharge Control shall be addressed.

(ii) Electronic Parts - that is, all parts in electronic equipment and electronic parts when used in equipment which are not electronic in nature (e.g., electronic fuel controls in some engines) - shall be identified and marked in accordance with Requirement 67 of MIL-HDBK-454B dated 15 April 2007 with Notice 1 dated 12 December 2012. Requirements of MIL-STD-1686C for Electrostatic Discharge Control shall be addressed.

(iii) Parts other than electrical or electronic parts (as described above) shall be identified and marked in accordance with MIL-STD-130N(1).

(b) In cases where parts are so small as not to permit identification marking as provided above, such parts shall be appropriately coded so as to permit ready identification.

(End of Text)

D-211-H001 PACKAGING OF DATA (NAVSEA) (FEB 2022) (Feb 2022)

Data to be delivered by Integrated Digital Environment (IDE) or other electronic media shall be as specified in the contract.

All unclassified data to be shipped shall be prepared for shipment in accordance with best commercial practice.

Classified reports, data, and documentation shall be prepared for shipment in accordance with National Industrial Security Program Operating Manual (NISPO), 32 CFR Part 117.

(End of Text)

D-211-H002 MARKING OF REPORTS (NAVSEA) (OCT 2018) (Oct 2018)

All reports delivered by the Contractor to the Government under this contract shall prominently show on the cover of the report:

(1) name and business address of the Contractor

(2) contract number

(3) sponsor: _____

(Name of Individual Sponsor)

(Name of Requiring Activity)

(City and State)

(End of Text)

D-247-W001 PROHIBITED PACKING MATERIALS (NAVSEA) (OCT 2018)

(Oct 2018)

The use of asbestos, excelsior, newspaper or shredded paper (all types including waxed paper, computer paper and similar hygroscopic or non-neutral material) is prohibited. In addition, the use of yellow wrapping or packaging material is prohibited except where used for the containment of radioactive material. Loose fill polystyrene is prohibited for shipboard use.

(End of Text)

DRAFT

Section E - Inspection and Acceptance

See Attachment J.2- Quality Assurance Surveillance Plan (QASP)

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.246-5	Inspection of Services-Cost-Reimbursement.	Apr 1984		

Additional Regulation or Supplemental Clauses Incorporated by Full Text

E-246-H013 INSPECTION AND ACCEPTANCE OF DATA (NAVSEA) (OCT 2018) (Oct 2018)

Inspection and acceptance of all data shall be as specified on the attached Contract Data Requirements List(s), DD Form 1423.

(End of Text)

E-246-H020 QUALITY MANAGEMENT SYSTEM REQUIREMENTS (NAVSEA) (OCT 2018) (Oct 2018)

The Contractor shall provide and maintain a quality management system that, as a minimum, adheres to the requirements of ASQ/ANSI/ISO 9001: 2015 "Quality Management Systems - Requirements" and supplemental requirements imposed by this contract. The quality management system procedures, planning, and all other documentation and data that comprise the quality management system shall be made available to the Government for review. Existing quality documents that meet the requirements of this contract may continue to be used. The Government may perform any necessary inspections, verifications, and evaluations to ascertain conformance to requirements and the adequacy of the implementing procedures. The Contractor shall flow down such standards, as applicable, to lower-tier subcontractors under instances covered in FAR 52.246-11(b) or at the direction of the Contracting Officer. The Government reserves the right to disapprove the quality management system or portions thereof when it fails to meet the contractual requirements.

(End of Text)

E-246-H023 QUALITY REQUIREMENT FOR SOFTWARE DEVELOPMENT OR PRODUCTION (NAVSEA) (JAN 2019) (Jan 2019)

The contractor's software quality program shall be an integral part of the overall Quality Management System. Software quality program controls shall be applicable to all project software that is developed, maintained, or modified within the following categories:

- (a) All deliverable software
- (b) All deliverable software that is included as part of deliverable hardware or firmware.
- (c) Non deliverable software (commercially available or user-developed) used for development, fabrication, testing, or acceptance of deliverable software or hardware (includes automated fabrication, test, and inspection/acceptance equipment software and software design, test, and inspection tools).
- (d) Commercially available, reusable, or Government software designated as part of a deliverable item.

(End of Text)

E-246-H014 INSPECTION AND ACCEPTANCE OF ENGINEERING SERVICES (NAVSEA) (OCT 2018) (Oct 2018)

Item(s) 6000-6400 - Inspection and acceptance shall be made by the Contracting Officer's Representative (COR) or a designated representative of the Government.

(End of Text)

Section F - Deliveries or Performance

F.1 Place of Performance

The primary place of performance of this Task Order is NSWCCD. During performance of this Task Order, the Contractor may be required to travel as part of the efforts listed in Section C. The representative travel locations can be found C.6.1.

F.2 Periods of Performance

The Periods of Performance for the Data Items (8000-8450) are as follows:

Item(s)	From	To
8000 & 8050	17 August 2027	16 August 2028
8100 & 8150	17 August 2028	16 August 2029
8200 & 8250	17 August 2029	16 August 2030
8300 & 8350	17 August 2030	16 August 2031
8400 & 8450	17 August 2031	16 August 2032

Overall Contract Delivery Period

Contractor
Destination

Line Item	Delivery Schedule	Quantity	Address and POC
6000AA	Period of Performance From 17 Aug 2027 To 16 Aug 2028	138,720 Labor Hours	
6050AA	Period of Performance From 17 Aug 2027 To 16 Aug 2028	27,744 Labor Hours	
Option Line Item 6100AA	Period of Performance From 17 Aug 2028 To 16 Aug 2029	138,720 Labor Hours	
	Period of Performance From	27,744 Labor Hours	

Option Line Item 6150AA	17 Aug 2028 To 16 Aug 2029		
Option Line Item 6200AA	Period of Performance From 17 Aug 2029 To 16 Aug 2030	138,720 Labor Hours	
Option Line Item 6250AA	Period of Performance From 17 Aug 2029 To 16 Aug 2030	27,744 Labor Hours	
Option Line Item 6300AA	Period of Performance From 17 Aug 2030 To 16 Aug 2031	138,720 Labor Hours	
Option Line Item 6350AA	Period of Performance From 17 Aug 2030 To 16 Aug 2031	27,744 Labor Hours	
Option Line Item 6400AA	Period of Performance From 17 Aug 2031 To 16 Aug 2032	149,088 Labor Hours	
Option Line Item 6450AA	Period of Performance From 17 Aug 2031 To 16 Aug 2032	29,818 Labor Hours	
7000AA	Period of Performance From 17 Aug 2027 To 16 Aug 2028	1 Lot	
7050AA	Period of Performance From 17 Aug 2027 To 16 Aug 2028	1 Lot	
Option Line Item 7100AA	Period of Performance From 17 Aug 2028 To 16 Aug 2029	1 Lot	
Option Line Item 7150AA	Period of Performance From 17 Aug 2028	1 Lot	

	To 16 Aug 2029		
Option Line Item 7200AA	Period of Performance From 17 Aug 2029 To 16 Aug 2030	1 Lot	
Option Line Item 7250AA	Period of Performance From 17 Aug 2029 To 16 Aug 2030	1 Lot	
Option Line Item 7300AA	Period of Performance From 17 Aug 2030 To 16 Aug 2031	1 Lot	
Option Line Item 7350AA	Period of Performance From 17 Aug 2030 To 16 Aug 2031	1 Lot	
Option Line Item 7400AA	Period of Performance From 17 Aug 2031 To 16 Aug 2032	1 Lot	
Option Line Item 7450AA	Period of Performance From 17 Aug 2031 To 16 Aug 2032	1 Lot	
8000	Period of Performance From 17 Aug 2027 To 16 Aug 2028	1 Lot	
8050	Period of Performance From 17 Aug 2027 To 16 Aug 2028	1 Lot	
Option Line Item 8100	Period of Performance From 17 Aug 2028 To 16 Aug 2029	1 Lot	
Option Line Item 8150	Period of Performance From 17 Aug 2028 To 16 Aug 2029	1 Lot	

Option Line Item 8200	Period of Performance From 17 Aug 2029 To 16 Aug 2030	1 Lot	
Option Line Item 8250	Period of Performance From 17 Aug 2029 To 16 Aug 2030	1 Lot	
Option Line Item 8300	Period of Performance From 17 Aug 2030 To 16 Aug 2031	1 Lot	
Option Line Item 8350	Period of Performance From 17 Aug 2030 To 16 Aug 2031	1 Lot	
Option Line Item 8400	Period of Performance From 17 Aug 2031 To 16 Aug 2032	1 Lot	
Option Line Item 8450	Period of Performance From 17 Aug 2031 To 16 Aug 2032	1 Lot	

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.242-15	Stop-Work Order. (Alternate I)	Aug 1989	Alternate I	Apr 1984

Additional Regulation or Supplemental Clauses Incorporated by Full Text

F-247-H001 DELIVERY OF DATA (NAVSEA) (OCT 2018)

(Oct 2018)

All data to be furnished under this contract shall be delivered prepaid to the destination(s) and at the time(s) specified on the Contract Data Requirements List(s), DD Form 1423.

(End of Text)

Section G - Contract Administration Data

G.1 ACCOUNTING DATA

- (a) Accounting Data will appear at the end of Section G.
- (b) All lines of accounting are listed sequentially under a heading that identifies the particular action (award or modification number) under which the funding was obligated.
- (c) Under EPS-CCM, all funding is identified/obligated at the Sub-CLIN (SLIN) level. SLINs are established sequentially by EPS-CCM software.
- (d) Each obligation of funds receives a unique SLIN identifier, unless funds are an increase to an existing line of accounting (ACRN). Thus, an individual project/work area that is funded incremental could have multiple SLINs.
- (e) Accounting for expenditures at the SLIN level is required.

G.2 SPECIAL INVOICE INSTRUCTIONS

- (a) Each SLIN providing funding designates a specific area/work area/Work Breakdown Structure (WBS) item. Tracking and reporting shall be accomplished at the project/work-area/WBS-item level. Each identified project /work area/WBS shall be invoiced by its associated SLIN and ACRN.
- (b) If multiple ACRNs are associated with a single project/work area/WBS, the Contractor shall consult with the Contracting Officer's Representative (COR) for additional invoicing instructions.

G.3 FUNDING PROFILE

It is estimated that these incremental funds will provide for the number of hours of labor stated below. The following table details funding to date:

CLIN	Total CPFF	Funding this Action	Previous Funding	Total Funded	Balance Unfunded	Funded Labor Hours

* To be completed by the Government at time of award based on funded amounts.

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.204-7006	Billing Instructions-Cost Vouchers	May 2023		
252.232-7002	Progress Payments for Foreign Military Sales Acquisitions.	May 2023		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions.

(Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Not Applicable

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Cost Voucher

- (iii) For customary progress payments based on costs incurred, submit a progress payment request.
- (iv) For performance based payments, submit a performance based payment request.
- (v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	** __
Issue By DoDAAC	<u>N00178</u>

Admin DoDAAC	** —
Inspect By DoDAAC	** —
Ship To Code	<u>N/A</u>
Ship From Code	<u>N/A</u>
Mark For Code	<u>N/A</u>
Service Approver (DoDAAC)	<u>N00178</u>
Service Acceptor (DoDAAC)	<u>N00178</u>
Accept at Other DoDAAC	<u>N/A</u>
LPO DoDAAC	<u>N/A</u>
DCAA Auditor DoDAAC	** —
Other DoDAAC(s)	<u>N/A</u>

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

NSWCD-02-WAWF@us.navy.mil

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

G-216-H001 FIXED FEE WITHHOLD--FAR 52.216-8 CLARIFICATION (NAVSEA) (OCT 2018) (Oct 2018)

The Government will withhold 15% of each fixed fee payment starting with the first invoice submitted until a total of \$100,000 of fixed fee has been withheld. Withheld amounts will be released in accordance with FAR 52.216-8, Fixed Fee.

(End of Text)

G-232-H005 SUPPLEMENTAL INSTRUCTIONS REGARDING INVOICING (NAVSEA) (JAN 2019) (Jan 2019)

(a) For other than firm fixed priced contract line item numbers (CLINs), the Contractor agrees to segregate costs incurred under this contract/task order (TO), as applicable, at the lowest level of performance, either at the sub line item number (SLIN) or CLIN level, rather than at the total contract/TO level, and to submit invoices reflecting costs incurred at that level. Supporting documentation in Wide Area Workflow (WAWF) for invoices shall include summaries of work charged during the period covered as well as overall cumulative summaries by individual labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost break down of other direct costs (ODCs), materials, and travel, by technical instruction (TI), SLIN, or CLIN level. For other than firm fixed price subcontracts, subcontractors are also required to provide labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost breakdown of ODCs, materials, and travel invoiced. Supporting documentation may be encrypted before submission to the prime contractor for WAWF invoice submittal. Subcontractors may email encryption code information directly to the Contracting Officer and Contracting Officer Representative (COR). Should the subcontractor lack encryption capability, the subcontractor may also email detailed supporting cost information directly to the Contracting Officer and COR; or other method as agreed to by the Contracting Officer.

(b) Contractors submitting payment requests and receiving reports to WAWF using either Electronic Data Interchange (EDI) or Secure File Transfer Protocol (SFTP) shall separately send an email notification to the COR and Contracting Officer on the same date they submit the invoice in WAWF. No payments shall be due if the contractor does not provide the COR and Contracting Officer email notification as required herein.

(End of Text)

G-242-H001 GOVERNMENT CONTRACT ADMINISTRATION POINTS-OF-CONTACT AND RESPONSIBILITIES (NAVSEA) (OCT 2023) (Oct 2023)

(a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.

(b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

(c) The points of contact are as follows:

(i) The Procuring Contracting Officer (PCO) is:

Name: Jason Simpson
Address: 17632 Dahlgren Road, Suite 102
Dahlgren, VA 22448-5110
Phone: (540) 742- 8783
E-mail: jason.w.simpson.civ@us.navy.mil

(ii) The Contract Specialist is:

Name: Karrington Wilson
Address: 17632 Dahlgren Road, Suite 102

Dahlgren, VA 22448-5110
Phone: (504) 940-5528
E-mail: karrington.r.wilson.civ@us.navy.mil

(iii) The Administrative Contracting Officer (ACO) is:

Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(d) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and responsibilities, will be provided upon award of this contract.

The Contracting Officer's Representative (COR) is:

Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(e) The Alternate Contracting Officer's Representative (ACOR) is responsible for COR responsibilities and functions in the event that the COR is unavailable due to leave, illness, or other official business. The ACOR is appointed by the contracting officer; a copy of the ACOR appointment will be provided upon award of this contract.

The Alternate Contracting Officer's Representative (ACOR) is:

Name: [*]
Address:
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(f) The Contractor's point of contact for performance under this contract is:

Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

[*] To be completed at contract award

(End of Text)

G-242-W001 CONTRACT ADMINISTRATION FUNCTIONS (NAVSEA) (OCT 2018)

(Oct 2018)

(a) In accordance with FAR 42.302(a) all functions listed are delegated to the ACO except the following items to be retained by the PCO:

Conducting Post-Award Orientation Conference and Approving Subcontractors

(b) In accordance with FAR 42.302(b), the following additional functions are delegated to the ACO:

None

(End of Text)

G-242-H002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021)

(Jul 2021)

(a) The policy of this activity is to schedule periods of reduced operations or shutdown during holiday periods. Deliveries will not be accepted on Saturdays, Sundays or Holidays except as specifically requested by the [insert activity name]. All goods or services attempted to be delivered on a Saturday, Sunday or Holiday without specific instructions from the Contracting Officer or his duly appointed representative will be returned to the contractor at the contractor's expense with no cost or liability to the U. S. Government.

(b) The federal Government observes public Holidays that have been established under 5 U.S.C. 6103. The actual date of observance for each of the holidays, for a specific calendar year, may be obtained from the OPM website at OPM.GOV or by using the following direct link: <https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>.

(c) Delayed Opening, Early Dismissal and Closure of Government Facilities. When a Government facility has a delayed opening, is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off, but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent company policy regarding whether they should go/stay home or report to another company facility. Subsequent to an early dismissal, delayed opening, or during periods of inclement weather, onsite contractors should monitor the OPM website as well as radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

(d) When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non-working hours to the contract. Contractors are responsible for predetermining and disclosing their charging practices for early dismissal, delayed openings, or closings in accordance with the FAR, applicable cost accounting standards, and the company's established policy and procedures. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy and procedures.

(e) If you intend to visit the Contracts Office, it is advised that you call for an appointment at least 24 hours in advance.

(f) The hours of operation are as follows:

AREA	FROM	TO
All Areas	0800EST	1600EST

(g) All deliveries to the Receiving Officer, NSWCDD, shall be made Monday through Friday from 0800EST to 1600EST, local time. Deliveries will not be accepted after 1600EST. No deliveries will be accepted on federal government holidays.

(End of Text)

Section H - Special Contract Requirements

Additional Regulation or Supplemental Clauses Incorporated by Full Text

H-209-H004 **RESTRICTIONS RESULTING FROM POTENTIAL ORGANIZATIONAL
CONFLICT OF INTEREST (NAVSEA) (NOV 2022)** **(Nov 2022)**

- (a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.
- (b) It is recognized that the effort to be performed by the Contractor under this contract may create a potential organizational conflict of interest on the instant contract or on a future acquisition. In order to avoid this potential conflict of interest, and at the same time to avoid prejudicing the best interest of the Government, the right of the Contractor to participate in future procurement of equipment or services that are the subject of any work under this contract shall be limited in accordance with FAR 9.5.
- (c) The Contractor agrees that to prevent the existence of conflicting roles and unfair competitive advantage, during the performance of this contract and for a period of three years after completion of performance of this contract, the Contractor, any affiliate, subcontractor, consultant, or employee of the Contractor, any joint venture, any entity into or with which it may subsequently merge or affiliate, or any other successor or assign of the Contractor, shall not furnish to the United States Government, either as a prime contractor or as a subcontractor, or as a consultant to a prime contractor or subcontractor, any system, component or services which is the subject of the work to be performed under this contract, unless an exception under FAR 9.505 exists. This exclusion also does not apply to any work covered by FAR 9.505-2 (a)(3) or (b)(3) or recompetition for those systems, components or services furnished pursuant to this contract.
- (d) Nothing in this requirement is intended to prohibit or preclude the Contractor from marketing or selling to the United States Government its product lines in existence on the effective date of this contract; nor, shall this requirement preclude the Contractor from participating in any research and development or delivering any design development model or prototype of any such equipment. Additionally, sale of catalog or standard commercial items are exempt from this requirement.
- (e) The Contractor shall include this requirement in subcontracts of any tier which involve access to information or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where appropriate.
- (f) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.
- (g) Compliance with this requirement is a material requirement of this contract.

(End of Text)

H-209-H003 **REQUIRED DISCLOSURE OF ORGANIZATIONAL CONFLICT OF INTEREST
(NAVSEA) (NOV 2022)** **(Nov 2022)**

- (a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.
- (b) The Contractor warrants that to the best of its knowledge and belief, and except as otherwise set forth in the contract, at the time of execution of this contract the Contractor does not have any organizational conflict of interest(s) as defined in paragraph (a).
- (c) The Contractor agrees that, if after award, it discovers an actual or potential organizational conflict of interest, it shall make immediate and full disclosure in writing to the Contracting Officer. The notification shall include a description of the actual or potential organizational conflict of interest, a description of the action which the Contractor has taken or proposes to take to avoid, mitigate, or neutralize the conflict, and any other relevant information that would assist the Contracting Officer in making a determination on this matter. Notwithstanding this notification, the Government may terminate the contract for the convenience of the Government if determined to be in the best interest of the Government.
- (d) Notwithstanding paragraph (c) above, if the Contractor was aware, or should have been aware, of an organizational conflict of interest prior to the award of this contract or becomes, or should become, aware of an organizational conflict of interest after award of this contract and does not make an immediate and full disclosure in writing to the Contracting Officer, the Government may terminate this contract for default.
- (e) If the Contractor fails to take action required by this requirement, or required by the Contracting Officer upon receipt of the Contractor's disclosure required by paragraph (c), the Government may terminate this contract for default.
- (f) The Contracting Officer's decision as to the existence or nonexistence of an actual or potential organizational conflict of interest shall be final.
- (g) The Contractor shall promptly notify the Contracting Officer, in writing, if it has been tasked to evaluate or advise the Government concerning its own products or activities, those of its subcontractors, those of one of its prime contractors (to which the contractor is a subcontractor), or those of a competitor in order to ensure proper safeguards exist to guarantee objectivity and to protect the Government's interest.
- (h) The Contractor shall include this requirement in subcontracts of any tier which involve access to information or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where appropriate.
- (i) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.
- (j) Compliance with this requirement is a material requirement of this contract.

(End of Text)

H-216-H002 LEVEL OF EFFORT--ALTERNATE I (NAVSEA) (NOV 2022)

(Nov 2022)

- (a) The total level of effort for the performance of this contract is specified in Section B and includes prime and subcontractor direct labor (for those subcontractors specifically identified in the Contractor's proposal as having hours included in the proposed level of effort).
- (b) Of the total man-hours of direct labor set forth in Section B, it is estimated that _____ (Offeror to fill-in) man-hours are uncompensated effort.

Uncompensated effort is defined as hours provided by personnel in excess of 40 hours per week without additional compensation for such excess work. All other effort is defined as compensated effort. If no effort is indicated in the first sentence of this paragraph, uncompensated effort performed by the Contractor shall not be counted in fulfillment of the level of effort obligations under this contract.

(c) Effort performed in fulfilling the total level of effort obligations specified in Section B shall only include effort performed in direct support of this contract and shall not include time and effort expended on such things as local travel to and from an employee's usual work location, uncompensated effort while on travel status, truncated lunch periods, work (actual or inferred) at an employee's residence or other non-work locations (except as provided in paragraph (i) below), or other time and effort which does not have a specific and direct contribution to the tasks described in Sections B and C.

(d) The level of effort for this contract shall be expended at an average rate of approximately 2,660 hours per week. It is understood and agreed that the rate of man-hours per week may fluctuate in pursuit of the technical objective, provided such fluctuation does not result in the use of the total man-hours of effort prior to the expiration of the term hereof, except as provided in the following paragraphs.

(e) If, during the term hereof, the Contractor finds it necessary to accelerate the expenditure of direct labor to such an extent that the total manhours of effort specified in Section B would be used prior to the expiration of the term, the Contractor shall notify the Contracting Officer in writing setting forth the acceleration required; the probable benefits which would result; an offer to undertake the acceleration at no increase in the estimated cost or fee; and an offer for the additional man-hours to cover the remainder of the term to include a proposed level of effort, cost breakdown, and proposed fee, for continuation of the work until expiration of the term. The offer shall acknowledge that the additional man-hours proposed will be subject to the terms and conditions of this contract and any additions or changes required by then current law, regulations, or directives, and that the offer, with a written notice of acceptance by the Contracting Officer, shall constitute a binding contract. The Contractor shall not accelerate any effort until receipt of a signed contract modification by the Contracting Officer. Any agreement to accelerate will be formalized by contract modification.

(f) The Contracting Officer may, by written order, direct the Contractor to accelerate the expenditure of direct labor such that the total manhours of effort specified in Section B would be used prior to the expiration of the term. This order shall specify the acceleration required and the resulting revised term. The Contractor shall acknowledge this order within five days of receipt.

(g) The Contractor shall provide and maintain an accounting system, determined adequate by the Administrative Contracting Officer, which collects costs incurred and effort (compensated and uncompensated, if any) provided in fulfillment of the level of effort obligations of this contract. The Contractor shall indicate on each invoice the total level of effort claimed during the period covered by the invoice, separately identifying compensated effort and uncompensated effort, if any.

(h) Within 45 days after completion of the work under each separately identified period of performance hereunder, the Contractor shall submit the following information in writing to the Contracting Officer with copies to the cognizant Contract Administration Office and to the Defense Contract Audit Agency office to which vouchers are submitted: (1) the total number of manhours of direct labor expended during the applicable period that separately identifies compensated and uncompensated hours; (2) a breakdown of this compensated total showing the number of manhours expended in each direct labor classification and associated direct and indirect costs; (3) a breakdown of other costs incurred; and (4) the Contractor's estimate of the total allowable cost incurred under the contract for the period. Additionally, in the case of a cost underrun the Contractor shall submit the amount by which the estimated cost of this contract may be reduced to recover excess funds. All submissions shall include subcontractor information.

(i) Unless the Contracting Officer determines that alternative worksite arrangements are detrimental to contract performance, the Contractor may perform up to 20 % of the hours at an alternative worksite, provided the Contractor has a company-approved alternative worksite plan. The primary worksite is the traditional "main

office" worksite. An alternative worksite means an employee's residence or a telecommuting center. A telecommuting center is a geographically convenient office setting as an alternative to an employee's main office. The Government reserves the right to review the Contractor's alternative worksite plan. In the event performance becomes unacceptable, the Contractor will be prohibited from counting the hours performed at the alternative worksite in fulfilling the total level of effort obligations of the contract. Regardless of work location, all contract terms and conditions, including security requirements and labor laws, remain in effect. The Government shall not incur any additional cost nor provide additional equipment for contract performance as a result of the Contractor's election to implement an alternative worksite plan.

(j) Notwithstanding any of the provisions in the above paragraphs and subject to the Limitation of Funds or Limitation of Cost clauses, as applicable, the period of performance may be extended at the discretion of the Contracting Officer, and the estimated cost may be increased in order to permit the Contractor to provide all of the man-hours listed in Section B. The contractor shall continue to be paid fee for each man-hour performed in accordance with the terms of the contract.

(End of Text)

H-223-N001 INFORMATION ON EXPOSURE TO HAZARDOUS MATERIAL (NAVSEA) (JUL 2024) (Jul 2024)

Per 29 CFR 1910.1200, Hazard Communication, you, as a contractor employer with employees working at a Government facility, are hereby informed of the hazardous materials used at the Government facility which your employees may be exposed to while working here and also to suggest appropriate protective measures. Your own responsibilities as an employer, if any, are given in 29 CFR 1910.1200.

1. Hazardous materials your employees may be exposed to. Hazardous materials are materials which are cancer causing agents, toxic or highly toxic agents, reproductive toxins, irritants, corrosives, sensitizers, liver toxins, kidney toxins, agents which act on the blood forming system, and agents which damage the lungs, skins, eyes or mucous membranes. There are many potentially hazardous chemicals present at the Government facility which, unless controlled properly, could present a safety and health problem. The presence of many potentially hazardous materials may be apparent from the manufacturer's warning label on the hazardous material containers. The presence of many potentially hazardous materials may also be apparent due to their physical characteristics, such as the visual appearance of abrasive blasting dust or the distinctive smell of many solvents. These hazardous materials range in type and quantity. Typical hazardous materials include, but are not limited to:

- a. Metals, e.g., mercury, lead, chromium
- b. Paints and adhesives, e.g., varnishes and related products, sealing compounds, asphalt, deck and floor coverings, deck compounds
- c. Corrosives, e.g., acids, alkalis
- d. Compressed and liquefied gas, e.g., nitrogen, argon, oxygen, acetylene
- e. Lubricants and oils, e.g., greases, cutting oils, hydraulic oils, miscellaneous waxes and fats
- f. Fuels, e.g., liquid propellants, fuel oils, oxidizers, solid fuels
- g. Particulates, e.g., asbestos fiberglass, dust, fumes, mist

Depending on the material involved, materials such as these can present physical hazards and or health hazards.

2. Labeling of Hazardous Material. Containers of potentially hazardous chemicals bear manufacturer's labeling, which identifies the chemical and its manufacturer, and provides appropriate hazard warnings. In addition, some materials may be labeled with the National Protection Association (NFPA) 704 label. This label uses a system of color coded symbols and numbers to convey the potential hazard of the material. The contractor should obtain information from NFPA concerning the interpretation of the 704 label.

3. Safety Data Sheets (SDS). The Safety Office maintains copies of manufacturers' SDS for potentially hazardous chemicals/materials that are known to be present in the Government facility. The contractor may, upon request to the Safety Office, review SDS for any specific materials to which contractor employees may be exposed while performing work in the Government facility. This information may be reviewed in the Safety Office.

4. Appropriate Protective Measures. Exposure to potentially hazardous material may occur from inhalation, ingestion or skin contact with the material; therefore, the following precautions should be taken:

- a. Obey signs, directions and warning labels;
- b. Do not use unknown or labeled materials;
- c. Only operate equipment that you are authorized to operate, familiar with, and qualified to operate;
- d. If any health effects (skin rash, trouble breathing, etc.) occur, which you feel are caused by exposure to hazardous material, contact the Safety Office.

5. The Safety Office points of contact are as follows:

Charles.r.lehr2.civ@us.navy.mil
(540) 809-7699
Charles Lehr (00S)

(End of Text)

Section I - Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.203-5	Covenant Against Contingent Fees.	May 2014		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-7	Anti-Kickback Procedures.	Jun 2020		
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity.	May 2014		
52.203-10	Price or Fee Adjustment for Illegal or Improper Activity.	May 2014		
52.203-12	Limitation on Payments to Influence Certain Federal Transactions.	Jun 2020		
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards. (Deviation)	Feb 2026		
52.204-19	Incorporation by Reference of Representations and Certifications. Protecting the Government's Interest When Subcontracting With Contractors	Dec 2014		
52.209-6	Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	Feb 2026		
52.210-1	Market Research. (Deviation)	Feb 2026		
52.211-15	Defense Priority and Allocation Requirements.	Apr 2008		
52.215-2	Audit and Records-Negotiation. (Deviation)	Feb 2026		
52.215-8	Order of Precedence-Uniform Contract Format. (Deviation)	Feb 2026		
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data.	Aug 2011		
52.215-12	Subcontractor Certified Cost or Pricing Data (DEVIATION 2022-O0001)	Feb 2026	Deviation 2022-O0001	Oct 2021
52.215-15	Pension Adjustments and Asset Reversions. (Deviation)	Feb 2026		
52.215-18	Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other Than Pensions. (Deviation)	Feb 2026		
52.215-19	Notification of Ownership Changes. (Deviation)	Feb 2026		
52.215-23	Limitations on Pass-Through Charges. (Deviation)	Feb 2026		
52.216-8	Fixed Fee.	Jun 2011		
52.219-6	Notice of Total Small Business Set-Aside. (Deviation)	Feb 2026		
52.219-8	Utilization of Small Business Concerns. (Deviation)	Feb 2026		
52.219-33	Nonmanufacturer Rule. (Deviation)	Feb 2026		
52.222-1	Notice to the Government of Labor Disputes. (Deviation)	Feb 2026		
52.222-3	Convict Labor. (Deviation)	Feb 2026		
52.222-4	Contract Work Hours and Safety Standards-Overtime Compensation. (Deviation)	Feb 2026		
52.222-35	Equal Opportunity for Veterans. (Deviation)	Feb 2026		
52.222-36	Equal Opportunity for Workers with Disabilities. (Deviation)	Feb 2026		
52.222-37	Employment Reports on Veterans. (Deviation)	Feb 2026		
52.222-40	Notification of Employee Rights Under the National Labor Relations Act. (Deviation)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation)	Feb 2026		
52.222-54	Employment Eligibility Verification. (Deviation)	Feb 2026		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.223-23	Sustainable Products. (Deviation)	Feb 2026		
52.224-3	Privacy Training.	Jan 2017		
52.226-7	Drug-Free Workplace.	May 2024		
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.227-14	Rights in Data-General.	May 2014		
52.228-7	Insurance-Liability to Third Persons.	Mar 1996		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.230-2	Cost Accounting Standards. (Deviation)	Feb 2026		
52.230-6	Administration of Cost Accounting Standards. (Deviation)	Feb 2026		
52.232-17	Interest.	May 2014		
52.232-22	Limitation of Funds. (Deviation)	Feb 2026		
52.232-23	Assignment of Claims.	May 2014		
52.232-25	Prompt Payment. (Alternate I)	Jan 2017	Alternate I	Feb 2002
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-39	Unenforceability of Unauthorized Obligations.	Jun 2013		

52.232-40	Providing Accelerated Payments to Small Business Subcontractors.	Mar 2023		
52.233-1	Disputes. (Deviation)	Feb 2026		
52.233-3	Protest after Award. (Deviation) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	Feb 2026		
52.236-24	Work Oversight in Architect-Engineer Contracts.	Apr 1984		
52.237-2	Protection of Government Buildings, Equipment, and Vegetation.	Apr 1984		
52.240-92	Security Requirements. (Deviation)	Feb 2026		
52.240-93	Basic Safeguarding of Covered Contractor Information Systems. (Deviation)	Feb 2026		
52.242-1	Notice of Intent to Disallow Costs.	Apr 1984		
52.242-3	Penalties for Unallowable Costs. (Deviation)	Feb 2026		
52.242-13	Bankruptcy.	Jul 1995		
52.243-2	Changes-Cost-Reimbursement. (Deviation) (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.245-1	Government Property.	Sep 2021		
52.245-9	Use and Charges.	Apr 2012		
52.246-25	Limitation of Liability-Services.	Feb 1997		
52.246-26	Reporting Nonconforming Items.	Aug 2024		
52.249-6	Termination (Cost-Reimbursement).	May 2004		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7001	Prohibition on Persons Convicted of Fraud or Other Defense-Contract-Related Felonies.	Jan 2023		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.203-7004	Display of Hotline Posters.	Jan 2023		
252.204-7000	Disclosure of Information.	Oct 2016		
252.204-7002	Payment for Contract Line or Subline Items Not Separately Priced.	Apr 2020		
252.204-7003	Control of Government Personnel Work Product.	Apr 1992		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.215-7002	Cost Estimating System Requirements.	Jan 2025		
252.215-7015	Program Should-Cost Review.	Nov 2019		
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements.	Jan 2023		
252.223-7006	Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials.	Sep 2014		
252.225-7004	Report of Intended Performance Outside the United States and Canada - Submission after Award.	Jul 2024		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7028	Exclusionary Policies and Practices of Foreign Governments.	Apr 2003		
252.225-7048	Export-Controlled Items.	Jun 2013		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7058	Postaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.226-7003	Drug-Free Work Force.	Aug 2024		
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.233-7001	Choice of Law (Overseas).	Jun 1997		
252.235-7011	Final Scientific or Technical Report.	Dec 2019		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.246-7004	Safety of Facilities, Infrastructure, and Equipment for Military Operations.	Oct 2010		
252.246-7008	Sources of Electronic Parts.	Jan 2023		

FAR Clauses Incorporated by Full Text

52.215-21 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data-Modifications. (Deviation) (Alternate I) (Feb 2026) Alternate I (Feb 2026)

Alternate I-(Feb 2026) (Deviation). As prescribed in 15.110(u)(1), substitute the following paragraph (b)(1) for paragraph (b)(1) of the basic clause.

(b)(1) The Contractor shall submit certified cost or pricing data, data other than certified cost or pricing data, and supporting attachments prepared in the following format: See Section L.

52.216-7 Allowable Cost and Payment. (Deviation) (Feb 2026)

ALLOWABLE COST AND PAYMENT (FEB 2026) (DEVIATION)

(a) Invoicing.

(1) The Government will make payments to the Contractor when requested as work progresses, but (except for small business concerns) not more often than once every 2 weeks, in amounts determined to be allowable by the Contracting Officer in accordance with Federal Acquisition Regulation (FAR) subpart 31.2 in effect on the date of this contract and the terms of this contract. The Contractor may submit to an authorized representative of the Contracting Officer, in such form and reasonable detail as the representative may require, an invoice or voucher supported by a statement of the claimed allowable cost for performing this contract.

(2) Contract financing payments are not subject to the interest penalty provisions of the Prompt Payment Act. Interim payments made prior to the final payment under the contract are contract financing payments, except interim payments if this contract contains Alternate I to the clause at 52.232-25.

(3) The designated payment office will make interim payments for contract financing on the TBD[Contracting Officer insert day as prescribed by agency head; if not prescribed, insert "30th"] day after the designated billing office receives a proper payment request. In the event that the Government requires an audit or other review of a specific payment request to ensure compliance with the terms and conditions of the contract, the designated payment office is not compelled to make payment by the specified due date.

(b) Reimbursing costs.

(1) For the purpose of reimbursing allowable costs (except as provided in paragraph (b)(2) of this clause, with respect to pension, deferred profit sharing, and employee stock ownership plan contributions), the term "costs" includes only-

(i) Those recorded costs that, at the time of the request for reimbursement, the Contractor has paid by cash, check, or other form of actual payment for items or services purchased directly for the contract;

(ii) When the Contractor is not delinquent in paying costs of contract performance in the ordinary course of business, costs incurred, but not necessarily paid, for-

(A) Supplies and services purchased directly for the contract and associated financing payments to subcontractors, provided payments determined due will be made-

(1) In accordance with the terms and conditions of a subcontract or invoice; and

(2) Ordinarily within 30 days of the submission of the Contractor's payment request to the Government;

(B) Materials issued from the Contractor's inventory and placed in the production process for use on the contract;

(C) Direct labor;

(D) Direct travel;

(E) Other direct in-house costs; and

(F) Properly allocable and allowable indirect costs, as shown in the records maintained by the Contractor for purposes of obtaining reimbursement under Government contracts; and

(iii) The amount of financing payments that have been paid by cash, check, or other forms of payment to subcontractors.

(2) Accrued costs of Contractor contributions under employee pension plans shall be excluded until actually paid unless-

(i) The Contractor's practice is to make contributions to the retirement fund quarterly or more frequently; and

(ii) The contribution does not remain unpaid 30 days after the end of the applicable quarter or shorter payment period (any contribution remaining unpaid shall be excluded from the Contractor's indirect costs for payment purposes).

(3) Notwithstanding the audit and adjustment of invoices or vouchers under paragraph (g) of this clause, allowable indirect costs under this contract shall be obtained by applying indirect cost rates established in accordance with paragraph (d) of this clause.

(4) Any statements in specifications or other documents incorporated in this contract by reference designating performance of services or furnishing of materials at the Contractor's expense or at no cost to the Government shall be disregarded for purposes of cost-reimbursement under this clause.

(c) *Small business concerns.* A small business concern may receive more frequent payments than every 2 weeks.

(d) Final indirect cost rates.

(1) Final annual indirect cost rates and the appropriate bases shall be established in accordance with subpart 42.7 of the Federal Acquisition Regulation (FAR) in effect for the period covered by the indirect cost rate proposal.

(2)

(i) The Contractor shall submit an adequate final indirect cost rate proposal to the Contracting Officer (or cognizant Federal agency official) and auditor within the 6-month period following the expiration of each of its fiscal years. Reasonable extensions, for exceptional circumstances only, may be requested in writing by the Contractor and granted in writing by the Contracting Officer. The Contractor shall support its proposal with adequate supporting data.

(ii) The proposed rates shall be based on the Contractor's actual cost experience for that period. The appropriate Government representative and the Contractor shall establish the final indirect cost rates as promptly as practical after receipt of the Contractor's proposal.

(iii) An adequate indirect cost rate proposal shall include the following data unless otherwise specified by the cognizant Federal agency official:

(A) Summary of all claimed indirect expense rates, including pool, base, and calculated indirect rate.

(B) *General and Administrative expenses (final indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts).

(C) *Overhead expenses (final indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) for each final indirect cost pool.

(D) *Occupancy expenses (intermediate indirect cost pool).* Schedule of claimed expenses by element of cost as identified in accounting records (Chart of Accounts) and expense reallocation to final indirect cost pools.

(E) Claimed allocation bases, by element of cost, used to distribute indirect costs.

(F) Facilities capital cost of money factors computation.

(G) Reconciliation of books of account (*i.e.*, General Ledger) and claimed direct costs by major cost element.

(H) Schedule of direct costs by contract and subcontract and indirect expense applied at claimed rates, as well as a subsidiary schedule of Government participation percentages in each of the allocation base amounts.

(I) Schedule of cumulative direct and indirect costs claimed and billed by contract and subcontract.

(J) *Subcontract information.* Listing of subcontracts awarded to companies for which the contractor is the prime or upper-tier contractor (include prime and subcontract numbers; subcontract value and award type; amount claimed during the fiscal year; and the subcontractor name, address, and point of contact information).

(K) Summary of each time-and-materials and labor-hour contract information, including labor categories, labor rates, hours, and amounts; direct materials; other direct costs; and, indirect expense applied at claimed rates.

(L) Reconciliation of total payroll per IRS form 941 to total labor costs distribution.

(M) Listing of decisions/agreements/approvals and description of accounting/organizational changes.

(N) Certificate of final indirect costs (see 52.242-4, Certification of Final Indirect Costs).

(O) Contract closing information for contracts physically completed in this fiscal year (include contract number, period of performance, contract ceiling amounts, contract fee computations, level of effort, and indicate if the contract is ready to close).

(iv) The following supplemental information is not required to determine if a proposal is adequate, but may be required during the audit process:

(A) Comparative analysis of indirect expense pools detailed by account to prior fiscal year and budgetary data.

(B) General organizational information and limitation on allowability of compensation for certain contractor personnel. See 31.205-6(p).

(C) Identification of prime contracts under which the contractor performs as a subcontractor.

(D) Description of accounting system (excludes contractors required to submit a CAS Disclosure Statement or contractors where the description of the accounting system has not changed from the previous year's submission).

(E) Procedures for identifying and excluding unallowable costs from the costs claimed and billed (excludes contractors where the procedures have not changed from the previous year's submission).

(F) Certified financial statements and other financial data (*e.g.*, trial balance, compilation, review, *etc.*).

(G) Management letter from outside CPAs concerning any internal control weaknesses.

(H) Actions that have been and/or will be implemented to correct the weaknesses described in the management letter from subparagraph (G) of this section.

(I) List of all internal audit reports issued since the last disclosure of internal audit reports to the Government.

(J) Annual internal audit plan of scheduled audits to be performed in the fiscal year when the final indirect cost rate submission is made.

(K) Federal and State income tax returns.

(L) Securities and Exchange Commission 10-K annual report.

(M) Minutes from board of directors meetings.

(N) Listing of delay claims and termination claims submitted which contain costs relating to the subject fiscal year.

(O) Contract briefings, which generally include a synopsis of all pertinent contract provisions, such as: contract type, contract amount, product or service(s) to be provided, contract performance period, rate ceilings, advance approval requirements, pre-contract cost allowability limitations, and billing limitations.

(v) The Contractor shall update the billings on all contracts to reflect the final settled rates and update the schedule of cumulative direct and indirect costs claimed and billed, as required in paragraph (d)(2)(iii)(I) of this section, within 60 days after settlement of final indirect cost rates.

(3) The Contractor and the appropriate Government representative shall execute a written understanding setting forth the final indirect cost rates. The understanding shall specify (i) the agreed-upon final annual indirect cost rates, (ii) the bases to which the rates apply, (iii) the periods for which the rates apply, (iv) any specific indirect cost items treated as direct costs in the settlement, and (v) the affected contract and/or subcontract, identifying any with advance agreements or special terms and the applicable rates. The understanding shall not change any monetary ceiling, contract obligation, or specific cost allowance or disallowance provided for in this contract. The understanding is incorporated into this contract upon execution.

(4) Failure by the parties to agree on a final annual indirect cost rate shall be a dispute within the meaning of the Disputes clause.

(5) Within 120 days (or longer period if approved in writing by the Contracting Officer) after settlement of the final annual indirect cost rates for all years of a physically complete contract, the Contractor shall submit a completion invoice or voucher to reflect the settled amounts and rates. The completion invoice or voucher shall include settled subcontract amounts and rates. The prime contractor is responsible for settling subcontractor amounts and rates included in the completion invoice or voucher and providing status of subcontractor audits to the contracting officer upon request.

(6)

(i) If the Contractor fails to submit a completion invoice or voucher within the time specified in paragraph (d)(5) of this clause, the Contracting Officer may-

(A) Determine the amounts due to the Contractor under the contract; and

(B) Record this determination in a unilateral modification to the contract.

(ii) This determination constitutes the final decision of the Contracting Officer in accordance with the Disputes clause.

(e) *Billing rates.* Until final annual indirect cost rates are established for any period, the Government shall reimburse the Contractor at billing rates established by the Contracting Officer or by an authorized representative (the cognizant auditor), subject to adjustment when the final rates are established. These billing rates-

(1) Shall be the anticipated final rates; and

(2) May be prospectively or retroactively revised by mutual agreement, at either party's request, to prevent substantial overpayment or underpayment.

(f) *Quick-closeout procedures.* Quick-closeout procedures are applicable when the conditions in FAR 42.708(a) are satisfied.

(g) *Audit.* At any time or times before final payment, the Contracting Officer may have the Contractor's invoices or vouchers and statements of cost audited. Any payment may be-

(1) Reduced by amounts found by the Contracting Officer not to constitute allowable costs; or

(2) Adjusted for prior overpayments or underpayments.

(h) Final payment.

(1) Upon approval of a completion invoice or voucher submitted by the Contractor in accordance with paragraph (d)(5) of this clause, and upon the Contractor's compliance with all terms of this contract, the Government shall promptly pay any balance of allowable costs and that part of the fee (if any) not previously paid.

(2) The Contractor shall pay to the Government any refunds, rebates, credits, or other amounts (including interest, if any) accruing to or received by the Contractor or any assignee under this contract, to the extent that those amounts are properly allocable to costs for which the Contractor has been reimbursed by the Government. Reasonable expenses incurred by the Contractor for securing refunds, rebates, credits, or other amounts shall be allowable costs if approved by the Contracting Officer. Before final payment under this contract, the Contractor and each assignee whose assignment is in effect at the time of final payment shall execute and deliver-

(i) An assignment to the Government, in form and substance satisfactory to the Contracting Officer, of refunds, rebates, credits, or other amounts (including interest, if any) properly allocable to costs for which the Contractor has been reimbursed by the Government under this contract; and

(ii) A release discharging the Government, its officers, agents, and employees from all liabilities, obligations, and claims arising out of or under this contract, except-

(A) Specified claims stated in exact amounts, or in estimated amounts when the exact amounts are not known;

(B) Claims (including reasonable incidental expenses) based upon liabilities of the Contractor to third parties arising out of the performance of this contract; provided, that the claims are not known to the Contractor on the date of the execution of the release, and that the Contractor gives notice of the claims in writing to the Contracting Officer within 6 years following the release date or notice of final payment date, whichever is earlier; and

(C) Claims for reimbursement of costs, including reasonable incidental expenses, incurred by the Contractor under the patent clauses of this contract, excluding, however, any expenses arising from the Contractor's indemnification of the Government against patent liability.

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within TBD.

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within the period specified; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years (months) (years).

(End of clause)

52.219-14 Limitations on Subcontracting. (Deviation)

(Feb 2026)

Limitations on Subcontracting (Feb 2026) (Deviation)

(a) This clause does not apply to the unrestricted portion of a partial set-aside.

(b) *Definition. Similarly situated entity*, as used in this clause, means a first-tier subcontractor, including an independent contractor, that-

(1) Has the same small business program status as that which qualified the prime contractor for the award (e.g., for a small business set-aside contract, any small business concern, without regard to its socioeconomic status); and

(2) Is considered small for the size standard under the North American Industry Classification System (NAICS) code the prime contractor assigned to the subcontract.

(c) *Applicability.* This clause applies only to-

(1) Contracts that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(2) Part or parts of a multiple-award contract that have been set aside for any of the small business concerns identified in 19.000(a)(3);

(3) Contracts that have been awarded on a sole-source basis in accordance with sections 19.105, 19.106, 19.107, and 19.108;

(4) Orders expected to exceed the simplified acquisition threshold and that are set aside for small business concerns under multiple-award contracts, as described in 8.4 and 16.5;

(5) Orders, regardless of dollar value, that are set aside in accordance with sections 19.105, 19.106, 19.107, and 19.108 under multiple-award contracts, as described in 8.4 and 16.5; and

(6) Contracts using the HUBZone price evaluation preference to award to a HUBZone small business concern unless the concern waived the evaluation preference.

(d) *Independent contractors.* An independent contractor shall be considered a subcontractor.

(e) By submission of an offer and execution of a contract, the Contractor agrees that in performance of a contract assigned a North American Industry Classification System (NAICS) code for-

(1) Services (except construction), it will not pay more than 50 percent of the amount paid by the Government for contract performance to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract;

(2) Supplies (other than procurement from a nonmanufacturer of such supplies), it will not pay more than 50 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 50 percent subcontract amount that cannot be exceeded. When a contract includes both supplies and services, the 50 percent limitation shall apply only to the supply portion of the contract;

(3) General construction, it will not pay more than 85 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 85 percent subcontract amount that cannot be exceeded; or

(4) Construction by special trade contractors, it will not pay more than 75 percent of the amount paid by the Government for contract performance, excluding the cost of materials, to subcontractors that are not similarly situated entities. Any work that a similarly situated entity further subcontracts will count towards the prime contractor's 75 percent subcontract amount that cannot be exceeded.

(f) The Contractor shall comply with the limitations on subcontracting as follows:

(1) For contracts, in accordance with paragraphs (c)(1), (2), (3) and (6) of this clause-

☒ By the end of the base term of the contract and then by the end of each subsequent option period; or

☐ By the end of the performance period for each order issued under the contract.

(2) For orders, in accordance with paragraphs (c)(4) and (5) of this clause, by the end of the performance period for the order.

(g) A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (e) of this clause will be performed by the aggregate of the joint venture participants.

(1) In a joint venture comprised of a small business protege and its mentor approved by the Small Business Administration, the small business protege shall perform at least 40 percent of the work performed by the joint venture. Work performed by the small business protege in the joint venture must be more than administrative functions.

(2) In an 8(a) joint venture, the 8(a) participant(s) shall perform at least 40 percent of the work performed by the joint venture. Work performed by the 8(a) participants in the joint venture must be more than administrative functions.

(End of clause)

52.219-28 Postaward Small Business Program Rerepresentation. (Deviation)

(Feb 2026)

POSTAWARD SMALL BUSINESS PROGRAM REREPRESENTATION (FEB 2026) (DEVIATION)

(a) *Definitions.* As used in this clause-

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at <https://www.sba.gov/document/support-table-size-standards>.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it ☐ is, ☐ is not a small business concern under ____ NAICS Code assigned to ____ contract number.

(2) [Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause.] The Contractor represents that it ☐ is, ☐ is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The Contractor represents that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [____ The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program.* The Contractor represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.*[*Complete only if the offeror is a HUBZone small business concern.*] The offeror represents, as part of its offer, that It ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [____The Contractor shall enter the name and unique entity identifier of each party to the joint venture: .] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern. [____Contractor to sign and date and insert authorized signer's name and title.]

(End of clause)

52.222-2 Payment for Overtime Premiums. (Deviation)

(Feb 2026)

PAYMENT FOR OVERTIME PREMIUMS (FEB 2026) (DEVIATION)

(a) The use of overtime is authorized under this contract if the overtime premium cost does not exceed * 0 or the overtime premium is paid for work-

(1) Necessary to cope with emergencies such as those resulting from accidents, natural disasters, breakdowns of production equipment, or occasional production bottlenecks of a sporadic nature;

(2) By indirect-labor employees such as those performing duties in connection with administration, protection, transportation, maintenance, standby plant protection, operation of utilities, or accounting;

(3) To perform tests, industrial processes, laboratory procedures, loading or unloading of transportation conveyances, and operations in flight or afloat that are continuous in nature and cannot reasonably be interrupted or completed otherwise; or

(4) That will result in lower overall costs to the Government.

(b) Any request for estimated overtime premiums that exceeds the amount specified above must include all estimated overtime for contract completion and must-

(1) Identify the work unit; *e.g.*, department or section in which the requested overtime will be used, together with present workload, staffing, and other data of the affected unit sufficient to permit the Contracting Officer to evaluate the necessity for the overtime;

(2) Demonstrate the effect that denial of the request will have on the contract delivery or performance schedule;

(3) Identify the extent to which approval of overtime would affect the performance or payments in connection with other Government contracts, together with identification of each affected contract; and

(4) Provide reasons why the required work cannot be performed by using multishift operations or by employing additional personnel.

* Insert either "zero" or the dollar amount agreed to during negotiations.

(End of clause)

52.242-4 Certification of Final Indirect Costs.

(Jan 1997)

CERTIFICATION OF FINAL INDIRECT COSTS (JAN 1997)

(a) The Contractor shall-

(1) Certify any proposal to establish or modify final indirect cost rates;

(2) Use the format in paragraph (c) of this clause to certify; and

(3) Have the certificate signed by an individual of the Contractor's organization at a level no lower than a vice president or chief financial officer of the business segment of the Contractor that submits the proposal.

(b) Failure by the Contractor to submit a signed certificate, as described in this clause, may result in final indirect costs at rates unilaterally established by the Contracting Officer.

(c) The certificate of final indirect costs shall read as follows:

Certificate of Final Indirect Costs

This is to certify that I have reviewed this proposal to establish final indirect cost rates and to the best of my knowledge and belief:

1. All costs included in this proposal (identify proposal and date) to establish final indirect cost rates for (identify period covered by rate) are allowable in accordance with the cost principles of the Federal Acquisition Regulation (FAR) and its supplements applicable to the contracts to which the final indirect cost rates will apply; and

2. This proposal does not include any costs which are expressly unallowable under applicable cost principles of the FAR or its supplements.

Firm: _____

Signature: _____

Name of Certifying Official: _____

Title: _____

Date of Execution: _____

(End of clause)

52.244-2 Subcontracts.

(Jun 2020)

SUBCONTRACTS (JUN 2020)

(a) *Definitions.* As used in this clause-

"Approved purchasing system" means a Contractor's purchasing system that has been reviewed and approved in accordance with part 44 of the Federal Acquisition Regulation (FAR).

"Consent to subcontract" means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that-

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds-

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

(e)

(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting-

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (b), (c), or (d) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination-

(1) Of the acceptability of any subcontract terms or conditions;

(2) Of the allowability of any cost under this contract; or

(3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

=====

(End of clause)

52.252-2 Clauses Incorporated by Reference.

(Feb 1998)

Clauses Incorporated By Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

===== <https://www.acquisition.gov> =====

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: CMMC Level 2 (Self) for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d)(1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

Section J - List of Attachments

Attachment J.1: Government Furnished Property (GFP) Attachment

Attachment J.2: Quality Assurance Surveillance Plan (QASP)

Attachment J.3: Staffing Plan Example

Attachment J.4: Personnel Qualifications Guide

Attachment J.5: Past Performance Reference

Attachment J.6: Cost Proposal Spreadsheet Example

Attachment J.7: DD254

Attachment J.8: Statement of Work (SOW)

Attachment J.9: Contract Data Requirements List (CDRLs) (Exhibit A)

Attachments:

Number	Attachment Name	Attachment Description	Reference Identifier	Date
01	J.1- Government Furnished Property Attachment			31 Mar 2026
02	J.2-Quality Assurance Surveillance Plan (QASP)			06 Mar 2026
03	J.3- Staffing Plan Example			17 Mar 2026
04	J.4-Personnel Qualifications Guide			06 Mar 2026
05	J.5-Past Performance Reference			06 Mar 2026
06	J.6 - Cost Proposal Spreadsheet (Example)			17 Mar 2026
08	J.8- Statement of Work	Statement of Work		17 Mar 2026
	J.9-Contract Data	Data item submittals under CDRLs, not elsewhere		23 Mar

09	Requirements List	listed		2026
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Section K - Representations, Certification, & Other Statements

K.1 ANNUAL REPRESENTATIONS AND CERTIFICATIONS

Offerors are not required to submit representation or certifications in response to this solicitation or its subsequent Task Order award, if any, as its representations and certifications are already incorporated at the MAC level per MAC clause 52.204-19. Additional representations and certifications, specified below, shall be submitted with the Offeror's proposal to this Task Order solicitation.

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7057	Preaward Disclosure of Employment of Individuals Who Work in the People's Republic of China.	Aug 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		

FAR Clauses Incorporated by Full Text

52.209-5 Certification Regarding Responsibility Matters. (Deviation) (Feb 2026)

CERTIFICATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION)

(a)

(1) The Offeror certifies, to the best of its knowledge and belief, that-

(i) The Offeror and/or any of its Principals-

(A) Are ☐ are not ☐ presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(B) Have ☐ have not ☐, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, State, or local) contract or subcontract; violation of Federal or State antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property (if offeror checks "have", the offeror shall also see 52.209-7, if included in this solicitation);

(C) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in paragraph (a)(1)(i)(B) of this provision; and

(D) Have ☐, have not ☐, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104-5(a)(2) for which the liability remains unsatisfied. Federal taxes are considered delinquent if both of the following criteria apply:

(1) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if a pending administrative or judicial challenge remains. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(2) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) The Offeror has ☐ has not ☐, within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal agency.

(2) "Principal," for the purposes of this certification, means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The Offeror shall provide immediate written notice to the Contracting Officer if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(c) A certification that any of the items in paragraph (a) of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the Government will consider the certification in connection with a determination of the Offeror's responsibility. Failure of the Offeror to furnish a certification or provide such additional information as requested by the Contracting Officer may render the Offeror nonresponsible.

(d) This provision does not require establishment of a system of records in order to render, in good faith, the certification required by paragraph (a). The knowledge and information of an Offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(e) The certification in paragraph (a) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Government, the Contracting Officer may terminate the contract resulting from this solicitation for default.

(End of provision)

52.209-7 Information Regarding Responsibility Matters. (Deviation)

(Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in-
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Deviation) (Feb 2026)

REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2026) (DEVIATION)

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.209-13 Violation of Arms Control Treaties or Agreements-Certification. (Deviation) (Feb 2026)

VIOLATION OF ARMS CONTROL TREATIES OR AGREEMENTS-CERTIFICATION (FEB 2026) (DEVIATION)

(a) This provision does not apply to acquisitions at or below the simplified acquisition threshold or to acquisitions of commercial products and commercial services as defined in Federal Acquisition Regulation 2.101.

(b) *Certification. [Offeror shall check either (1) or (2).]*

☐ (1) The Offeror certifies that-

(i) It does not engage and has not engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; and

(ii) No entity owned or controlled by the Offeror has engaged in any activity that contributed to or was a significant factor in the President's or Secretary of State's determination that a foreign country is in violation of its obligations undertaken in any arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. The determinations are described in the most recent unclassified annual report provided to Congress pursuant to section 403 of the Arms Control and Disarmament Act (22 U.S.C. 2593a). The report is available at <https://www.state.gov/bureaus-offices/under-secretary-for-arms-control-and-international-security-affairs/bureau-of-arms-control-verification-and-compliance/>; or

☐ (2) The Offeror is providing separate information with its offer in accordance with paragraph (d)(2) of this provision.

(c) Procedures for reviewing the annual unclassified report (see paragraph (b)(1) of this provision). For clarity, references to the report in this section refer to the entirety of the annual unclassified report, including any separate reports that are incorporated by reference into the annual unclassified report.

(1) Check the table of contents of the annual unclassified report and the country section headings of the reports incorporated by reference to identify the foreign countries listed there. Determine whether the Offeror or any person owned or controlled by the Offeror may have engaged in any activity related to one or more of such foreign countries.

(2) If such activity might have occurred, review all findings in the report associated with those foreign countries to determine whether or not each such foreign country was determined to be in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or to be not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. For clarity, in the annual report an explicit certification of non-compliance is equivalent to a determination of violation. However, the following statements in the annual report are not equivalent to a determination of violation:

- (i) An inability to certify compliance.
- (ii) An inability to conclude compliance.
- (iii) A statement about compliance concerns.

(3) If so, determine whether the Offeror or any person owned or controlled by the Offeror has engaged in any activity that contributed to or is a significant factor in the determination in the report that one or more of these foreign countries is in violation of its obligations undertaken in an arms control, nonproliferation, or disarmament agreement to which the United States is a party, or is not adhering to its arms control, nonproliferation, or disarmament commitments in which the United States is a participating state. Review the narrative for any such findings reflecting a determination of violation or non-adherence related to those foreign countries in the report, including the finding itself, and to the extent necessary, the conduct giving rise to the compliance or adherence concerns, the analysis of compliance or adherence concerns, and efforts to resolve compliance or adherence concerns.

(4) The Offeror may submit any questions with regard to this report by email to NDAA1290Cert@state.gov. To the extent feasible, the Department of State will respond to such email inquiries within 3 business days.

(d) Do not submit an offer unless-

- (1) A certification is provided in paragraph (b)(1) of this provision and submitted with the offer; or
- (2) In accordance with paragraph (b)(2) of this provision, the Offeror provides with its offer information that the President of the United States has
 - (i) Waived application under 22 U.S.C. 2593e(d) or (e); or
 - (ii) Determined under 22 U.S.C. 2593e(g)(2) that the entity has ceased all activities for which measures were imposed under 22 U.S.C. 2593e(b).

(e) *Remedies.* The certification in paragraph (b)(1) of this provision is a material representation of fact upon which reliance was placed when making award. If the Government later determines that the Offeror knowingly submitted a false certification, in addition to other remedies available to the Government, such as suspension or debarment, the Contracting Officer may terminate any contract resulting from the false certification.

(End of provision)

52.219-1 Small Business Program Representations. (Deviation)

(Feb 2026)

Small Business Program Representations (Feb 2026) (Deviation)

(a) *Definitions.* As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern-

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)

(1) The North American Industry Classification System (NAICS) code for this acquisition is 541330.

(2) The small business size standard is \$47 Million.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that-

(i) it ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [_____
The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it ☐ is, ☐ is not a women-owned small disadvantage business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it ☐ is, ☐ is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(5) *SDVOSB joint venture eligible under the SDVOSB Program.* [Complete only if the offeror is certified as a SDVOSB concern]. The offeror represents as part of its offer that it ☐ is, ☐ is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [Complete only if the offeror is a HUBZone small business concern.] The offeror represents, as part of its offer, that it ☐ is, ☐ is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [_____The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice.* Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be-

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.227-15 Representation of Limited Rights Data and Restricted Computer Software.

(Dec 2007)

REPRESENTATION OF LIMITED RIGHTS DATA AND RESTRICTED COMPUTER SOFTWARE (DEC 2007)

(a) This solicitation sets forth the Government's known delivery requirements for data (as defined in the clause at 52.227-14, Rights in Data-General). Any resulting contract may also provide the Government the option to order additional data under the Additional Data Requirements clause at 52.227-16, if included in the contract. Any data delivered under the resulting contract will be subject to the Rights in Data-General clause at 52.227-14 included in this contract. Under the latter clause, a Contractor may withhold from delivery data that qualify as limited rights data or restricted computer software, and deliver form, fit, and function data instead. The latter clause also may be used with its Alternates II and/or III to obtain delivery of limited rights data or restricted computer software, marked with limited rights or restricted rights notices, as appropriate. In addition, use of Alternate V with this latter clause provides the Government the right to inspect such data at the Contractor's facility.

(b) By completing the remainder of this paragraph, the offeror represents that it has reviewed the requirements for the delivery of technical data or computer software and states [offeror check appropriate block]-

☐ None of the data proposed for fulfilling the data delivery requirements qualifies as limited rights data or restricted computer software; or

☐ Data proposed for fulfilling the data delivery requirements qualify as limited rights data or restricted computer software and are identified as follows:

(c) Any identification of limited rights data or restricted computer software in the offeror's response is not determinative of the status of the data should a contract be awarded to the offeror.

(End of provision)

52.230-1 Cost Accounting Standards Notices and Certification. (Deviation)

(Feb 2026)

COST ACCOUNTING STANDARDS NOTICES AND CERTIFICATION (FEB 2026) (DEVIATION)

Note: This notice does not apply to small businesses or foreign governments. This notice is in three parts, identified by Roman numerals I through III.

Offerors shall examine each part and provide the requested information in order to determine Cost Accounting Standards (CAS) requirements applicable to any resultant contract.

If the offeror is an educational institution, part II does not apply unless the contemplated contract will be subject to full or modified CAS coverage pursuant to 48 CFR 9903.201-2(c)(5) or 9903.201-2(c)(6), respectively.

I. DISCLOSURE STATEMENT-COST ACCOUNTING PRACTICES AND CERTIFICATION

(a) Any contract in excess of the lower CAS threshold specified in Federal Acquisition Regulation (FAR) 30.205(b) resulting from this solicitation will be subject to the requirements of the Cost Accounting Standards Board (48 CFR chapter 99), except for those contracts which are exempt as specified in 48 CFR 9903.201-1.

(b) Any offeror submitting a proposal which, if accepted, will result in a contract subject to the requirements of 48 CFR chapter 99 must, as a condition of contracting, submit a Disclosure Statement as required by 48 CFR 9903.202. When required, the Disclosure Statement must be submitted as a part of the offeror's proposal under this solicitation unless the offeror has already submitted a Disclosure Statement disclosing the practices used in connection with the pricing of this proposal. If an applicable Disclosure Statement has already been submitted, the offeror may satisfy the requirement for submission by providing the information requested in paragraph (c) of part I of this provision.

Caution: In the absence of specific regulations or agreement, a practice disclosed in a Disclosure Statement shall not, by virtue of such disclosure, be deemed to be a proper, approved, or agreed-to practice for pricing proposals or accumulating and reporting contract performance cost data.

(c) Check the appropriate box below:

(1) ☐ *Certificate of Concurrent Submission of Disclosure Statement.* The offeror hereby certifies that, as a part of the offer, copies of the Disclosure Statement have been submitted as follows:

(i) Original and one copy to the cognizant Administrative Contracting Officer (ACO) or cognizant Federal agency official authorized to act in that capacity (Federal official), as applicable; and

(ii) One copy to the cognizant Federal auditor.

(Disclosure must be on Form No. CASB DS-1 or CASB DS-2, as applicable. Forms may be obtained from the cognizant ACO or Federal official.)

Date of Disclosure Statement: _____ Name and Address of Cognizant ACO or Federal Official Where Filed: _____

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the Disclosure Statement.

(2) ☐ *Certificate of Previously Submitted Disclosure Statement.* The offeror hereby certifies that the required Disclosure Statement was filed as follows:

Date of Disclosure Statement: _____ Name and Address of Cognizant ACO or Federal Official Where Filed: _____

The offeror further certifies that the practices used in estimating costs in pricing this proposal are consistent with the cost accounting practices disclosed in the applicable Disclosure Statement.

(3) ☐ *Certificate of Monetary Exemption.* The offeror hereby certifies that the offeror, together with all divisions, subsidiaries, and affiliates under common control, did not receive net awards of negotiated prime contracts and subcontracts subject to CAS totaling \$50 million or more in the cost accounting period immediately preceding the period in which this proposal was submitted. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

(4) ☐ *Certificate of Interim Exemption.* The offeror hereby certifies that (i) the offeror first exceeded the monetary exemption for disclosure, as defined in (3) of this subsection, in the cost accounting period immediately preceding the period in which this offer was submitted and (ii) in accordance with 48 CFR 9903.202-1, the offeror is not yet required to submit a Disclosure Statement. The offeror further certifies that if an award resulting from this proposal has not been made within 90 days after the end of that period, the offeror will immediately submit a revised certificate to the Contracting Officer, in the form specified under paragraph (c)(1) or (c)(2) of part I of this provision, as appropriate, to verify submission of a completed Disclosure Statement.

Caution: Offerors currently required to disclose because they were awarded a CAS-covered prime contract or subcontract of \$50 million or more in the current cost accounting period may not claim this exemption (4). Further, the exemption applies only in connection with proposals submitted before expiration of the 90-day period following the cost accounting period in which the monetary exemption was exceeded.

II. Cost Accounting Standards-Eligibility for Modified Contract Coverage

If the offeror is eligible to use the modified provisions of 48 CFR 9903.201-2(b) and elects to do so, the offeror shall indicate by checking the box below. Checking the box below shall mean that the resultant contract is subject to the Disclosure and Consistency of Cost Accounting Practices clause in lieu of the Cost Accounting Standards clause.

☐ The offeror hereby claims an exemption from the Cost Accounting Standards clause under the provisions of 48 CFR 9903.201-2(b) and certifies that the offeror is eligible for use of the Disclosure and Consistency of Cost Accounting Practices clause because during the cost accounting period immediately preceding the period in which this proposal was submitted, the offeror received less than \$50 million in awards of CAS-covered prime contracts and subcontracts. The offeror further certifies that if such status changes before an award resulting from this proposal, the offeror will advise the Contracting Officer immediately.

Caution: An offeror may not claim the above eligibility for modified contract coverage if this proposal is expected to result in the award of a CAS-covered contract of \$50 million or more or if, during its current cost accounting period, the offeror has been awarded a single CAS-covered prime contract or subcontract of \$50 million or more.

III. Additional Cost Accounting Standards Applicable to Existing Contracts

The offeror shall indicate below whether award of the contemplated contract would, in accordance with paragraph (a)(3) of the Cost Accounting Standards clause, require a change in established cost accounting practices affecting existing contracts and subcontracts.

☐ Yes	☐ No
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(End of provision)

52.230-7 **Proposal Disclosure-Cost Accounting Practice Changes.**

(Apr 2005)

PROPOSAL DISCLOSURE-COST ACCOUNTING PRACTICE CHANGES (APR 2005)

The offeror shall check "yes" below if the contract award will result in a required or unilateral change in cost accounting practice, including unilateral changes requested to be desirable changes.

☐ Yes ☐ No

If the offeror checked "Yes" above, the offeror shall-

- (1) Prepare the price proposal in response to the solicitation using the changed practice for the period of performance for which the practice will be used; and
- (2) Submit a description of the changed cost accounting practice to the Contracting Officer and the Cognizant Federal Agency Official as pricing support for the proposal.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

K-227-W001 INSTRUCTIONS FOR OBTAINING EXPORT-CONTROLLED TECHNICAL DATA (NAVSEA) (MAY 2022) (May 2022)

(a) An offeror may not receive export-controlled technical data, which is specified in this solicitation, unless the offeror is a qualified U.S. contractor as defined in paragraph (b). See paragraph (c) and (d) for instructions on becoming a qualified U.S. contractor. Questions about this program or DD Form 2345 should be addressed to U.S./Canada Joint Certification Office, Defense Logistics Information Services (DLIS), Federal Center, 74 Washington Avenue North, Battle Creek, MI 49017-3084; or telephone (877) 352-2255; or email jcp-admin@dla.mil.

(b) By Department of Defense (DOD) Directive 5230.25 (hereinafter referred to as "the Directive"), a program was established to allow Qualified U.S. Contractors to obtain export-controlled technical data under certain conditions. A "Qualified U.S. Contractor" is a private individual or enterprise (hereinafter described as a "U.S. Contractor") that, in accordance with procedures established by the Under Secretary of Defense for Research and Engineering, # certifies # does not certify, as a condition of obtaining export-controlled technical data subject to the Directive from the Department of Defense, that:

- (1) The individual who will act as recipient of the export-controlled technical data on behalf of the U.S. Contractor is a U.S. citizen or a person admitted lawfully into the United States for permanent residence and is located in the United States;
- (2) Such data is needed to bid or perform on a contract with the Department of Defense, or other U.S. Government agency, or for other legitimate business purposes in which the U.S. Contractor is engaged, or plans to engage. The purpose for which the data is needed shall be described sufficiently in such certification to permit an evaluation of whether subsequent requests for data are related properly to such business purpose.
- (3) The U.S. Contractor acknowledges its responsibilities under U.S. export control laws and regulations (including the obligation, under certain circumstances, to obtain an export license prior to the release of technical data within the United States) and agrees that it will not disseminate any export-controlled technical data subject to the Directive in a manner that would violate applicable export control laws and regulations.
- (4) The U.S. Contractor also agrees that, unless dissemination is permitted by the Directive, it will not provide access to export-controlled technical data subject to the Directive to persons other than its employees or persons acting on its behalf, without the permission of the DOD component that provided the technical data.
- (5) To the best of its knowledge and belief, the U.S. Contractor knows of no person employed by it, or acting on its behalf, who will have access to such data, who is debarred, suspended or otherwise ineligible to perform under U.S. Government contracts; or has violated U.S. export control laws or a certification previously made to the Department of Defense under the provisions of the Directive.

(c) Private individuals or enterprises are certified as Qualified U.S. Contractors by submitting a DD Form 2345 to U.S./Canada Joint Certification Office, Defense Logistics Information Services, Federal Center, 74 Washington Avenue, North, Battle Creek, MI 49017-3084.

(d) Canadian contractors may be qualified in accordance with the Directive for technical data that do not require a license for export to Canada under section 125.12 of the International Traffic in Arms Regulations and sections 379.4(d) and 379.5(e) of the Export Administration Regulations, by submitting an equivalent certification to the DLIC.

(End of Provision)

Section L - Instructions, Conditions, & Notices to Offerors or Quoters

1.0 INSTRUCTIONS FOR SUBMISSION OF OFFERS

Offeror shall comply with the detailed instructions for the format and content of the proposal. Proposals shall be clear and unambiguous. Proposals that do not comply with the detailed instructions for the format and content of the proposal may render the Offeror ineligible for award. The Government reserves the right to reject any proposal that does not comply with these proposal submission instructions.

Proposals shall be submitted through the PIEE Solicitation Module by the solicitation closing date and time specified on the cover page of this solicitation, block (9). Offers must be received via the PIEE Solicitation Module portal by the closing date and time in order to be considered for award. It is not permissible to upload a link to an internet-based data center (e.g. Google cloud or Dropbox).

Offeror shall submit all required proposal information as files uploaded directly in the PIEE Solicitation Module. In the rare event the PIEE system is down or inaccessible, Offeror shall immediately notify the cognizant Contracting Officer for the solicitation via e-mail prior to the solicitation closing date and time. In the rare event of a PIEE system malfunction, arrangements must be made with the Contracting Officer cognizant for the solicitation prior to the solicitation closing date and time in order to submit a proposal electronically outside the PIEE Solicitation Module. Failure to submit a complete proposal prior to the solicitation closing date and time will render the proposal late and unacceptable.

Offerors are responsible for submitting proposals and any proposal modifications in the PIEE Solicitation Module by the time specified in the solicitation. Any proposal modification not submitted in the PIEE Solicitation Module by the exact time specified for receipt of offers is "late" and will not be considered. The solicitation will close at the exact date and time specified in the solicitation and Offerors will be unable to submit its proposal after that time. Each proposal submitted in the PIEE Solicitation Module is time/date stamp recorded by the system at time of proposal upload. Proposals may be withdrawn by written notice to the cognizant Contracting Officer for the solicitation provided such notice is received prior to Task Order award.

Resources on how to navigate the PIEE Solicitation Module are available at <https://dodprocurementtoolbox.com/site-pages/solicitation-module>.

2.0 PROPOSAL FORMAT

In order to maximize efficiency and minimize the time for proposal evaluation, all Offerors shall submit their proposals in accordance with the format and content specified below. The requirements below apply equally to subcontractors. Proposals that do not meet the below requirements may be deemed unresponsive and may not be eligible for award. The electronic proposal shall be prepared so that if printed, the proposal meets the following format requirements:

- 8.5 x 11 inch paper
- Single-spaced typed lines
- 1 inch margins
- Font text shall be 12-point Times New Roman, except for:
 - o Graphs, graphics, or charts used to supplement the proposal text shall use Times New Roman that is no smaller than 9-point font size.

- o Microsoft Office Excel spreadsheets shall use Times New Roman that is no smaller than 9-point font size. These Excel spreadsheets shall be formatted for printing in landscape orientation such that all row and column headings appear on each printed page. All spreadsheets shall include calculations in the cells showing all formulas. Do not enter hard data where formulas were used to calculate the entered value.
- No hyperlinks
- Proposals shall be in English and in U.S. dollars.
- Proposals shall be Microsoft Office (Word, Excel, PowerPoint) 2010 and newer versions or Adobe Acrobat (PDF) compatible. PDF files shall be searchable when reviewed electronically.

2.1 Cover Page and Table of Contents

Offeror shall include a cover page and table of contents for each proposal volume. The cover page shall identify the solicitation number, proposal volume and title, and the Offeror's name. The cover page and table of contents will not count against page limitations.

2.2 Glossary of Abbreviations and Acronyms

Offer shall include a glossary of abbreviations and acronyms for each proposal volume that provides corresponding definitions. Glossaries will not count against page limitations.

2.3 Page Numbering System

Offeror shall use a standard page numbering system to facilitate proposal references. All pages shall be numbered consecutively for each section within a volume. Charts, graphs, and other inserted materials shall be included in the page numbering system.

2.4 Restriction on Disclosure and Use of Data

Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall mark the title page with the following legend:

"This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed in whole or in part for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this Offeror as a result of, or in connection with, the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]";

Offerors shall also mark each sheet of data it wishes to restrict with the following legend:

"Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal."

2.5 File Naming Convention

All proposal files shall include the Offeror's company name, volume #, document name, and other useful identifying information. For example:

(S) Company_Volume_I _Technical Approach

(S) Company_Volume_I_Key Personnel Resume for Jane Doe

(S) Company_Volume_II _Past Performance Reference for N00024-##-X-####

(S) Company_Volume_III _Cost Proposal Narrative

(S) Company_Volume_IV _Cover Letter

3.0 PROPOSAL ORGANIZATION AND CONTENT

Offeror shall organize its proposal and include all proposal content exactly as described herein. Offeror shall organize its proposal into separate volumes and adhere to page limitations as delineated in the Proposal Organization Table below. Page limitations will be treated as maximums. If exceeded, excess pages may not be read or considered in proposal evaluation. When both sides of a sheet display printed material, it shall be counted as two pages.

Proposal Organization Table		
Volume	Proposal Content	Page Limitation
VOLUME I - Technical (Factor 1)	Element A: Technical Approach	40 pages
	Element B: Management Approach	20 pages
	Element C: Personnel Approach	Staffing Plan- No page limit. Key Personnel: 2 pages per resume.
VOLUME II - Past Performance (Factor 2)	Past Performance References	3 pages per reference
Volume III - Cost Proposal (Factor 3)	Cost Proposal Spreadsheet	No page limit
	Cost Proposal Narrative	
VOLUME IV - Contract Documentation	Cover letter	No page limit
	Solicitation Fill-ins	
	OCI Mitigation Plan	

	Pre-Award Survey (SF1408)	
	Security Requirements (DD 254)	
	Government Furnished Property	

3.1 VOLUME I - TECHNICAL (FACTOR 1)

3.1.1 Element A - Technical Approach

The submission of an offer constitutes unconditional acceptance to perform all of the tasks described in the SOW/PWS; therefore, Offeror's proposal need not address every single aspect of the SOW/PWS. Offeror shall describe its specific understanding, capability, experience, and technical approach with regards to the requirements and scenarios below:

C.3.1 Systems Engineering Requirements and Planning Support

C.3.2 Systems Engineering Design Support

C.3.5 Modeling and Simulation Support

C.3.6 Design, Proving, Test and Verification Analysis Support

C.3.13 Cybersecurity

Scenario A

The Weapons Effectiveness Division (H30) Virtual Operational Missile (VOM) Team has been tasked by the Program Office/Sponsor (MDA/IWS) to pursue the research and development of a robust new capability and implementation of a new Missile simulator, resulting in a new VOM. It is understood that existing tasking will continue consecutively, which includes maintaining current existing VOMs and providing rapid response testing support and equipment maintenance/upgrades.

Each of these existing tasks, along with the new tasking, have significantly conflicting technical and functional priorities that often cause/create critical schedule challenges for the whole team. The H30 VOM Program Manager has turned to the Engineering Services Contractor to enhance the H30 VOM team in its ability to meet these robust and complex technical and programmatic challenges.

As the Engineering Services Contractor, please provide the following:

1. Present your approach to supporting each of the following areas:

- Electrical and mechanical hardware development,
- Fabrication and integration,
- Test and evaluation,
- Configuration Management (CM),
- Documentation,
- Computer Aided Design (CAD) and drafting,
- Weapon System Software assessments to improve cyber and IA postures,
- Rapid turnaround CONUS and OCONUS travel to support deployed and in-production systems.

2. Discuss the overall roles and responsibilities of the H30 VOM team, including the optimal interaction between Government and Contractor resources (staffing) on the H30 Team.
3. Describe your overall strategy and approach to understanding the task being assigned and your ability to apply specific technical disciplines to meet tactical and operational program requirements. Address the need to balance the systems engineering, software assessment, test and evaluation, and off-site Weapons System support requirements of each task considering a finite set of resources across the H30 Team (Government and Contractor).
4. Provide a Collaboration Plan to demonstrate your ability and experience, as a Contractor Team, to effectively support the H30 Government team in a rapid response program circumstance such as this. Address your overall communications approach as well as your ability to physically react with ready and present resources at the Government's facility in an efficient and timely manner.

Scenario B

The Joint Technical Coordinating Group for Munitions Effectiveness (JTTCG/ME) provides direct operational reach-back support to the Combatant Commands (CCMDs), Services, and support agencies. The support includes detailed research, modeling, simulation, and analysis within an extremely short timeline (24-72 hours).

The team has been contacted by one of the CCMDs to analyze the collateral risk of an operational scenario and the effectiveness of the weapon system on the intended target. The strike package is going to be briefed to the Commander in three days.

1. Describe your overall strategy and approach to understanding the tasking being assigned and what actions would be planned to meet the requirement.
2. Describe the process that would be used to analyze the engagement.
3. Describe the process that would be used to evaluate weapon options to maximize effectiveness and minimize collateral risk.
4. How would the information be presented to the customer.
5. Describe a similar past project that demonstrated these skill sets.

Offeror should organize its technical approach by grouping together capability, understanding, experience, and approach by specific SOW/PWS requirements, and/or by sample problem if applicable. Offeror shall clearly demonstrate its ability to meet the requirements. Offeror shall provide explanatory details assuming that the Government has no prior knowledge of its facilities, capabilities, or experience. Offerors shall identify technical uncertainties and assumptions within the requirements and provide specific courses of action for their resolution. Offerors are encouraged to address any innovative approaches to meeting the requirements. Offeror shall not simply rephrase or restate the Government's requirements in the proposal. Proposals that merely reiterate the Government's own requirements shall be deemed unacceptable and thus ineligible for award. Offerors are cautioned that failure to provide the necessary information may result in its adjectival ratings being downgraded accordingly.

3.1.2 Element B - Management Approach

Offeror shall:

- Describe overall management approach including details about processes, tools, and other unique characteristics that demonstrate the ability to successfully manage this effort.
- Provide an organizational chart and describe the management structure addressing the roles and responsibilities of key personnel and the reporting lines of authority.
- Describe the approach to communication with Government and other stakeholders including details on status reports, meetings, and other forms of communication.
- Describe the quality control process including a discussion on how performance and deliverables will meet the Government's quality standards **accordance with Attachment - J.2 QASP**.
- Describe the approach for monitoring and controlling costs during performance.
- Describe the approach for risk management including identification of risks and mitigation strategy.
- Describe the subcontractor team being proposed under this task order, the specific requirements anticipated to be subcontracted, the rationale for why these subcontractors were selected to perform this work, and the overall approach to subcontractor management.
- Describe a detailed plan of action addressing all required steps that need to be taken to fully assume responsibilities under this task order within a proposed transition period. This plan shall identify measurable milestones for when actions will be completed. This plan shall address hiring, onboarding, and training of new personnel.

3.1.3 Element C - Personnel Approach

Staffing Plan. Offeror shall provide a staffing plan using the format provided in **Attachment J.3 - Staffing Plan**. Offeror shall complete all of the information requested within the provided template. Offeror shall include all proposed personnel, including those of its subcontractors, necessary to perform all aspects of the SOW/PWS. Offeror shall propose staffing in accordance with the labor hours identified in Section B. Offeror shall propose staffing in accordance with **Attachment J.4 - Personnel Qualifications**.

Offeror shall preface the names of contingent hires with "Contingent -"; for example, "Contingent - Jane Doe." Offeror shall preface the names of key personnel with "Key -"; for example, "Key - Jane Doe." Offeror shall use "TBD" for non-key positions that do not have identified personnel. "TBD" may also be used for labor hours associated with surge or special study CLINs/SLINs, if such CLINs/SLINs are included in Section B.

Offeror shall provide a mapping of any company-specific labor categories it, or its subcontractors, proposes in the staffing plan to the corresponding Government Standard eCRAFT Labor Categories. Unless specified already by the Government, Offeror shall propose Standard eCRAFT Labor Categories based on the descriptions listed at: <http://www.navsea.navy.mil/Home/Warfare-Centers/NUWC-Newport/Partnerships/Commercial-Contracts/Labor-Categories/>. For labor categories that provide for various levels (I, II, III, IV), Offeror shall select the level that best matches the proposed individual and company-specific labor category. For Service Contract Act (SCA) labor categories (if applicable), Offerors may propose an SCA labor category listed in the SCA Directory of Occupations at: <http://www.dol.gov/whd/govcontracts/sca.htm>.

Offeror shall propose a staffing plan in the technical volume that fully aligns with the staffing included in the cost proposal. Discrepancies between the proposed staffing identified in the technical and cost proposal may result in an identification of risk, a lowering of the adjectival rating in the technical proposal, and/or an upward adjustment to the proposed cost.

Staffing Plan Narrative: Offerors should attempt to minimize the number of proposed labor personnel for which candidates have not been identified. From a U.S. Government proposal evaluation perspective, proposal risk may increase with high levels of individuals proposed as TBD or contingent. Nevertheless, in the Staffing Plan narrative, Offeror may describe actions it has taken to mitigate the impact of these risks to the Government. For example, higher levels of education and relevant experience in a proposed workforce demonstrate a richer labor mix. Proposing a richer labor mix, in appropriate tasks under this order, may reduce the performance risk that the Government bears in accepting an Offeror's proposal. In this example, the Offeror may discuss the potential benefits of the richness of its proposed labor mix in the Staffing Plan narrative but should clearly describe how a richer labor mix in a task reduces the performance risk to the Government.

Key Personnel. Offeror shall provide one resume for each individual proposed to fulfill the positions identified as key personnel in accordance with **Attachment J.4 - Personnel Qualifications**. All key personnel positions shall identify a current employee or contingent hire to fulfill the role. Each resume shall demonstrate the key personnel's qualifications to complete the tasking for which person has been proposed to perform.

Offeror shall submit a current "letter of intent" (with salary information redacted) with all resumes supplied for contingent key personnel hires. The letter of intent does not count against page limitations and must be signed by the contingent hire employee and the Offeror.

Key personnel resumes shall include the following information:

- Name
- Key personnel position
- Security clearance level
- Citizenship
- Summary indicating how personnel qualifications are met (e.g., years of relevant experience)
- Chronology of education, training, and degrees/certifications held
- Chronology of work experience with emphasis on PWS related experience

Key personnel are deemed essential to the performance of this effort and cannot be replaced without prior Government approval in accordance with C-237-H002 SUBSTITUTION OF KEY PERSONNEL (OCT 2018). The qualifications listed in each individual proposed key personnel resume, not the specific individual, are the materially relevant aspects of the proposed key personnel partially forming the basis of award. Therefore, even if a proposed key personnel becomes unavailable to the Offeror between proposal submission and award, the Government will evaluate and make its award decision based on the qualifications listed on the proposed resume(s). When the Government awards a task order under those circumstances, the Government will require the awardee to use the qualifications listed on the relevant proposed key personnel resume as the basis for replacing the individual under C-237-H002 SUBSTITUTION OF KEY PERSONNEL (OCT 2018) during task order performance. The Offeror shall make no substitution of key personnel without prior notification to and concurrence of the Contracting Officer.

3.2 VOLUME II - PAST PERFORMANCE (FACTOR 2)

Offeror shall provide all past performance information in accordance with Attachment J.5 - Past Performance Reference. Offeror shall provide three past performance references, if available, which shall reflect recent experience performed within the last **three (3)** years of the solicitation release date and that demonstrates experience relevant to the solicitation's PWS/SOW. In addition to these three past performance references, Offeror shall submit one additional past performance reference for each subcontractor proposed to perform more than **10%** of the total labor hours, if available. Offeror shall describe how the past performance references are relevant including details about how it is similar in scope and complexity to this solicitation's SOW/PWS.

3.3 VOLUME III - COST PROPOSAL (FACTOR 3)

3.3.1 Section B Pricing

Offeror shall submit Section B pricing for each priced CLIN/SLIN in the cost proposal spreadsheet (Attachment X). The Section B pricing submitted in the completed solicitation (Volume IV) will take precedence should there be any discrepancies with any other pricing information submitted. As such, the resulting task order award will be made to the successful Offeror using their proposed Section B pricing.

3.3.2 Cost Proposal Spreadsheet

Offeror and their subcontractors shall each separately submit a cost proposal spreadsheet using the format set forth in Attachment J.6 - Cost Proposal Spreadsheet. The cost proposal spreadsheet shall provide a detailed breakout of every single cost element proposed across each base and option year as applicable. The cost proposal spreadsheet shall include calculations in the cells showing all formulas used to calculate the values. Do not enter hard data where formulas were used to calculate the entered value.

The Offeror's cost proposal spreadsheet shall be overarching, encompassing all proposed costs inclusive of sanitized subcontractor costs, and it shall fully align with and support the proposed Section B pricing. Subcontractor's unsanitized cost proposal spreadsheets shall be submitted separately through the PIEE Solicitation Module in order to protect their proprietary information. Subcontractor cost proposals shall be received by the time and date specified for receipt of proposals specified in this solicitation.

Offeror shall provide a clear crosswalk of all company-specific labor categories to corresponding Government Standard eCRAFT Labor Categories. Unless specified already by the Government, Offeror shall propose Standard eCRAFT Labor Categories based on the descriptions listed at: <http://www.navsea.navy.mil/Home/Warfare-Centers/NUWC-Newport/Partnerships/Commercial-Contracts/Labor-Categories/>. For labor categories that provide for various levels (I, II, III, IV), Offeror shall select the level that best matches the proposed individual and company-specific labor category. For Service Contract Act (SCA) labor categories (if applicable), Offerors may propose an SCA labor category listed in the SCA Directory of Occupations at <http://www.dol.gov/whd/govcontracts/sca.htm>.

3.3.3 Cost Proposal Narrative

Offeror shall provide a cost proposal narrative that fully substantiates the reasonableness and realism of the proposed costs. The cost proposal narrative shall fully align with and support the proposed Section B pricing. The cost proposal narrative shall fully corroborate every cost element that is proposed. Providing insufficient information to substantiate the reasonableness and realism of the proposed costs may result in the identification of a risk, an upward cost adjustment, and/or in the offer no longer being considered eligible for award.

Offeror shall propose realistic costs within its proposal. Offeror bears the sole responsibility to demonstrate that its proposed costs are realistic within its proposal. Offeror is advised that proposing unrealistically lower costs without substantial justification will be an indication that the Offeror does not have a clear understanding of the requirements or does not have the requisite capability to support the effort. Any inconsistency between promised performance in the technical proposal (e.g. Volume 1 - Technical) and the proposed cost must be explained in the proposal. Any inconsistency, if unexplained, may raise a fundamental question of the Offeror's understanding of the nature and scope of the work required and may adversely impact the evaluation of the Offeror's proposal.

The cost proposal narrative shall address:

Subcontractors. Offeror shall describe the contract type proposed for each subcontractor and rationale for why the chosen contract type is most appropriate. In particular, Offeror shall demonstrate the suitability of any Time-and-Materials or fixed price contract types (e.g. FFP, FFP LOE, etc.) and describe how the Government will be billed throughout the performance of this requirement. Offeror shall demonstrate that their subcontractors have the necessary business systems to perform the contract types being proposed. Offeror shall conduct appropriate cost or price analysis to establish the reasonableness of the proposed subcontract prices and include the results of these analyses within its cost proposal narrative, in accordance with FAR 15.404-3(b).

All subcontractors shall submit cost proposal narratives in order to fully substantiate the reasonableness and realism of their proposed costs. Subcontractors that are proposed on cost reimbursement basis shall provide the same level of information as required from the Offeror to substantiate their own costs within their cost proposal narratives. Subcontractors that are proposed on a Time-and-Materials or fixed price basis (e.g. FFP, FFP LOE, etc.) are not required to provide the same level details as required under cost reimbursable proposals, but shall still provide an itemized breakout of pricing that is customary with the contract type proposed. Subcontractor unsanitized cost proposal narratives shall be submitted separately through the PIEE Solicitation Module in order to protect their proprietary information. Subcontractor cost proposals shall be received by the time and date specified for receipt of proposals specified in this solicitation.

Labor hours. Offeror shall propose the labor hours exactly as specified in Section B, and shall demonstrate overall adherence to the Section B labor hours. The labor hours shall include both the Offeror and subcontractor labor hours, if applicable.

Direct labor rates. Offeror and cost reimbursement subcontractors shall describe the basis of estimate for each direct labor rate proposed and provide substantiating information that fully corroborates each direct labor rate proposed. The basis of estimate must state the current geographical location of the personnel associated with each direct labor rate at the time of proposal submission. The Government reserves the right, at its discretion, to adjust direct labor rates upward in its cost realism evaluation to reflect prevailing rates in the performance location, regardless of personnel's intent to relocate, telework, or [other circumstances].

For each current employee named in the cost proposal spreadsheet, Offeror and cost reimbursement subcontractors shall provide a screenshot that captures pertinent information from the employer's payroll system, incurred within the last three months preceding release of this solicitation. Payroll screenshots shall not contain any personally identifiable information, such as, social security numbers, date and place of birth, etc. Cost proposal narratives shall fully explain all pertinent data on a screenshot. The Government must be able to derive the individual's direct rate (both inclusive and exclusive of the impact of uncompensated overtime, if proposed) from the payroll screenshot. Alternatively, Offeror and cost reimbursement subcontractors may provide payroll verification instead of payroll screenshots. Payroll verification shall consist of a form containing the named personnel, proposed labor category, direct labor rate, description of current position, and a signed certification by an authorized representative of the company that the information contained in the form is correct and current within the last three months preceding release of this solicitation. This supporting direct labor rate information shall clearly map to individual direct labor rates included within the cost proposal spreadsheet.

For each contingent hire in the cost proposal spreadsheet, Offeror and cost reimbursement subcontractors shall clearly indicate named contingent hires and shall provide a signed letter of intent that explicitly lists the agreed upon annual salary for the named individual and the amount of uncompensated work required. The cost proposal narrative shall fully explain all pertinent data about the letter of intent. The Government must be able to derive the individual's direct rate (both inclusive and exclusive of the impact of uncompensated overtime, if proposed) from the letter of intent information.

For any proposed position for which a specific candidate has not been identified, Offerors and cost-reimbursement subcontractors must provide supporting documentation to justify the estimated cost. If a comparable position with available payroll data exists, provide that data and a detailed analysis explaining how the comparable position aligns with the proposed position. If no comparable position exists, provide alternative cost data and a detailed basis of estimate that supports the proposed cost estimate for the position.

Surge. Offeror shall propose surge CLINs/SLINs in accordance with Section B if applicable. All surge CLINs/SLINs shall be proposed utilizing the composite rate for all non-surge in the appropriate year. The following is an example of how to calculate the hourly surge rate and dollars:

Base Year Surge Hourly Rate = Base Year Labor (excluding fee)/Base Year Hours

Base Year Surge Dollars = Base Year Surge Hourly Rate * Base Year Surge Hours

Base Year Fixed Fee = Base Year Surge Dollars * Proposed Fixed Fee Percentage

Service Contract Act (SCA) Wage Determinations. Offeror shall propose rates no lower than the minimums listed in SCA Wage Determinations current as of the date of the proposal. Current SCA Wage Determinations can be found at <https://sam.gov/content/wage-determinations>.

Uncompensated Overtime. Any uncompensated overtime proposed shall be in accordance with FAR 52.237-10, IDENTIFICATION OF UNCOMPENSATED OVERTIME. For any Offeror and/or subcontractors that proposes uncompensated overtime, Offeror and/or subcontractor shall ensure compliance with the following. Describe the company's uncompensated overtime policies and include a copy of its policy addressing uncompensated overtime. Describe the uncompensated overtime being proposed along with an explanation of how it will be used in performance of this requirement and why it is necessary. Describe how the adjusted hourly rate was derived while clearly demonstrating the reasonableness and realism. Describe the company's historical levels of uncompensated overtime incurred previously and provide substantiating historical data that corroborates the adjusted hourly rates proposed.

Forward Pricing Rate Agreement (FPRA) or Forward Pricing Rate Recommendation (FPRR). Offeror and cost reimbursement subcontractors shall indicate whether an FPRA or FPRR has been established for their company and the extent it was used in establishing proposed costs. If an FPRA/FPRR exists, a copy shall be provided within the cost proposal narrative.

Escalation. The below table reflects minimum escalation rates. Offeror may propose escalation that deviates from these minimum escalation rates; however, the Government reserves the right to make upward cost realism adjustments using these minimum escalation rates, unless proposed escalation rates are fully supported by an approved FPRA.

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	Base Year	Option Year 1	Option Year 2	Option Year 3	Option Year 4
Minimum Escalation Rate	3.08%	2.99%	2.98%	3.10%	3.02%

Indirect Rates. Offeror and cost reimbursement subcontractors shall describe its proposed indirect rates, basis of estimate, and calculation methodologies. Offeror and cost reimbursement subcontractors shall provide the three most recent years of incurred actuals for each proposed indirect rate, any provisional billing rates available, also indicating the beginning and end dates for each fiscal year. NOTE: Offerors shall not rely on any Forward Pricing Rate Proposal to provide any form of cost realism substantiation. Additionally, Provisional Billing Rates (PBRs) are for billing purposes only and should not be used for cost /price proposals. Offerors are cautioned not to rely on these submissions (FPRPs & PBRs), which lack meaningful Government review, as sufficient to demonstrate the realism of its proposed rates.

This history shall include the most recently completed fiscal year even if the rates are considered preliminary and have not been submitted to DCAA for audit. The Offeror shall note whether the actual rates have been audited by DCAA or any other independent organization; specifically state which indirect rates have been finalized by DCAA/DCMA. If proposed rates are below historical rates, the cost narrative shall include an explanation along with supporting information to corroborate why the proposed indirect rates that are lower than historical rates. If a cap on any of the indirect rates is being proposed, the cost narrative shall identify each capped rate and shall propose legally binding verbiage, which can be included in the resultant task order award subject to Government acceptance.

Maximum Pass-Through and Fee Rates. Offeror shall ensure its proposal is in compliance with the "Maximum Pass Through Rate" and "Maximum Profit/Fee Rate" requirements contained within its basic IDIQ MAC. Any proposed rate that exceeds these maximum rate requirements may render the proposal unacceptable, and thus ineligible for award. Fee becomes a fixed dollar amount at the time of task order award and is subject to the associated fee payment clauses in Section B. Offeror's proposed fee rate shall represent the maximum fee rate applicable to its subcontractors under this effort.

The Government also strongly encourages the Offeror to eliminate "double pass-thru" costs by avoiding second tier subcontractors /consultants during performance and, where this situation is unavoidable, limiting subcontractor pass-thru costs to the lower of: (1) The Offeror's pass-thru rate under their IDIQ MAC, or (2) The subcontractor's pass-thru rate under their IDIQ MAC, if applicable.

Other Direct Costs (ODCs). Offeror shall propose ODCs in accordance with below table. The below table reflects Government estimated ODCs, which include travel and incidental material costs only. The estimated ODCs do not account for any company specific burdens such as material handling or G&A. Offeror shall propose all applicable burdens in accordance with its disclosure statements.

	Base Year	Option Year 1	Option Year 2	Option Year 3	Option Year 4
Travel	\$225,145	\$230,500	\$235,982	\$241,594	\$247,340
ODCs	\$136,350	\$137,329	\$138,316	\$139,310	\$140,310

In order for any additional expenses to be allowed as a direct charge under the resulting task order, it must be identified and described within the cost proposal narrative and be reflected in the Section B pricing. For example, the ODC estimates do not include facility related costs since these are typically treated as an indirect cost; however, if the Offeror proposes to direct charge facility costs, Offeror shall propose such cost separately from the ODC estimate, provide a basis of estimate, rationale for direct charging such cost, and

explain how the direct cost will be properly allocated to this requirement. ODCs are not subject to fee. Reimbursement for travel will be in accordance with the Joint Travel Regulation (JTR) and B-231-H001 TRAVEL COSTS (NAVSEA) (OCT 2018).

3.4 VOLUME IV - CONTRACT DOCUMENTATION

3.4.1. Cover Letter.

Offeror and subcontractors shall provide a cover letter with the following information:

- (S) Solicitation number;
- (S) Company name, SeaPort NxG MAC IDIQ number, CAGE code, Unique Entity ID (UEI), address, e-mail address, and telephone number;
- (S) A statement confirming agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;
- (S) A statement that the proposal is valid through **270** calendar days from the date specified for receipt of proposals;
- (S) Names, titles, telephone numbers, and e-mail addresses of persons authorized to negotiate on the Offeror's behalf with the Government in connection with this solicitation;
- (S) DCAA and DCMA office POC, including branch location, contact name, telephone number and e-mail address;
- (S) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office. The Offeror's signature on their proposal indicates the company will meet all requirements of the SOW/PWS, without exception; and
- (S) Identify all enclosures being transmitted as part of the Offeror's proposal.
- (S) If an Offeror believes no organizational conflict(s) of interest exists, an affirmative statement that no such conflict exists shall be included in the cover letter.

3.4.2 Solicitation Fill-ins.

Offeror shall complete all solicitation fill-ins, including Section B CLIN pricing using the latest amended solicitation version and provide a copy within Volume IV.

3.4.3 Small Business Participation.

The North American Industry Classification (NAICS) code applicable to this solicitation is 541330. Therefore, companies proposing as a subcontractor under this solicitation as a small business concern must have had an average annual receipt over its five previous fiscal years that was less than \$47,000,000. Companies proposed as a small business concern shall meet this size standard as of the date of the proposal submission under this solicitation.

Offerors are advised that this solicitation is 100% set aside for small business. Immediately after the specified closing date and time, the Government will verify each Offeror's size status in SAM.gov to ensure that Offerors are certified as a small business. Any Offeror that is not certified appropriately will be ineligible for award and, therefore, will not be evaluated.

In the event multiple similarly situated small businesses join in order to meet the requirement to perform more than 50% of the effort, Offerors are advised that there may be an inherent technical risk associated with no clear prime contractor in charge of ensuring successful performance. Offerors should consider this risk in determining how many partners are needed in order to comply with the greater than 50% requirement.

3.4.4 Organizational Conflict of Interest (OCI) Mitigation Plan.

Offeror's OCI Mitigation Plan shall be provided in Volume IV. In accordance with the "C.14 ORGANIZATIONAL CONFLICT OF INTEREST" clause within the SeaPort-NxG IDIQ MAC, Offeror shall identify any and all conflicts of interest or potential conflicts of interest related to this solicitation. Offerors shall follow the below described two-step process for identifying known or potential OCI issues to the Government for this solicitation.

Step 1: If it is believed that conflicts of interest are real, possible, or perceived, the contractor shall submit a letter within fourteen (14) days of the release of the solicitation identifying those OCI issues and the strategy that the Offeror intends to use for mitigation. This letter will be for notification purposes only, for the Government to conduct any research, and no determination will be made by the Government at that time. If no OCI issues are present or anticipated, no action is required of the Offeror within this window.

Step 2: Offerors shall submit a statement in affirmation or negation whether they have an OCI conflict regarding this solicitation. If OCI issues are present or anticipated, Offerors shall provide details and submit an OCI mitigation plan and its corporate policy for resolving as part of their proposal submission. If it is believed that no conflicts of interest exist, then the Offeror shall clearly state this, in addition to providing their corporate policy for resolving OCIs. Organizational charts and/or corporate policy are authorized to be submitted in addition to the OCI Mitigation Plan and do not count toward any page limitation.

Award will only be made to an Offeror, including all subcontractors, that has no organizational conflict of interest as defined in FAR 9.5 or that the Government determines has provided a satisfactory mitigation plan in accordance with L-209-H009 herein. Failure by an Offeror to disclose a potential OCI or to submit an OCI mitigation plan with its proposal may render itself no longer being considered for award.

3.4.5 Pre-Award Survey (SF1408).

Offeror and cost reimbursement subcontractors shall assert whether it has a DCAA approved accounting system and provide the date it was approved. If the Offeror or any cost reimbursement subcontractors do not have an approved accounting system, then an SF1408 Pre-Award Survey shall be completed. Offeror is solely responsible for verifying that subcontractors proposed on a cost reimbursement basis have either an approved accounting system or have submitted the SF1408 as part of the subcontractor's proposal. An SF1408 does not need to be submitted for companies that already have an approved accounting system. A copy of the SF1408 is at <https://www.gsa.gov/Forms/TrackForm/32838>.

3.4.6 Security Requirements.

Security requirements associated with this effort have been identified in Attachment J.7 - DD254. Offeror shall demonstrate the ability to meet the facility clearance and safeguarding capability requirements identified in the attached DD254. Describe the plan to implement the required security clearances and physical access requirements during the transition period so that service is not interrupted. If the Offeror does not currently possess the required facility clearance, the Offeror shall demonstrate the steps it will take to be granted the facility clearance in accordance with DoDM 5220.32 (or latest guidance), including a detailed schedule for attaining the required facility clearance.

3.4.7 Government Furnished Property (GFP).

GFP associated with this effort has been identified in Attachment J.1 - GFP. Offeror shall describe its plan for managing this GFP in accordance with FAR 52.245-1 "Government Property" and DFARS 252.245-7005 "Management and Reporting of Government Property". Alternatively, Offeror may provide proof that its Property Management System is currently approved by DCMA. Offeror shall address L-245-H001 "AVAILABILITY OF GOVERNMENT PROPERTY" and L-245-H002 "INSTRUCTIONS REGARDING GOVERNMENT PROPERTY" requirements, if applicable.

3.4.8 Cybersecurity Maturity Model Certification (CMMC) unique identifier(s) (UIDs)

The Offeror shall provide the CMMC UIDs issued by the Supplier Performance Risk system (SPRS), in accordance with DFARS 252.204-7025(d), for each contractor information system that will process, store, or transmit Federal Contract Information (FCI) or Controlled Unclassified Information (CUI) during performance of a contract, task order, or delivery order resulting from this solicitation.

FAR Clauses Incorporated by Reference

Number	Title	Effective	Alternate/	Variation Effective
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		Date	Deviation	Date
52.204-7	System for Award Management-Registration. (Deviation)	Feb 2026		
52.215-1	Instructions to Offerors-Competitive Acquisition. (Deviation)	Feb 2026		
52.215-22	Limitations on Pass-Through Charges-Identification of Subcontract Effort. (Deviation)	Feb 2026		
52.233-2	Service of Protest. (Deviation)	Feb 2026		
52.237-1	Site Visit.	Apr 1984		
52.237-10	Identification of Uncompensated Overtime.	Mar 2015		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors.	Jan 2023		
252.215-7016	Notification to Offerors-Postaward Debriefings.	Oct 2025		
252.225-7003	Report of Intended Performance Outside the United States	Oct 2025		

FAR Clauses Incorporated by Full Text

52.211-14 Notice of Priority Rating for National Defense, Emergency Preparedness, and Energy Program Use. (Apr 2008)

NOTICE OF PRIORITY RATING FOR NATIONAL DEFENSE, EMERGENCY PREPAREDNESS, AND ENERGY PROGRAM USE (APR 2008)

Any contract awarded as a result of this solicitation will be ☐ DX rated order; ☒ DO rated order certified for national defense, emergency preparedness, and energy program use under the Defense Priorities and Allocations System (DPAS) (15 CFR700), and the Contractor will be required to follow all of the requirements of this regulation. [Contracting Officer check appropriate box.]

(End of provision)

52.216-1 Type of Contract. (Deviation) (Feb 2026)

TYPE OF CONTRACT (FEB 2026) (DEVIATION)

The Government contemplates award of a Cost-Plus-Fixed-Fee (CPFF) for Labor CLINs (2000, 2100, 2200, 2300, 2400), Cost Only for ODC CLINs (3000, 3100, 3200, 3300, 3400), and Not Separately Priced (NSP) for Data CLINs (4000, 4100, 4200, 4300, 4400, 4500) Level of Effort, Task Order[Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of provision)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation) (Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

- (i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and
- (ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: CMMC Level 2 (Self [Contracting Officer insert: CMMC Level 1 (Self); CMMC Level 2 (Self); CMMC Level 2 (C3PAO); or CMMC Level 3 (DIBCAC)]. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable [U.S. Contracting Officer to provide description of the data required in accordance with FAR 15.403-3(a)(1) with the notification].

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.215-7010 Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (Alternate I) (May 2024) Alternate I (Aug 2024)

Alternate I. As prescribed in 215.408(5)(i) and (5)(i)(B), use the following provision, which includes different paragraphs (c)(1) and (d)(3) than the basic clause.

**REQUIREMENTS FOR CERTIFIED COST OR PRICING DATA AND DATA OTHER THAN CERTIFIED COST OR PRICING DATA-
ALTERNATE I (AUG 2024)**

(a) *Definitions.* As used in this provision-

"Market prices" means current prices that are established in the course of ordinary trade between buyers and sellers free to bargain and that can be substantiated through competition or from sources independent of the offerors.

"Non-Government sales" means sales of the supplies or services to non-Governmental entities for purposes other than governmental purposes.

"Relevant sales data" means information provided by an offeror on sales of the same or similar items that can be used to establish price reasonableness taking into consideration the age, volume, and nature of the transactions (including any related discounts, refunds, rebates, offsets, or other adjustments).

"Sufficient non-Government sales" means relevant sales data that reflects market pricing and contains enough information to make adjustments covered by Federal Acquisition Regulation (FAR) 15.404-1(b)(2)(ii)(B).

"Uncertified cost data" means the subset of "data other than certified cost or pricing data" (see FAR 2.101) that relates to cost.

(b) *Exceptions from certified cost or pricing data.*

(1) In lieu of submitting certified cost or pricing data, the Offeror may submit a written request for exception by submitting the information described in paragraphs (b)(1)(i) and (ii) of this provision. The Contracting Officer may require additional supporting information, but only to the extent necessary to determine whether an exception should be granted and whether the price is fair and reasonable.

(i) *Exception for price set by law or regulation - Identification of the law or regulation establishing the price offered.* If the price is controlled under law by periodic rulings, reviews, or similar actions of a governmental body, attach a copy of the controlling document, unless it was previously submitted to the contracting office.

(ii) *Commercial product or commercial service exception.* For a commercial product or commercial service exception, the Offeror shall submit, at a minimum, information that is adequate for determining commerciality and evaluating the reasonableness of the price for this acquisition, including prices at which the same product or service or similar products or services have been sold in the commercial market. Such information shall include-

(A) For products or services previously determined to be commercial, the contract number and military department, defense agency, or other DoD component that rendered such determination, and if available, a Government point of contact;

(B) For subsystems of a major weapon system and components and spare parts of a major weapon system or subsystem of a major weapon system that have not previously been determined to be commercial-

(1) The comparable commercial product the Offeror sells to the general public or nongovernmental entities;

(2) A comparison between the physical characteristics and functionality of the comparable commercial product and the subsystem, component, or spare part, including-

(i) For products under paragraph (3)(i) of the "commercial product" definition at FAR 2.101, a description of the modification and documentation to support that the modification is customarily available in the marketplace; or

(ii) For products under paragraph (3)(ii) of the "commercial product" definition at FAR 2.101, a detailed description of the modification and detailed technical data to demonstrate that the modification is minor (e.g., information on production processes and material differences); and

(3) The national stock number (NSN) for the comparable commercial product, if one is assigned, and the NSN for the subsystem, component, or spare part; or

(4) If the Offeror does not sell a comparable commercial product to the general public or nongovernmental entities for purposes other than government purposes, the Offeror shall-

(i) Notify the Contracting Officer in writing that it does not sell such a comparable product; and

(ii) Provide the Contracting Officer with a comparison of the physical characteristics and functionality of the most comparable commercial product in the commercial market.

(C) For items priced based on a catalog-

(1) A copy of or identification of the Offeror's current catalog showing the price for that item; and

(2) If the catalog pricing provided with this proposal is not consistent with all relevant sales data, a detailed description of differences or inconsistencies between or among the relevant sales data, the proposed price, and the catalog price (including any related discounts, refunds, rebates, offsets, or other adjustments);

(D) For items priced based on market pricing, a description of the nature of the commercial market, the methodology used to establish a market price, and all relevant sales data. The description shall be adequate to permit DoD to verify the accuracy of the description;

(E) For items included on an active Federal Supply Service Multiple Award Schedule contract, proof that an exception has been granted for the schedule item; or

(F) For items provided by nontraditional defense contractors, a statement that the entity is not currently performing and has not performed, for at least the 1-year period preceding the solicitation of sources by DoD for the procurement or transaction, any contract or subcontract for DoD that is subject to full coverage under the cost accounting standards prescribed pursuant to 41 U.S.C. 1502 and the regulations implementing such section.

(2) The Offeror grants the Contracting Officer or an authorized representative the right to examine, at any time before award, books, records, documents, or other directly pertinent records to verify any request for an exception under this provision, and to determine the reasonableness of price.

(c) *Requirements for certified cost or pricing data.* If the Offeror is not granted an exception from the requirement to submit certified cost or pricing data, the following applies:

(1) The Offeror shall submit certified cost or pricing data and supporting attachments in the following format: See Section L.

(2) As soon as practicable after agreement on price, but before contract award (except for unpriced actions such as letter contracts), the Offeror shall submit a Certificate of Current Cost or Pricing Data, as prescribed by FAR 15.406-2.

(3) The Offeror is responsible for determining whether a subcontractor qualifies for an exception from the requirement for submission of certified cost or pricing data on the basis of adequate price competition, i.e., two or more responsible offerors, competing independently, submit priced offers that satisfy the Government's expressed requirement in accordance with FAR 15.403-1(c)(1)(ii).

(d) *Requirements for data other than certified cost or pricing data.*

(1) Data other than certified cost or pricing data submitted in accordance with this provision shall include all data necessary to permit a determination that the proposed price is fair and reasonable, to include the requirements in Defense Federal Acquisition Regulation Supplement (DFARS) 215.402(a)(i), 215.404-1(b), and 234.7002(e).

(2) In cases in which uncertified cost data is required, the information shall be provided in the form in which it is regularly maintained by the Offeror or prospective subcontractor in its business operations.

(3) If the Offeror redacts data that identifies the customer (see DFARS 234.7002(e)(2)), then the Offeror shall include, for each sale, the following signed statement with the data submitted:

"By submission of this data, the Offeror ____ [Offeror insert company name] certifies that the customer was ____ [Offeror insert one or more of the following as applicable: a government customer (e.g., Federal, state, local, or foreign government); a commercial customer purchasing the same or similar product for governmental purposes; or a commercial customer purchasing the same or similar product for a commercial, mixed, or unknown purpose]."

(4) The Offeror shall provide information described as follows: [Insert description of the data and the format that are required, including access to records necessary to permit an adequate evaluation of the proposed price in accordance with FAR 15.403-3 or DFARS 234.7002(e)].

(5) Within 10 days of a written request from the Contracting Officer for additional information to support proposal analysis, the Offeror shall provide either the requested information, or a written explanation for the inability to fully comply.

(6) *Subcontract price evaluation.*

(i) Offerors shall obtain from subcontractors the information necessary to support a determination of price reasonableness, as described in FAR part 15 and DFARS part 215.

(ii) No cost information may be required from a prospective subcontractor in any case in which there are sufficient non-Government sales of the same item to establish reasonableness of price.

(iii) If the Offeror relies on relevant sales data for similar items to determine the price is reasonable, the Offeror shall obtain only that technical information necessary-

(A) To support the conclusion that items are technically similar; and

(B) To explain any technical differences that account for variances between the proposed prices and the sales data presented.

(e) *Subcontracts*. The Offeror shall insert the substance of this provision, including this paragraph (e), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2. The Offeror shall require prospective subcontractors to adhere to the requirements of-

(1) Paragraph (c) and (d) of this provision for subcontracts above the threshold for submission of certified cost or pricing data in FAR 15.403-4; and

(2) Paragraph (d) of this provision for subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

252.215-7012 Requirements for Submission of Proposals via Electronic Media.

(Jan 2018)

REQUIREMENTS FOR SUBMISSION OF PROPOSALS VIA ELECTRONIC MEDIA (JAN 2018)

The Offeror shall submit the cost portion of the proposal via the following electronic media: electronic spreadsheet format.

(End of provision)

Additional Regulation or Supplemental Clauses Incorporated by Full Text

L-204-H003 NOTIFICATION OF USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (NAVSEA) (APR 2019)

(Apr 2019)

(a) NAVSEA may use a contractor to manage official contract files here in after referred to as "the support contractor", including the official file supporting this procurement. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, here in after referred to as "protected information". File management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file management services are acquired will contain a requirement that

(1) The support contractor not disclose any information;

(2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;

(3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,

(4) In addition to any other rights the offeror may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed Protected Information, for the unauthorized duplication, release, or disclosure of such Protected Information.

(c) Submission of a proposal will be considered as consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file management support contractor for the limited purpose of executing its file support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Offerors are free to enter into separate non-disclosure agreements with the file support contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the files or otherwise encumber the government.

(End of Provision)

L-209-H009 NOTIFICATION OF POTENTIAL ORGANIZATIONAL OR PERSONAL CONFLICT (S) OF INTEREST (NAVSEA) (APR 2022) (Apr 2022)

(a) Offerors are reminded that certain existing contractual arrangements may preclude, restrict or limit participation, in whole or in part, either as a subcontractor or as a prime contractor under this competitive procurement. Of primary concern are those contractual arrangements in which the Offeror provides support to _____, or related laboratories (if applicable), in support of operation of the office or any of its programs. General guidance may be found in FAR 9.505; however, this guidance is not all-inclusive. The Offeror's attention is directed to the "Organizational Conflict of Interest" (OCI) or similar requirement which may be contained in current or completed contract(s) which prohibits the prime or subcontractor from providing certain supplies or services to the Government as described above during the period of the current "support" contract(s) or for a period after completion of the "support" contract(s). Notwithstanding the existence or non-existence of an OCI or similar requirement in current or completed contract(s), the Offeror shall comply with FAR subpart 9.5 and identify whether an OCI exists and not rely solely on the presence of an OCI or similar requirement.

(b) Offerors also are reminded that certain potential conflicts of interest may arise where an Offeror has unequal access to nonpublic information about a competitor that may provide the Offeror with an unfair competitive advantage and preclude, restrict or limit participation, in whole or in part, either of the individual, subcontractor or prime contractor under this competitive procurement. For example, a potential conflict may arise if former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror may have gained access to nonpublic information about a competitor through participation in previous or ongoing performance or during the solicitation development/source selection process associated with this competitive procurement, and then participates in the formation of the Offeror's proposal. Other potential conflicts of interest may arise where either the former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror under this competitive procurement set the ground rules for competition; for example, by drafting specifications or assisting in the drafting of the statement of work. General guidance may be found in FAR 3.101 and 9.505; however, this guidance is not all-inclusive.

(c) If an Offeror identifies a potential conflict of interest that exists at any tier, that Offeror is requested to notify the Contracting Officer within 14 days of the date of this solicitation. The Offeror shall provide: (1) the contract or previous source selection's solicitation number and name and phone number of the Contracting Officer for the contract which gives rise to a potential conflict of interest; (2) a copy of the requirement; (3) the statement of work and technical instruction from the existing contract, as applicable; (4) a brief description of the type of work to be performed by each subcontractor under the competitive procurement; (5) a brief description of the individual's, subcontractor's, or teaming partner's unequal access to nonpublic information about a competitor, which may lead to a conflict of interest in the formation of the Offeror's proposal, or establishment of ground rules for this competitive procurement, as applicable; (6) an OCI mitigation plan, as applicable; and (7) any additional information the Contracting Officer should consider in making a determination of whether a conflict of interest exists. The Government may independently verify the information received from the Offeror. The requirement to identify potential conflicts of interest as outlined herein continues until contract award. Notwithstanding the above, the Government reserves the right to determine whether a conflict of interest exists based on any information received from any source.

(d) The Government will notify an Offeror of any conflict of interest within 14 days of receipt of all required information. Those Offerors deemed to have a conflict of interest may be ineligible for award. Failure to provide the information in a timely manner does not waive the Government's rights to make a conflict of interest determination. The Offeror is notified that if it expends time and money on proposal preparation, such expenditure is at its own risk regardless of whether the Government determines a personal or organizational conflict of interest does or does not exist.

(e) Any potential prime contractor which proposes an individual, subcontractor, or teaming partner later determined to have a conflict of interest and deemed ineligible to participate in the current competition, may not be granted the opportunity to revise its proposal to remove the ineligible individual, subcontractor or teaming partner. The Government reserves the right to determine which Offerors remain in the competitive range through the normal source selection process.

(f) If the Offeror determines that a potential organizational and/or personal conflict of interest does not exist at any tier, the Offeror shall include a statement to that effect in its response to this solicitation.

(End of Provision)

L-211-H001 UPDATES TO PERIOD OF PERFORMANCE AND DELIVERY DATES (NAVSEA) (JUN 2022) (Jun 2022)

For proposal purposes the estimated date of contract, task order, or delivery order award is 12 May 2027. The government reserves the right to award sooner or later if necessary. The delivery dates and/or period of performance start and end dates in Section F will be updated at award based upon actual contract, task order, or delivery order award date.

(End of Provision)

L-215-H004 INSTRUCTIONS FOR PRICING OF CONTRACT DATA REQUIREMENTS LIST (NAVSEA) (OCT 2018) (Oct 2018)

(a) The Offeror shall complete the "Price Group" (Block 17) and "Estimated Total Price" (Block 18) of each data item on the Contract Data Requirements List (CDRL) of this solicitation using the following instructions:

(1) Block 17. Use the specified price group defined below in developing estimated prices for each data item on the DD Form 1423:

(a) Group I. Definition - Data which is not otherwise essential to the offeror's performance of the primary contracted effort (production, development, testing, and administration) but which is required by DD Form 1423.

(i) Estimated Price - Costs to be included under Group I are those applicable to preparing and assembling the data item in conformance with Government requirements, and the administration and other expenses related to reproducing and delivering such data items to the Government.

(b) Group II. Definition - Data which is essential to the performance of the primary contracted effort but the offeror is required to perform additional work to conform to Government requirements with regard to depth of content, format, frequency of submittal, preparation, control, or quality of the data item.

(i) Estimated Price - Costs to be included under Group II are those incurred over and above the cost of the essential data item without conforming to Government requirements, and the administration and other expenses related to reproducing and delivering such data items to the Government.

(c) Group III. Definition - Data which the offeror must develop for his internal use in performance of the primary contracted effort and does not require any substantial change to conform to Government requirements with regard to depth of content, format, frequency of submittal, preparation, control, or quality of the data item.

(i) Estimated Price - Costs to be included under Group III are the administrative and other expenses related to reproducing and delivering such data items to the Government.

(d) Group IV. Definition - Data which is developed by the contractor as part of his normal operating procedures and his effort in supplying these data to the Government is minimal.

(i) Estimated Price - Group IV items should normally be shown on the DD Form 1423 at no cost.

(2) Block 18. For each data item, enter an amount equal to that portion of the total price which is estimated to be attributable to the production or development for the Government of that item of data. The estimated data prices shall be developed only from those costs which will be incurred as a direct result of the requirement to supply the data, over and above those costs which would otherwise be incurred in performance of the contract if no data were required. The entry "N/C" for "no charge" will be acceptable. The estimated price shall not include any amount for rights in data. The Government's rights to use the data shall be governed by the pertinent provisions of the contract.

(End of Provision)

L-215-H006 SUBMISSION OF QUESTIONS BY OFFERORS--BASIC (NAVSEA) (APR 2022) (Apr 2022)

(a) Offerors may submit questions or request clarification of any aspect of this solicitation. It is the Offeror's responsibility to bring to the attention of the Contracting Officer at the earliest possible time, but prior to the closing date, any ambiguities, discrepancies, inconsistencies, or conflicts between the SOW or PWS (as applicable) and other solicitation documents attached hereto or incorporated by reference. Each question should identify solicitation number, document, page number, paragraph number or other identifier relating to the question. Questions without this information may not be answered. Acknowledgment of questions received will not be made.

(b) The deadline for receipt of questions is 12 June 2026. Although every effort will be made, the Government makes no guarantee that questions received after the date above will be answered.

(c) All questions shall be submitted via the SeaPort portal for this solicitation. Responses will be posted to the SeaPort portal.

(End of Provision)

L-216-H001 TASK ORDER GENERAL INFORMATION (NAVSEA) (JAN 2026)

(Jan 2026)

- (a) This requirement is currently being satisfied by HART Technologies, Inc. (HART) under Seaport Task Order N0017819D7754/N0017822F3018.
- (b) Work performed under this task order will support The Naval Surface Warfare Center Dahlgren Division (NSWCDD), Weapons Control and Integration Department (H), Missile Systems, Threat Engineering, and Weapons Effectiveness Division (H30).
- (c) The Government requirement is 703,968 total man hours (surge included) for this effort across five years if all options are exercised.
- (d) This requirement is being solicited as ☐ unrestricted ☐ small business set-aside ☐ 8(a) set-aside. If unrestricted, there is a small business participation requirement of N/A % applicable to both large and small business entities proposing as prime subcontractors.
- (e) There ☒ will be ☐ will not be an industry day. If there will be an industry day, information will be provided elsewhere in this Section L.
- (f) Proposal in response to this solicitation shall be valid for 460 calendar days.
- (g) The applicable PSC is R425.
- (h) Many references and clauses within this solicitation refer to "contract" vice "order" or "task order". Offerors are advised that unless specifically referring to the basic IDIQ MAC, all references to "contract" refer to this Task Order.
- (i) Please consider the following suggestions for avoiding last-minute proposal submission problems:
- Verify your account's ability to submit the necessary proposal information (either as a prime or subcontractor) well in advance of the closing time. This may be accomplished through the following steps:
1. Login to the PIEE system as the Proposal Manager and access the "Solicitation Module."
 2. To access the Solicitation Module, Offerors are required to register for a PIEE account. If an Offeror already has a PIEE account, the role of Proposal Manager can be added to the existing PIEE account. If an Offeror does not already have a PIEE account, the Offer can self-register for a PIEE user account and add the role of Proposal Manager.
 3. Resources on how to navigate the PIEE Solicitation Module are available at <https://dodprocurementtoolbox.com/site-pages/solicitation-module>.
 4. For question related to the PIEE Solicitation Module please contact disa.global.servicedesk.mbx.eb-ticket-requests@mail.mil. You can also reach PIEE support by phone at 866-618-5988.

(End of Provision)

L-245-H002 INSTRUCTIONS REGARDING GOVERNMENT PROPERTY (NAVSEA) (JUL 2024) (Jul 2024)

All offerors shall submit the following information in their proposal:

- (1) A list or description of all Government property that the offeror or its subcontractors propose to use on a rent-free basis. The list shall identify the accountable contract under which the property is held and the authorization for its use (from the contracting officer having cognizance of the property);
- (2) The dates during which the property will be available for use (including the first, last, and all intervening months) and, for any property that will be used concurrently in performing two or more contracts, the amounts of the respective uses in sufficient detail to support prorating the rent;

(3) The amount of rent that would otherwise be charged in accordance with FAR 52.245-9, Use and Charges;
and

(4) A description of the offeror's property management system, plan, and any customary commercial practices, voluntary consensus standards, or industry-leading practices and standards to be used by the offeror in managing Government property.

(End of Provision)

L-245-H001 AVAILABILITY OF GOVERNMENT PROPERTY (NAVSEA) (JUL 2024)

(Jul 2024)

Government property is offered for use under this solicitation. The contractor is responsible for all costs related to making the property available for use, including (but not limited to) payment of all transportation, installation, and rehabilitation costs.

(End of Text)

DRAFT

Section M - Evaluation Factors for Award

M1.0 GENERAL

In accordance with the SeaPort-NxG basic IDIQ MAC Paragraph C.8.2. Competitive Ordering Process, a task order award will be made to the responsible Offeror whose proposal is the most advantageous to the Government under the selection criteria set forth in this solicitation. Notwithstanding any FAR Part 15 references contained herein, this procurement is being conducted under the "fair opportunity" requirements of FAR subpart 16.505.

The proposal must comply in all material respects with the requirements of the law, regulation, and all requirements set forth in this solicitation and in the SeaPort-NxG basic IDIQ MAC. A proposal that fails to meet any material requirement will render the proposal ineligible for award and it will be excluded from further consideration.

The Government intends to evaluate proposals and award based upon initial offers; therefore, Offeror's initial proposal should contain the best terms from a cost and technical standpoint. The Government reserves the right to award a task order without discussions with respective Offerors. The Government may conduct discussions if deemed in its best interest. The Government anticipates a single task order award resulting from this solicitation; however, the Government reserves the right to award more than one or no task order depending on the quality of the proposals received and the availability of funds.

The following terms and definitions will be used for the technical proposal evaluations:

Deficiency is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.

Risk, as it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an Offeror's proposed approach to achieving the technical factor or subfactor may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

Strength is an aspect of an Offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

Weakness means a flaw in the proposal that increases the risk of unsuccessful contract performance.

Significant Strength is an aspect of the Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

Significant Weakness in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance.

M2.0 BASIS FOR AWARD

The award decision will be determined based on the Government's evaluation of each Offeror's proposal against the evaluation factors identified within this solicitation. Award will be made to the responsible Offeror whose proposal demonstrates the best value to the Government based on the evaluation factors. Best value means the expected outcome of an acquisition that, in the Government's estimation, provides the greatest overall benefit in response to the requirement. A tradeoff analysis may be used when it is in the best interest of the Government to consider award to other than the lowest total evaluated cost Offeror or other than the highest technically rated Offeror. The comparison will trade off differences in technical capability based on the non-cost factors and total evaluated cost. If one Offeror has both the better technical capability and the lower total evaluated cost, then that Offeror will be the better value. If one Offeror has the better technical capability and a higher total evaluated cost, the Government will decide whether the difference in technical capability is worth the difference in price. If it is determined that the difference in technical capability is worth the difference in price, then the more capable, higher-priced Offeror will be the better value. If not, then the less capable, lower-priced Offeror will be the better value. In order to be eligible for award, a proposal shall, at a minimum, meet the requirements of the Solicitation and demonstrate an adequate approach and understanding of the requirements. Accordingly, an offeror must receive an adjectival rating of "Acceptable" or higher under Factor 1 in order to be eligible for award.

M3.0 RELATIVE IMPORTANCE OF EVALUATION FACTORS

The Government will evaluate each Offeror's proposal in accordance with the evaluation factors to determine the best value proposal. The evaluation factors represent key areas of importance to be considered in the source selection decision. The factors and associated elements have been chosen to support meaningful discrimination between competing proposals.

Factor Elements

Factor	Elements
1. Technical	A. Technical Approach
	B. Management Approach

	C. Personnel Approach
2. Past performance	None
3. Cost Proposal	None

The relative importance of the evaluation factors is as follows. Factor 1 is more important than Factor 2. Factor 2 is either Acceptable or Unacceptable. Factors 1 and 2, when combined, are significantly more important than Factor 3.

The degree of importance of Factor 3 will increase with the degree of equality of the proposals in relation to the non-cost factors on which selection is to be based, or when the evaluated cost delta between Offerors is so significant as to diminish the value of the superiority of the non-cost factors.

Within Factor 1, the solicitation specifies a set of elements. Elements serve as a means of organizing the proposal structure and streamlining the evaluation process. The Government will not assign ratings to individual elements. The elements are not individually weighted and will be evaluated as a whole under Factor 1.

M4.0 DESCRIPTION OF EVALUATION FACTORS

Factor 1: Technical (Volume I)

Element A - Technical Approach. The Government will evaluate the extent to which the proposal demonstrates specific understanding, capability, and experience to successfully perform the requirements, and the soundness of the proposed technical approach.

Element B - Management Approach. The Government will evaluate the extent to which the proposal demonstrates an effective management organization with the capability, processes, and tools to successfully perform the requirements and ensure the highest quality deliverables, communication, cost management, risk management, and subcontractor management. The Government will evaluate the extent to which the proposal demonstrates a thorough and realistic approach for efficiently and effectively assuming responsibility over requirements while minimizing risk of performance disruption.

Element C - Personnel Approach. The Government will evaluate the extent to which the staffing plan addresses the labor hours identified in Section B and proposed personnel are able to perform all aspects of the SOW/PWS. The Government will evaluate the extent to which the proposal demonstrates a staffing plan and key personnel that are qualified, experienced, and suitable for performing the requirements.

Adjectival Rating Description. The Government will assign an adjectival rating for Factor 1 in accordance with the below adjectival rating table. Elements will not be separately rated.

Adjectival Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

Factor 2: Past Performance (Volume II)

The Past Performance factor will be rated on an Acceptable/Unacceptable basis. The Government will use information provided by the Offeror, as well as any other information deemed necessary as noted in Section L 3.2 to assess the Offeror's ability to meet the solicitation requirements. This assessment will be based on a demonstrated record of past performance, taking into consideration the recency and relevancy of the past performance data. The Government may also evaluate the past performance of an Offeror's proposed

subcontractors. In the evaluation of an Offeror's past performance, the Government reserves the right to contact former customers, Government agencies and other private and public sources of information.

In the case of an Offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the Offeror may not be evaluated favorably or unfavorably on past performance (see FAR 15.305 (a)(2)(iv)). Therefore, the Offeror shall be determined to have unknown past performance. In the context of acceptability/unacceptability, unknown past performance shall be considered acceptable. The evaluation will include information provided by the Offeror demonstrating compliance with the requirements of FAR 52.219-8 and 52.219-9. The Government reserves the right to not perform a past performance evaluation on any Offeror that is assigned an "Unacceptable" or "Marginal" adjectival rating under Factor 1 - Technical.

Factor 2: Acceptability Ratings

In assessing the Past Performance factor, the Government will apply the following definitions of acceptable or unacceptable:

Acceptable - Based on the Offeror's performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort, or the Offeror's performance record is unknown.

Unacceptable - Based on the Offeror's performance record, the Government does not have a reasonable expectation that the Offeror will be able to successfully perform the required effort.

Factor 3: Cost Proposal (Volume III)

The Government will perform a cost realism analysis of the cost proposal. The Government will evaluate the proposed cost elements to determine whether they are realistic for the work to be performed; reflect a clear understanding of the requirements; and are consistent with the technical proposal (e.g. Volume 1 - Technical). The Government will determine the probable cost of performance by calculating the total evaluated cost for the entire cost proposal. The total evaluated cost is the sum of the realistic costs for all priced CLINs/SLINs inclusive of options and proposed fees. The total evaluated cost is determined by upwardly adjusting proposed costs to reflect more realistic levels based on the cost realism substantiating data, unless otherwise stated in Section L. The total evaluated cost may differ from the proposed cost and will reflect the Government's best estimate of the cost of actual performance in contract execution. The total evaluated cost will be used for purposes of evaluation to determine the best value.

The Government will evaluate whether the proposed costs are unrealistically low and the Government will make upward adjustments to those proposed costs that it determines in its judgement to be unrealistically low. Proposals with unrealistically low, unsupported, or costs inconsistent with the technical volume may be deemed reflective of an inherent lack of technical competence or a lack of understanding of the complexity of the work. This may result in the following:

- The assignment of a risk, weakness, and/or deficiency against the Technical Volume.
- The assignment of a cost risk against the Cost Volume.

The Government will not evaluate whether proposed cost elements are unrealistically high in a competitive environment since the fundamental purpose of a cost realism analysis is to guard the Government against any unrealistic claims of cost savings.

The Government reserves the right to use information other than the information provided in the cost proposal in order to perform cost realism analysis and develop the total evaluated cost. This may include, but not limited to, information from DCMA or DCAA, independent government cost estimates, salary databases or websites, invoices, aggregated cost data, historical data, etc. The Government also reserves the right to limit or expand its evaluation of the cost proposal to include technical analysis, unbalanced pricing analysis, cost analysis, and/or price analysis using the methods authorized under FAR 15.404-1.

The Government reserves the right to limit cost realism analysis to only those Offerors that represent the most likely candidates for award and not make any cost realism adjustments to those Offeror's cost proposals that are high cost and have inferior adjectival ratings under Factor 1 - Technical. The Government reserves the right to not perform a cost realism analysis on any Offeror that is assigned an "Unacceptable" or "Marginal" adjectival rating under Factor 1 - Technical. The Government reserves the right to not perform cost realism analysis on subcontractor proposals that reflect less than 5% of the total labor hours. The Government will not perform cost realism analysis on subcontractor proposals that are proposed on a Time-and-Materials or fixed priced basis (e.g. FFP, FFP LOE, etc.).

M5.0 CONTRACT DOCUMENTATION (VOLUME IV)

The Government will evaluate the submitted contract documentation on a pass/fail basis to verify compliance with all requirements. If the Offeror has failed to meet any of the pass/fail requirements, the proposal is ineligible for award and will be eliminated from further consideration. The Government may waive minor oversights and irregularities in the submitted contract documentation provided that they are considered immaterial in its judgment. The Government reserves the right to not evaluate other proposal volumes I-III (Factors 1-3) if Offeror has failed to meet the requirements under Volume IV.

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